



Background Guide

Acharya Model United Nations 2026
United Nations Security Council

Agenda:

‘Operation Polo’

Freeze delegate: August 1948

Letter from the dais

Good day delegates,

There is something rather strange about convening a committee on Hyderabad. We already know how the story ends, yet for the purposes of these few days, you do not.

That is the point.

For the duration of this committee, forget the comfort of hindsight. Forget what India eventually became, what happened to the Nizam, and what the history books chose to call September 1948. You are standing in August 1948, when sovereignty was uncertain, treaties were being stretched to their limits, and almost every answer seemed to create another question.

Read closely; Question everything. It is a rather peculiar little moment in history, and you get to argue through it before anyone knows how it ends.

We would like to leave you with a question:

When sovereignty is disputed, who gets to decide who is sovereign?

Godspeed,

Nandita Nanda - Co President (nnandita.nanda@gmail.com)

Adithya Krishna - Co President

Committee Mandate

The Security Council shall consider the Hyderabad question strictly as it stood in August 1948, with the legal and factual record frozen at that date. Delegates shall therefore distinguish between the *lex lata* applicable in 1948 and subsequent developments in international law, which may illuminate the later evolution of doctrine but cannot be retrospectively treated as operative law.

The Committee's principal mandate is to determine whether the situation concerning Hyderabad fell within the international peace and security jurisdiction of the Security Council, notwithstanding its origins in the constitutional and political transformation accompanying the termination of British paramountcy.

The Council shall examine, in particular, whether the circumstances surrounding Hyderabad constituted a situation capable of engaging the Council's functions under Chapter VI or Chapter VII of the Charter, including whether the situation could properly be characterised as a *threat to the peace*, *breach of the peace*, or *act of aggression* within the meaning of Article 39.

The Committee shall further consider the legal implications of any threatened or actual use of military force. Particular attention shall be given to Article 2(4) and to the question whether India's contemplated resort to force constituted a prohibited use of force against the territorial integrity or political independence of another State, or whether India's position that Hyderabad fell within its domestic constitutional sphere altered the applicability of the provision.

The Council shall not, however, presume that the invocation of Article 2(4) resolves the underlying controversy. The applicability of the prohibition depends substantially upon the prior juridical characterisation of Hyderabad. Delegates must therefore address whether Hyderabad possessed sufficient international legal personality to constitute a State, whether the lapse of British paramountcy altered that status, and whether India's claim to sovereignty could lawfully coexist with Hyderabad's assertion of independence.

The Council shall also consider the principle of non-intervention and its relationship with Article 2(7). The fact that a dispute possesses an internal or constitutional dimension does not necessarily deprive the Security Council of competence where the situation has consequences for international peace and security. Conversely, the Council's competence should not be presumed merely because a dispute has generated international political concern.

The relationship between Chapter VI and Chapter VII shall constitute an important component of the Committee's mandate. Delegates should distinguish between the Council's powers to investigate, recommend, facilitate negotiation, mediation, conciliation, arbitration, or judicial

settlement under the peaceful-settlement provisions of the Charter, and the more coercive measures available following a determination under Article 39.

Particular attention should be accorded to Articles 33 and 35. The Council may consider whether India and the authorities of Hyderabad should be encouraged to pursue negotiation or another peaceful means of settlement, and whether the dispute may properly be brought before the Council by a State concerned or otherwise placed before the Organisation in accordance with the Charter.

The Committee shall also examine the relationship between the Security Council and the International Court of Justice. Judicial settlement may be contemplated only upon the existence of an appropriate jurisdictional basis. Delegates should therefore avoid treating access to the Court as an automatic consequence of the existence of an international legal dispute.

The status of Hyderabad itself presents a further jurisdictional difficulty. The Committee may consider whether the Nizam's Government possessed the requisite international personality to communicate with or invoke the organs of the United Nations. Such participation must, however, be distinguished from formal recognition of Hyderabad as a sovereign State. The capacity to communicate a dispute to an international organ and the possession of full international legal personality are related but analytically distinct questions.

The Council may hear and assess the respective legal positions advanced by India, Hyderabad, Pakistan, the United Kingdom, and other States possessing a relevant interest in the dispute. Their statements shall be treated as evidence of State practice and *opinio juris* where appropriate, rather than as conclusive determinations of the law.

The Council shall further consider whether the situation warranted measures directed towards the prevention or cessation of hostilities, including calls for restraint, cessation of military preparations, negotiation, mediation, or other appropriate peaceful mechanisms. Any proposed measure must be evaluated according to the legal authority conferred upon the Council by the Charter.

The humanitarian consequences of the dispute may likewise be considered insofar as they bear upon the maintenance of international peace and security. The Committee may address the protection of civilians, the prevention of communal violence, the treatment of persons affected by hostilities, and the preservation of public order, while applying only those humanitarian obligations legally applicable at the August 1948 freeze date.

The Council shall remain attentive to the distinction between political legitimacy and juridical entitlement. The existence of internal disorder within Hyderabad, including violence associated with the Razakars or opposition to the Nizam's Government, may constitute relevant factual

material, but internal disorder does not, without more, establish a general unilateral entitlement to military intervention.

Likewise, the assertion of Hyderabad's independence does not, by itself, establish that Hyderabad possessed the international legal status necessary to invoke the protections applicable to sovereign States. The Committee must therefore resist the temptation to allow either political assertion or subsequent historical outcome to substitute for legal analysis.

The principle of self-determination may be considered insofar as it formed part of the Charter's normative framework in 1948. Delegates must, however, distinguish the principle as it existed at the freeze date from its considerably more developed content in subsequent decolonisation practice. The Committee shall not assume that the later emergence of a right to external self-determination establishes an identical legal entitlement in August 1948.

Similarly, territorial integrity shall be examined as a juridical principle rather than invoked as a conclusory proposition. The relevant inquiry is whether India possessed sovereign title to Hyderabad at the critical date and, if so, what legal consequences followed from that title; or, alternatively, whether Hyderabad possessed an independent territorial sovereignty protected against external coercion.

The Council's mandate therefore encompasses both the jurisdictional question and the substantive question: first, whether the Hyderabad situation fell within the competence of the Security Council; and secondly, what measures, if any, the Council was legally entitled to recommend or adopt.

The Committee shall not determine the dispute by reference solely to its eventual historical outcome. The subsequent integration of Hyderabad into India may constitute relevant historical context, but it cannot retrospectively establish the legality of the military action that preceded it.

Accordingly, the fundamental inquiry before the Council is:

Whether, in August 1948, the Hyderabad question remained principally within the domestic constitutional sphere of the Indian subcontinent, or had acquired an international legal character capable of engaging the Security Council's responsibility under the Charter.

If the Council concludes that the matter engaged its international peace and security competence, the subsequent inquiry is narrower but no less consequential:

What measures could the Security Council lawfully have undertaken, under the Charter as it stood in August 1948, to prevent the resort to force, facilitate peaceful

settlement, and preserve international peace and security without prejudging the unresolved question of Hyderabad's juridical status?

That distinction should govern the Committee throughout. The Council is not being asked to determine what history eventually produced; it is being asked to determine what international law

Rules of Procedure (ROP):

(We will be following the regular UNA-USA ROP.)

Reference Videos (particulars subject to change):

 Model United Nations Flow of Debate Training Video

(<https://youtu.be/BYYwBLJ9q5E?si=Esjn9HVqr0tmT5O7>)

 Mock Model United Nations for 1st MUNers

(<https://youtu.be/HnOoptJkOkA?si=v23-fgcMsLviCyhm>)

In case of any doubts w.r.t ROP, mail nnandita.nanda@gmail.com.

(Note: Position Papers are **NOT** required for this committee.)

1. Introduction

The constitutional disintegration of the British Indian Empire in August 1947 did not produce a juridically uniform transfer of sovereignty over the territories of the Indian subcontinent. The termination of British paramountcy over the princely States instead generated a legally unsettled interregnum in which the relationship between territorial authority, dynastic sovereignty, popular legitimacy, and the emergent international order required to be reconstructed rather than simply presumed. Hyderabad occupied an especially difficult position within this transformation. Its ruler, His Exalted Highness the Nizam Osman Ali Khan, did not accede to either of the two successor Dominions and instead sought to preserve Hyderabad as a politically autonomous entity, while the Dominion of India increasingly regarded the State's geographical position, internal disturbances, and external relations as matters incapable of indefinite separation from the security and territorial consolidation of India. The resulting controversy therefore cannot adequately be reduced to a dispute between a newly independent Dominion and a recalcitrant princely ruler; it presents, in more exact juridical terms, a collision between competing conceptions of sovereignty at the moment when an imperial constitutional order was being displaced by a system ostensibly constituted upon the equality and independence of States.

The principal difficulty lies in determining what, precisely, followed from the lapse of paramountcy. Section 7(1)(b) of the Indian Independence Act 1947 expressly provided for the lapse of the suzerainty of the British Crown over the Indian States, together with the treaties, agreements, obligations, and associated powers exercised by the Crown in relation to them. Yet the legal consequence of that lapse was not necessarily the creation of a collection of fully independent international States possessing an unqualified right to determine their subsequent constitutional destiny. The distinction is fundamental. The disappearance of British paramountcy terminated a particular legal relationship; it did not, without further juridical analysis, answer the separate questions of statehood, international personality, external sovereignty, recognition, succession, and the permissible reconfiguration of territorial authority. Crawford's treatment of state creation is instructive precisely because it resists reducing statehood either to mere historical fact or to recognition alone, while Lauterpacht's theory of recognition places the problem within a normative framework in which recognition is connected to the legal requirements of international personality rather than being treated as an entirely discretionary political act.

This distinction assumes particular importance in relation to Hyderabad because the Nizam's assertion of independence was neither an assertion made in a juridical vacuum nor an uncontested manifestation of pre-existing international sovereignty. Hyderabad possessed a sophisticated governmental apparatus, defined territory, a permanent population, and an established external administrative practice; nevertheless, the legal character of the relationship between the Nizam and the British Crown remained structurally different from that between two sovereign States. The historical category of the princely State therefore cannot simply be transposed into the post-15 August 1947 international order by substituting the Crown's disappearance for the automatic

appearance of unrestricted sovereignty. Crawford's emphasis upon independence as a central element in the juridical conception of statehood is particularly relevant here, whilst Lauterpacht's analysis demonstrates why the existence and recognition of an international person cannot be separated from the legal conditions governing its emergence.

The Standstill Agreement of 29 November 1947 further complicates any attempt to characterise Hyderabad's position through an uncomplicated theory of either independence or incorporation. The Agreement preserved, for a defined period, existing arrangements concerning matters of common concern while expressly operating against the background of the disappearance of paramountcy. Contemporary documentation records the Nizam's insistence that execution of the Agreement did not permanently prejudice his claim to independent sovereignty, whilst simultaneously acknowledging that certain sovereign functions would remain subject to agreed limitations during its operation. The juridical significance of the instrument consequently lies less in its superficial appearance as a temporary administrative arrangement than in the fact that it constituted a consensual legal framework governing relations between Hyderabad and India after the extinction of the former Crown relationship. Its interpretation therefore engages the classical principles of *pacta sunt servanda*, good faith, continuity of legal obligations, and the distinction between the existence of a right and the exercise or suspension of that right. These are precisely the kinds of questions which occupy Fitzmaurice's analysis of general principles, treaty obligation, continuity of the State, and the juridical consequences of governmental acts.

The dispute must consequently be situated within the broader transformation of international law then underway. The United Nations Charter had entered into force only in October 1945, and the international legal order of August 1948 was therefore characterised by the simultaneous persistence of older doctrines of sovereignty and the consolidation of newer restrictions upon unilateral coercion. Article 2(4) had established a textual prohibition upon the threat or use of force against the territorial integrity or political independence of States, while Article 2(7) preserved a principle of non-intervention in matters essentially within domestic jurisdiction, subject to the Charter's enforcement machinery. The Hyderabad question consequently raises an unusually acute problem of legal characterisation: whether the controversy was principally an internal constitutional conflict within the territorial framework inherited by India, an international dispute between distinct juridical entities, or a hybrid dispute in which domestic jurisdiction and international obligation intersected. The answer to that preliminary question determines the legal relevance of virtually every subsequent issue, including the prohibition of force, peaceful settlement, Security Council competence, recognition, and the juridical consequences of territorial integration.

The competing positions may accordingly be formulated as rival juridical propositions rather than merely opposing political narratives. From the Hyderabad perspective, the lapse of paramountcy

may be construed as having removed the external superior upon whom its subordinate status depended, thereby restoring a sphere of sovereign discretion in which accession to India could not lawfully be presumed. On this view, the absence of accession would assume considerable legal significance, because territorial incorporation would require a juridical basis grounded in consent, succession, or another recognised mode of territorial disposition. From the Indian perspective, however, the proposition that the termination of paramountcy converted every princely State into an independent international State would risk transforming a constitutional dissolution of imperial authority into a mechanism for the indefinite fragmentation of the territorial order of the subcontinent. The decisive question would therefore become whether Hyderabad possessed sufficient independence, both legally and factually, to qualify as an international State capable of resisting India's claims to jurisdiction over the territory. Crawford's insistence that statehood is governed by international law, rather than being wholly left to political discretion, provides an analytical framework for testing both propositions without assuming either of them as a premise.

The problem of recognition is equally incapable of resolution through a simple invocation of the declaratory theory. Lauterpacht famously treated recognition as a juridical function rather than merely a political convenience, arguing that where the requisite conditions of statehood exist, recognition cannot properly be reduced to unrestricted political discretion. Yet the opposing tradition, reflected in the classical declaratory approach, distinguishes the existence of the State from the legal consequences which recognition may produce in relations with other States. Crawford's analysis subsequently refines rather than simply reproduces this dichotomy by treating statehood, recognition, effectiveness, independence, and international institutional practice as distinct but interconnected questions. The Hyderabad controversy thus requires an examination not merely of whether other States recognised Hyderabad, but of whether the absence or presence of recognition had constitutive significance, what degree of external independence Hyderabad actually possessed, and whether third-State conduct could alter the juridical assessment.

The question of popular sovereignty introduces a further layer of juridical complexity. The Nizam's claim rested substantially upon the prerogatives historically associated with the ruler of a princely State, whereas the emerging international discourse increasingly attached legal significance to the political will of peoples. Yet it would be anachronistic to impose upon August 1948 the fully elaborated contemporary doctrine of self-determination in its later form. The relevant inquiry must instead distinguish between the legal status of the Nizam as ruler, the constitutional position of Hyderabad's population, the activities of the Hyderabad State Congress, the communal and political divisions within the State, and the extent to which popular consent could operate as an independent source of territorial title. Crawford's treatment of self-determination and state creation demonstrates why these questions cannot be collapsed into a general proposition that either dynastic sovereignty or popular sovereignty was automatically legally decisive.

The internal disturbances within Hyderabad likewise cannot be treated as legally self-interpreting facts. The activities of the Razakars, the political mobilisation of the Hyderabad State Congress, allegations of disorder and coercion, and the deterioration of relations with India constituted factual circumstances upon which competing legal arguments could be constructed, but the existence of internal disorder did not, by itself, determine whether India possessed an international legal right to intervene militarily. The distinction between factual necessity and juridical necessity is therefore indispensable. Fitzmaurice's conception of international law through the discipline of general principles and the rule of law is particularly pertinent: political circumstances may explain State conduct, but explanation is not equivalent to legal justification. The question is not merely why India considered intervention necessary, but whether the circumstances relied upon were capable of generating a legal entitlement to employ coercive force against an entity whose international status itself remained contested.

The temporal limitation imposed by the present inquiry is consequently decisive. This study adopts **August 1948 as its freeze date**. Operation Polo itself had not yet occurred during the relevant period; indeed, the Hyderabad Government's communication to the Security Council is dated 21 August 1948 and was registered as Security Council document S/986 on 24 August 1948. The military operation followed only in September. Accordingly, a legally disciplined analysis must not retrospectively employ the subsequent Indian military occupation, the Nizam's later withdrawal of the Security Council complaint, or later United Nations proceedings as though those events were already juridically available to decision-makers in August. The inquiry must instead reconstruct the legal position *ex ante*: what rights and obligations could reasonably have been asserted on the frozen date, what legal avenues remained open, and upon what international-law foundations any subsequent resort to force would have had to be justified. The later record may be used only as subsequent historical evidence where necessary to illuminate the dispute, not as a source of legal facts unavailable on the freeze date. The United Nations archival record confirms both the August complaint and the later chronology, thereby making the temporal distinction legally indispensable rather than merely methodological.

The central juridical problem may therefore be stated with greater precision than the conventional historical formulation of the Hyderabad question permits: **did the extinction of British paramountcy leave Hyderabad with an international legal status sufficient to resist incorporation into India absent its consent, or did the constitutional and territorial circumstances of decolonisation place its political independence within a legal order in which India's claims to territorial integrity and internal security prevailed?** The answer cannot be derived from a single doctrine. It requires a cumulative examination of the law of statehood and recognition, the juridical consequences of decolonisation and succession, the legal status of princely States, the force of the Standstill Agreement, the emerging law governing self-determination and non-intervention, the Charter prohibition upon force, and the institutional

competence of the United Nations. In this respect, the methodological insight associated with Crawford is especially valuable: the legal character of State creation must be determined through the interaction of doctrine, practice, effectiveness, and institutional recognition rather than through historical description alone.

The Hyderabad dispute is therefore best understood not as a peripheral episode in the political consolidation of post-colonial India, but as a concentrated problem in the jurisprudence of international legal personality. It exposes, at a moment of profound constitutional transition, the tension between sovereignty as historical title and sovereignty as contemporary international personality; between territorial integrity and the claims of constituent peoples; between recognition as political act and recognition as juridical duty; and between the preservation of order and the prohibition of unilateral coercion. Its importance for international legal scholarship lies precisely in this collision of principles. The question presented by Operation Polo is ultimately not whether India or Hyderabad possessed the more compelling political narrative, but whether, **as of August 1948**, the international legal order furnished a determinate rule capable of converting either narrative into a legally cognisable title, entitlement, defence, or prohibition. That inquiry provides the necessary juridical foundation for examining the historical dissolution of paramountcy, the contested status of Hyderabad, the legality of threatened or subsequent force, and the role that international adjudication and collective security could properly assume in resolving the dispute.

Principal Scholarly Authorities Engaged

Hersch Lauterpacht, *Recognition of States in International Law* (Cambridge University Press, 1947), together with his earlier article on recognition, supplies the principal normative framework for analysing recognition as a juridical institution rather than an exclusively political act.

James Crawford, *The Creation of States in International Law*, 2nd edn (Oxford University Press, 2006/2007), provides the principal analytical framework concerning statehood, effectiveness, independence, recognition, commencement, extinction, and the relationship between State creation and international law.

Gerald G. Fitzmaurice, *The General Principles of International Law Considered from the Standpoint of the Rule of Law*, 92 *Recueil des Cours* (1957-II), is particularly relevant to the methodological proposition that international legal analysis must distinguish normative obligation from political expediency and must preserve the coherence of general international law.

Fitzmaurice's work on the law and procedure of the International Court of Justice is likewise relevant to the later treatment of jurisdiction, general principles, treaty interpretation, and the juridical consequences of State conduct; the subsequent continuation of that scholarship records

the enduring importance of his analytical method to the study of territorial sovereignty and international adjudication.

The primary legal materials include the **Indian Independence Act 1947**, particularly section 7 concerning the lapse of British suzerainty, and the **29 November 1947 Standstill Agreement** between Hyderabad and the Dominion of India.

The contemporaneous United Nations record, especially Hyderabad's **21 August 1948 communication to the Security Council, S/986**, is indispensable for maintaining the August 1948 temporal frame and for reconstructing the legal position before Operation Polo commenced.

Operation Polo

I. Historical Context and the Dissolution of British Paramountcy

1.1 Hyderabad State within the British Imperial Constitutional Order

The juridical position of Hyderabad prior to 15 August 1947 cannot be adequately apprehended through the vocabulary of either complete sovereignty or ordinary colonial subordination. It occupied the characteristically indeterminate position of an Indian princely state within the British imperial constitutional order, possessing substantial internal autonomy while remaining subject to the overriding authority conventionally described as British “paramountcy”. The difficulty is not merely terminological. It concerns the extent to which the British Crown exercised international powers on behalf of, or in relation to, the Indian States without thereby extinguishing their distinct juridical personality. The historical relationship was accordingly one in which sovereignty, suzerainty, protection, and internal autonomy existed in a deliberately unsettled juridical configuration.

The constitutional ambiguity was neither accidental nor insignificant. British relations with the princely states developed through a heterogeneous accumulation of treaties, subsidiary alliances, engagements, sanads, political conventions, and administrative practices rather than through a single constitutional instrument capable of furnishing an exhaustive statement of their legal status. The concept of paramountcy consequently performed a mediating function: it preserved the formal individuality of the Indian States while reserving to the British Crown a superior position in matters regarded as affecting imperial security, external relations, and the general political order of British India. Contemporary and later scholarship has accordingly treated the princely states as entities whose international capacities were constrained rather than simply extinguished.

The position is particularly important when examined through the methodological distinction, emphasised in the modern literature on statehood, between the existence of governmental institutions and the independent exercise of international capacities. Crawford's analysis of statehood proceeds from the proposition that the question whether an entity constitutes a State is juridically distinct from the question whether its external capacities have been restricted by another State. His broader treatment of statehood therefore cautions against collapsing effective governmental authority, legal personality, recognition, and complete external freedom into a single inquiry. Such an analytical distinction is indispensable to the Hyderabad question, for the existence of British paramountcy does not, without further examination, determine the juridical character of Hyderabad itself.

The historical scholarship on the Indian States reinforces this point. Recent international-legal scholarship has demonstrated that the princely states occupied a space between the categories of domestic dependency and international personality, and that their status was repeatedly articulated through the language of sovereignty even while their external relations remained subject to British control. The older literature was itself divided: some writers regarded paramountcy as incompatible with the possession of genuine international sovereignty, whereas others regarded the restrictions imposed by the British Crown as limitations upon an underlying sovereign status rather than as its complete negation.

The jurisprudential significance of this distinction becomes clearer through Lauterpacht's conception of international personality. Lauterpacht's approach to recognition and statehood was never reducible to the proposition that legal status followed automatically from political fact. Rather, he treated the international legal order as capable of determining whether an entity possessed the attributes necessary for participation in international relations. His intervention in the Hyderabad controversy is therefore especially significant: according to later scholarship, his position rested upon the proposition that Hyderabad possessed an independent government conducting normal governmental activities within a defined territory.

The constitutional order within which Hyderabad existed must consequently be understood as one of differentiated sovereignty rather than as a simple hierarchy between a sovereign metropolitan power and a wholly domestic territorial administration. The British Crown exercised paramountcy; Hyderabad retained its own ruler, governmental machinery, territorial administration, armed forces, fiscal institutions, and substantial internal competence. The precise legal consequence of that arrangement remains contested, but the existence of such contestation itself demonstrates why the subsequent lapse of paramountcy could not be treated as a merely administrative alteration.

1.2 The Nizam's Sovereignty and the Structure of Princely-State Governance

The Nizam of Hyderabad, Mir Osman Ali Khan, Asaf Jah VII, constituted the apex of the State's pre-1947 governmental structure. Yet the juridical proposition that the Nizam was "sovereign" requires qualification. In the language of international law, sovereignty is not synonymous with the possession of unlimited governmental power; nor does the existence of a ruler exercising extensive domestic authority necessarily establish an unrestricted international personality. The relevant inquiry is instead whether the ruler and the State possessed those juridical capacities which remained effective notwithstanding the superior authority exercised by the British Crown.

Hyderabad possessed several characteristics conventionally associated with a State: a defined territorial domain, a permanent population, an organised governmental authority, and an established governmental apparatus capable of exercising effective control over its territory. Crawford's treatment of statehood identifies precisely such effectiveness as central to the juridical inquiry, while simultaneously recognising that the application of the criteria of statehood occurs within a political environment in which existing States retain considerable discretion concerning the treatment of emerging or contested entities. The Hyderabad controversy consequently presents a particularly acute example of the distinction between the factual existence of governmental institutions and the legal consequences attributed to those institutions by other States.

The Nizam's authority was, however, institutionally embedded within the British imperial system. Hyderabad did not possess an entirely autonomous external policy comparable to that of an undisputed sovereign State. British paramountcy imposed substantial constraints upon the State's capacity to conduct foreign relations, and British political influence extended considerably beyond the ordinary relationship between independent States. It would therefore be analytically erroneous to transpose the post-1947 conception of sovereign equality retrospectively upon Hyderabad's pre-1947 position.

Equally problematic, however, would be the opposite proposition that British control necessarily rendered Hyderabad nothing more than a territorial subdivision of British India. Hyderabad was not governed as a province of British India; its ruler and governmental institutions were distinct, and its relationship with the Crown was constructed through a separate body of engagements and constitutional practices. The legal category of "Indian State" itself reflected this differentiated status. The question after 1947 was therefore not whether Hyderabad had previously been identical to a fully sovereign European State, but what juridical consequences followed from the disappearance of the authority which had constrained its external capacities.

The distinction between internal sovereignty and external independence is particularly relevant. A State may possess extensive domestic competence while lacking complete freedom in foreign affairs; conversely, the restoration of external competence may transform the juridical significance of pre-existing governmental institutions without creating those institutions anew. Such reasoning accords with the broader jurisprudential caution against treating sovereignty as an indivisible

empirical fact. Fitzmaurice's methodological work in public international law, particularly concerning the juridical operation of treaties and the continuing significance of legal relations established through them, reinforces the proposition that international legal consequences must be derived from the relevant instruments and practices rather than from political characterisation alone.

This distinction was of immediate consequence in 1947. The Nizam did not acquire governmental institutions for the first time upon British withdrawal; those institutions already existed. What became legally contentious was whether the external limitations imposed through paramountcy survived the constitutional termination of British rule, and, if they did not, whether Hyderabad consequently possessed sufficient international legal personality to remain outside the newly constituted Dominions.

1.3 The Indian Independence Act, 1947 and the Lapse of Paramountcy

The decisive constitutional transformation occurred through the Indian Independence Act 1947. The Act provided for the establishment of the two new Dominions, India and Pakistan, and, critically for the princely states, terminated the legal basis of British paramountcy. The legal significance of this provision was considerable because the Crown's pre-existing relations with the Indian States were not simply transferred wholesale to either Dominion. The British constitutional relationship with the States was brought to an end.

The official British position was subsequently stated with considerable clarity before the United Nations: on 15 August 1947, the suzerainty of the British Crown over Hyderabad and the other Indian States came to an end, and the powers previously exercised by the Crown were not transferred to the Governments of India or Pakistan. This proposition is of central importance because it establishes the constitutional premise upon which Hyderabad's claim to post-paramountcy autonomy rested.

The legal controversy therefore concerns the consequences of termination rather than the fact of termination itself. Hyderabad argued, in substance, that once paramountcy had lapsed, the legal restrictions upon its external freedom ceased and the State was consequently capable of determining its future relations independently. India advanced the contrary position, maintaining that Hyderabad had never possessed the international independence necessary to become a sovereign State and that the lapse of British paramountcy did not confer upon the princely states an entitlement to independent international existence.

The distinction between *devolution* and *creation* becomes indispensable at this juncture. If the termination of paramountcy merely removed a superior legal relationship while leaving the underlying governmental entity intact, Hyderabad's claim could be conceptualised as one of

restored or newly unrestricted external competence. If, conversely, the princely states had possessed no international legal personality capable of surviving the British relationship, then the lapse of paramountcy could not itself have produced statehood. Crawford's treatment of dependent entities and the creation of States is particularly instructive because it recognises that the legal consequences of decolonisation cannot be determined solely by the fact of administrative separation; the juridical identity and capacities of the pre-existing entity must also be examined.

This was precisely the difficulty confronting the international legal order in 1947–48. The Indian Independence Act was a constitutional instrument of British law, but its consequences extended into the international plane because the termination of British paramountcy altered the legal framework within which the Indian States conducted their external relations. The Act thus occupied an unusual position at the intersection of constitutional law, imperial law, and international law.

The scholarly literature has consequently resisted both simplistic formulations. One strand of analysis treats the lapse of paramountcy as leaving the princely states legally free to determine their political future, while another emphasises that international recognition, effective independence, and the practice of the successor States remained indispensable to the practical operation of any such independence. The Hyderabad controversy illustrates Crawford's observation that statehood rules possess an “open texture” susceptible to political manipulation, particularly where existing States retain discretion concerning recognition and participation.

The importance of the Act therefore lies not merely in the termination of British rule but in the juridical vacuum, or apparent vacuum, which it created. The authority previously exercised by the Crown disappeared; India and Pakistan emerged as Dominions; and the princely states were confronted with the question whether the extinction of paramountcy restored a legally independent external position or merely necessitated the conclusion of new constitutional relationships with one of the successor Dominions.

1.4 Partition, Succession of Authority, and the Emergence of the Dominions

The partition of British India did not operate as an ordinary transfer of sovereignty from one metropolitan State to two successor States. It constituted a constitutional and territorial reorganisation in which the Dominion of India and the Dominion of Pakistan emerged simultaneously with the termination of British paramountcy over the princely states. The resulting juridical structure therefore contained two distinct but interrelated processes: the transfer of governmental authority within British India and the termination of the Crown's treaty-based relationship with the Indian States.

The distinction is fundamental to any legal reconstruction of Hyderabad's position. Hyderabad was not part of British India in the same constitutional sense as the provinces transferred into the Dominion of India. It therefore could not simply be treated as territory automatically incorporated into the Dominion upon the British withdrawal. The United Kingdom's position before the Security Council expressly recognised that the Crown's suzerainty ended on 15 August 1947 and that Hyderabad had not thereafter acceded to either India or Pakistan.

The emergence of the Dominions consequently produced a triangular legal structure. India claimed that geographical contiguity, political integration, security, and the overall settlement of the subcontinent rendered Hyderabad's independence untenable. Hyderabad maintained that the termination of paramountcy had restored its capacity to determine its external status. Pakistan, while politically sympathetic to Hyderabad's position, possessed its own strategic and constitutional interests and did not thereby become the successor to the British Crown's authority over Hyderabad. The question of succession was therefore not resolved merely by identifying India and Pakistan as successor Dominions.

The distinction between succession of governmental authority and succession to international rights and obligations is central to this analysis. International law does not ordinarily permit the automatic inference that every right previously exercised by a predecessor State devolves upon a successor State merely because territorial or constitutional control has changed. The particular juridical relationship must be examined. In Hyderabad's case, the British Government's own subsequent statement that the powers previously exercised by the Crown had not transferred to India or Pakistan substantially undermines any proposition that paramountcy itself had simply passed to the Dominions.

The legal significance of partition was nevertheless greater than the formal extinction of British paramountcy. The newly independent Dominions inherited an extraordinarily complex territorial and political environment in which the continued independence of numerous princely states presented questions of strategic viability, economic interdependence, communications, defence, and political legitimacy. The resulting integration process therefore involved both juridical instruments and intense political pressure. The Hyderabad case represented one of the most consequential instances in which the tension between the formal termination of imperial authority and the political consolidation of the post-colonial State became acute.

From the standpoint of international legal theory, the dispute illustrates the tension between a voluntarist conception of sovereignty and an effectiveness-oriented conception of statehood. The former places considerable weight upon the legal freedom of an entity to determine its international relations once a superior authority has disappeared; the latter emphasises the factual and institutional conditions through which an entity becomes capable of operating as an independent State. Crawford's account demonstrates that statehood cannot be reduced to

recognition alone, yet neither can recognition and the conduct of existing States be dismissed as legally irrelevant.

Lauterpacht's position is particularly revealing because it demonstrates the tension from within the classical international-law tradition itself. His analysis of Hyderabad did not simply rest upon political sympathy for the Nizam; it proceeded from the proposition that Hyderabad possessed the institutional characteristics of a State and therefore could not be deprived of international legal significance merely by political convenience. Yet the subsequent treatment of Hyderabad also illustrates the limits of juridical argument when international institutions are confronted with a contested claim to statehood in circumstances of rapid decolonisation. Contemporary scholarship has accordingly observed that the Hyderabad controversy placed the question of statehood before international institutions at precisely the moment when the older ruler-centred conception of sovereignty was increasingly confronted by the principle that legitimate government ultimately derived from the people.

The historical context must therefore be understood as juridically transitional rather than merely chronological. The dissolution of British paramountcy terminated the imperial relationship that had structured Hyderabad's external position; partition created two new Dominions but did not, on the British constitutional account, inherit paramountcy; and Hyderabad remained outside accession to either Dominion during the immediate post-independence period. The ensuing legal controversy was consequently not simply whether Hyderabad was "Indian" in a geographical or historical sense, but whether the post-imperial international order recognised an autonomous juridical subject capable of determining its own external status.

That question provides the necessary foundation for the subsequent inquiry into statehood, recognition, sovereignty, consent, self-determination, and international legal personality. It is precisely at this point that the Hyderabad controversy ceases to be merely an episode in the political integration of India and becomes a problem in the jurisprudence of international law: whether the dissolution of an imperial legal relationship necessarily liberated the juridical personality of the dependent entity, whether the international order could recognise that personality independently of the wishes of the successor Dominion, and whether political consolidation could lawfully supersede a contested claim to international legal independence. The Security Council's later treatment of Hyderabad confirms that these questions were not merely retrospective scholarly constructions but were expressly confronted by the international community in 1948.

1.5 Hyderabad's Refusal of Accession and Its Claim to Sovereign Independence

The refusal of Hyderabad to accede to either of the two Dominions constituted the central juridical act upon which its subsequent claim to international independence was constructed. The issue cannot, however, be reduced to the political preference of the Nizam. It concerned the legal consequences of the termination of British paramountcy and, more fundamentally, whether the disappearance of the Crown's superior authority left Hyderabad legally competent to determine its external status independently. The Hyderabad Government maintained that, once paramountcy had lapsed on 15 August 1947, no legal instrument transferred the State's sovereignty to India or Pakistan. The British Government subsequently confirmed before the Security Council that the Crown's suzerainty over Hyderabad had terminated and that the powers formerly exercised by the Crown had not devolved upon either Dominion.

The legal significance of this position lies in the distinction between **accession as a constitutive political act** and **independence as a juridical consequence of the dissolution of dependency**. Hyderabad's contention was not simply that it preferred independence; it was that accession was legally unnecessary because the State had emerged from the imperial constitutional order with its existing governmental identity intact and its external competence no longer subject to British paramountcy. This proposition was expressly advanced before the Security Council in September 1948, where the Hyderabad representative maintained that the State had acquired full independence upon the termination of British suzerainty.

The Indian position proceeded from a fundamentally different conception of the legal history of the princely States. India maintained that Hyderabad had never possessed the status of an independent State in international law and that the lapse of British paramountcy did not transform the Nizam's polity into a sovereign international person. The Indian representative before the Security Council expressly characterised Hyderabad as neither a State nor an independent entity and denied that the Indian Independence Act, British declarations, or the termination of paramountcy had conferred upon it the international status necessary to invoke the Charter in its own right.

The controversy thus illustrates the classical distinction between **continuity of governmental identity** and **continuity of international personality**. Hyderabad could point to the uninterrupted existence of its governmental machinery, territorial administration, and ruling authority. India could respond that continuity of internal administration did not establish continuity of an independent international personality which, in its view, Hyderabad had never previously possessed. The legal controversy therefore turned upon the antecedent status of the princely States within the British imperial constitutional system and the precise consequences produced by the termination of paramountcy.

The Hyderabad claim nevertheless possessed a substantial doctrinal foundation within the classical law of statehood. Lauterpacht's analysis, as reconstructed in subsequent scholarship,

treated Hyderabad as possessing an independent government exercising ordinary governmental functions over a defined territory. His argument therefore proceeded through the objective characteristics of statehood rather than through the political assertion that the Nizam merely desired independence. Contemporary scholarship has identified this as the central juridical basis of Lauterpacht's position in favour of Hyderabad's independent statehood.

Crawford's later systematic treatment of statehood permits this argument to be reformulated with greater analytical precision. The existence of territory, population, government, and a capacity for external relations constitutes evidence relevant to statehood, but the legal significance of each criterion depends upon the circumstances in which the entity claims independence. Crawford's approach therefore avoids the proposition that factual governmental effectiveness automatically generates international personality, while equally resisting the converse proposition that an entity can be denied statehood merely because another State refuses to recognise it.

The Hyderabad claim further acquired significance from the fact that the Nizam did not merely refuse accession indefinitely without proposing an alternative juridical mechanism. Hyderabad repeatedly maintained its willingness to submit the question of accession to the people through a plebiscite under international supervision, subject to the withdrawal of Indian forces and the preservation of an impartial process. The proposal is recorded in the contemporaneous United Nations material and demonstrates that Hyderabad's position was capable of being articulated not merely as dynastic preservation but as a claim to determine the State's constitutional future through an internationally supervised process.

This introduces the fundamental tension between the **traditional ruler-centred conception of sovereignty** and the emerging principle of **popular self-determination**. The Nizam could invoke the historical and juridical continuity of the State; opponents of his position could argue that sovereignty could not legitimately be exercised contrary to the political will of Hyderabad's population. Modern scholarship has emphasised that this tension was increasingly decisive by 1947–48: a conception of state sovereignty which treated the ruler as the sole juridical embodiment of the State had become increasingly difficult to sustain within the political environment of decolonisation and democratisation.

Accordingly, Hyderabad's claim to independence should not be characterised as legally frivolous merely because it ultimately failed to secure international recognition. Nor should its assertion of statehood be treated as conclusively established merely because paramountcy had lapsed. The legally precise position, as at the August 1948 freeze date, is that Hyderabad possessed a substantial juridical argument that the termination of British paramountcy had restored or exposed its independent external competence, while India maintained that the princely-State structure did not contain an international personality capable of surviving in this manner. The dispute was therefore one concerning the **legal consequences of decolonisation itself**.

1.6 The Standstill Agreement and the Preservation of Pre-Existing Arrangements

The Standstill Agreement of 29 November 1947 constituted the principal legal instrument governing relations between India and Hyderabad during the transitional period following the lapse of paramountcy. Its significance derives precisely from its transitional character. It did not finally determine Hyderabad's constitutional future; rather, it sought to preserve existing arrangements while negotiations concerning the ultimate relationship between Hyderabad and India continued. The United Nations record confirms that the Agreement was concluded for a period of twelve months and that one of its effects was to place the conduct of Hyderabad's external affairs in India's hands during its currency.

The Agreement consequently presents a juridical difficulty of considerable importance. Hyderabad's conclusion of the instrument could be regarded as evidence that it possessed sufficient legal capacity to enter into an agreement governing its relations with India. At the same time, the very terms of the arrangement demonstrate that Hyderabad's external competence was subject to substantial contractual limitation. The existence of an international agreement does not, in itself, establish complete sovereignty; entities possessing differentiated or limited international capacities may enter into legally binding arrangements without thereby acquiring unrestricted international personality.

The proper legal characterisation of the Standstill Agreement must therefore avoid two opposite errors. The first would be to regard it as an act of accession by another name. That proposition is difficult to sustain because the Agreement did not constitute Hyderabad's incorporation into India and was expressly conceived as a temporary preservation of existing relations. The second would be to regard the Agreement as legally irrelevant to Hyderabad's status. That proposition is equally problematic because the existence of a negotiated instrument between Hyderabad and India demonstrates that the relationship between the two authorities was capable of being articulated through legal obligations rather than merely through unilateral domestic administration.

The Agreement was thus a **modus vivendi**, rather than a final constitutional settlement. Its legal function was to prevent the immediate dislocation of relations previously structured through British paramountcy while providing a temporal framework within which the parties could negotiate the unresolved question of Hyderabad's future. The British representative before the Security Council specifically described its effect as placing the conduct of Hyderabad's external affairs in India's hands during the Agreement's operation.

This feature is especially important because it undermines any simplistic argument that Hyderabad's external affairs were already permanently absorbed into the Indian Union before the military crisis. If the parties found it necessary to regulate the conduct of external affairs through a temporary agreement, the juridical inference is that the underlying status of those relations

remained contested. India possessed contractual authority under the Agreement; that does not necessarily establish that India possessed sovereign title over Hyderabad.

The Agreement also contained mechanisms for resolving disputes arising from its operation. Yet contemporaneous United Nations records indicate that allegations of breaches arose on both sides and that the arbitration mechanism was not ultimately utilised before the crisis escalated. The failure to exhaust the agreed mechanism is therefore relevant to the later question whether peaceful settlement remained legally available and whether unilateral coercion was justified while contractual avenues remained open.

The Indian Government alleged repeated violations by Hyderabad. Jawaharlal Nehru, in a May 1948 statement, referred to alleged breaches concerning Hyderabad's financial dealings with Pakistan, currency arrangements, the size of its armed forces, and the growth of the Razakar organisation. He characterised these matters as serious breaches of the Standstill Agreement and connected them to India's wider security concerns. These allegations must, however, be distinguished analytically from established findings of legal breach. In the absence of a binding adjudication or mutually accepted determination, they remained contested allegations forming part of the diplomatic controversy.

The Agreement also reveals the structural weakness of Hyderabad's position. A State claiming complete external sovereignty would ordinarily regard the conduct of foreign affairs as an inherent attribute of its independence. Yet Hyderabad accepted, at least temporarily, a legal arrangement under which India assumed responsibility for significant aspects of its external relations. The Agreement could therefore be invoked by India as evidence that Hyderabad's international independence was incomplete. Hyderabad could respond that the limitation was **consensual, temporary, and treaty-based**, and therefore entirely compatible with sovereignty.

This distinction corresponds with a broader principle of international legal reasoning: **sovereignty does not imply the inability to undertake voluntary limitations upon sovereign competence**. States routinely conclude treaties restricting their freedom of action in particular fields without thereby ceasing to be States. The decisive question is consequently whether the limitation is imposed by a superior legal authority or voluntarily undertaken through an agreement between juridically competent parties. The Standstill Agreement is therefore relevant not simply because it restricted Hyderabad, but because the restriction was contractual and temporally bounded.

By August 1948, the Agreement had thus become simultaneously an instrument of preservation and a source of juridical contention. For Hyderabad, it demonstrated that the relationship with India remained treaty-based rather than constitutive of sovereignty. For India, alleged breaches demonstrated the inability or unwillingness of Hyderabad to fulfil the obligations necessary to

sustain peaceful relations. For third States, the Agreement provided an important evidentiary record concerning the actual legal relationship between the parties.

Its ultimate significance lies in its preservation of ambiguity. The Agreement neither resolved the question of Hyderabad's statehood nor settled the question of accession. It instead postponed the constitutional controversy while establishing temporary legal obligations. The deterioration of relations during its operation consequently transformed what had been intended as a transitional juridical arrangement into the principal legal framework through which the parties subsequently contested responsibility, security, external interference, and the legitimacy of coercive action.

1.7 The Hyderabad State Congress, the Razakars, and the Internal Political Crisis

The constitutional dispute between Hyderabad and India cannot be understood independently of the internal political transformation occurring within Hyderabad itself. The claim of the Nizam's Government to represent the State externally confronted an increasingly significant domestic challenge concerning the legitimacy of the existing political order. The Hyderabad State Congress demanded responsible government and political participation, while the Majlis-e-Ittehad-ul-Muslimeen and its associated Razakar organisation emerged as powerful defenders of the existing political structure and of Hyderabad's resistance to accession. The resulting conflict complicated the international-law characterisation of the dispute because it introduced a question distinct from territorial sovereignty: **who possessed legitimate authority to determine the political future of Hyderabad?**

The Hyderabad State Congress had initiated a campaign for responsible government in the period surrounding independence. Historical accounts place the commencement of its satyagraha on 7 August 1947, immediately preceding the formal dissolution of British paramountcy. The movement was therefore not simply an instrument of Indian foreign policy; it represented a domestic political challenge to the Nizam's governmental structure. Nevertheless, the close relationship between the State Congress movement and the wider Indian nationalist project made it difficult for the Hyderabad Government to treat the movement exclusively as an internal constitutional dispute.

The Razakars presented the converse difficulty. They were a volunteer-based paramilitary organisation associated with the Majlis-e-Ittehad-ul-Muslimeen and led politically by Qasim Razvi. Indian officials alleged that the organisation was responsible for violence within Hyderabad and for incursions across the Indian frontier. The historical record, however, requires considerable caution concerning the evidentiary status of these allegations. Contemporary Indian statements described the Razakars as a private army responsible for widespread insecurity, while later scholarship has noted that contemporary press accounts of alleged atrocities were in some respects exaggerated and that Hyderabad representatives made counter-allegations concerning armed activity originating from Indian territory.

This evidentiary asymmetry is juridically important. International legal analysis cannot convert diplomatic allegations into established facts merely because those allegations were subsequently invoked to justify governmental action. The proper inquiry distinguishes between **the existence of internal disorder, the attribution of conduct to the State, and the legal consequences of that disorder for relations between States**. The Razakar question therefore cannot, without further proof, be equated with an internationally wrongful act attributable to Hyderabad itself.

The Indian Government nevertheless formulated precisely such an argument. Nehru maintained in May 1948 that the Razakars constituted a “private army” whose activities endangered security along India's borders and that Hyderabad either supported them or was incapable of controlling them. This argument implicitly presented two alternative grounds of responsibility: either the Hyderabad Government was responsible because it supported hostile activity, or it was incapable of exercising effective governmental control over territory adjacent to India. Both propositions were directed towards demonstrating that the existing constitutional arrangement had ceased to provide India with an acceptable security environment.

From an international-law perspective, however, the argument requires careful separation between **domestic incapacity** and **international responsibility**. A State's inability to suppress private violence does not automatically render every act of private persons an internationally wrongful act attributable to that State. Nor does the existence of disorder within another State ordinarily confer upon a neighbouring State an unrestricted right to intervene. The legal significance of incapacity depends upon the particular obligation alleged to have been breached and upon the applicable rules of attribution and responsibility.

The internal political crisis nevertheless weakened the Nizam's claim that the Government represented an uncontested expression of popular sovereignty. Modern scholarship has emphasised that by the late colonial period the traditional understanding of the princely ruler as the exclusive embodiment of sovereignty had become increasingly difficult to reconcile with the democratic vocabulary of decolonisation. The Hyderabad case therefore became an unusually sharp confrontation between **dynastic sovereignty and popular legitimacy**.

The difficulty for Hyderabad was not merely that opposition existed. Domestic opposition exists within virtually every political order and does not, by itself, extinguish sovereignty. The more profound difficulty was that the political legitimacy of the Nizam's government was contested simultaneously with the State's international claim to independence. The State Congress could therefore frame the question not as a dispute between two sovereign States but as a struggle for responsible government within Hyderabad, whereas Hyderabad's Government sought to characterise the matter as an external dispute between two distinct political entities.

This distinction bears directly upon the later invocation of self-determination. If Hyderabad were regarded as an international State, the Nizam's Government could invoke territorial integrity and non-intervention against India. If the population of Hyderabad were regarded as possessing an independent right to determine its constitutional status, the legitimacy of the Nizam's refusal to permit democratic determination would become a separate question. The two principles were therefore not necessarily mutually exclusive, but their application generated a profound conflict concerning the identity of the relevant bearer of sovereignty.

The Razakar movement further complicated this conflict by giving the Indian Government a security argument which could be presented as extending beyond the mere political integration of Hyderabad. India's position increasingly linked internal disorder, cross-border incidents, communal violence, and the alleged incapacity of the Hyderabad Government into a single narrative of deteriorating regional security. Contemporary scholarship, however, cautions against accepting this narrative without qualification and identifies significant disagreement concerning the scale, origin, and attribution of the violence.

As at the August 1948 freeze date, therefore, the internal crisis should be characterised as **contested factual and juridical terrain**. The State Congress represented a substantial challenge to the Nizam's political legitimacy; the Razakars represented an armed political force whose activities were invoked by India as evidence of instability and by Hyderabad as part of the broader political struggle; and allegations of cross-border violence remained disputed. None of these facts, standing alone, resolved Hyderabad's international status. Their cumulative significance lay in demonstrating that the external question of sovereignty could not be separated from an internal question concerning the legitimacy of the government purporting to exercise that sovereignty.

1.8 The Deterioration of India–Hyderabad Relations, 1947–48

The deterioration of relations between India and Hyderabad during 1947–48 transformed a constitutional disagreement over accession into a dispute possessing increasingly pronounced international-law dimensions. The immediate post-independence period was characterised by negotiation, reciprocal allegations of treaty violations, disputes concerning border security and economic relations, and increasingly explicit disagreement concerning Hyderabad's ultimate constitutional status. The failure of these processes of accommodation was not instantaneous; it was cumulative, and its juridical significance lies precisely in the progressive displacement of negotiation by coercive political pressure.

The Standstill Agreement was intended to preserve existing relations while providing a period within which the parties could negotiate a permanent settlement. Yet the Agreement did not resolve the underlying question of accession. India continued to regard accession as the necessary

basis for a durable constitutional relationship, whereas Hyderabad maintained its claim to independence. The resulting disagreement was therefore not merely over the implementation of an existing treaty but over the constitutional future of the State itself.

The Indian Government increasingly connected Hyderabad's refusal of accession with questions of territorial security and political integration. Contemporary Indian statements characterised the situation as involving border insecurity, alleged raids, internal disorder, and the activities of the Razakars. Nehru stated in May 1948 that India regarded the Razakar problem as one which could not be tolerated indefinitely and that continued insecurity along the frontier created circumstances requiring serious governmental action.

The significance of these statements lies in the gradual transformation of India's argument. The earlier dispute had centred upon the juridical possibility of Hyderabad remaining independent. By 1948, Indian policy increasingly presented the issue through the combined categories of **security, territorial contiguity, internal order, and political integration**. This did not itself establish a legal entitlement to coercion; rather, it supplied the factual and political premises upon which India would later seek to justify its conduct.

Hyderabad, conversely, increasingly internationalised the dispute. Its advisers included Walter Monckton and Hersch Lauterpacht, and, after India declined Hyderabad's request for arbitration, the Nizam's Government resolved to invoke the United Nations. On 21 August 1948, the Nizam communicated to the President of the Security Council requesting that the dispute be brought before the Council on the ground that the situation threatened the maintenance of international peace and security.

The timing is legally significant. **21 August 1948 is within the present freeze date**, and therefore the decision to internationalise the dispute must be treated as an operative fact available to delegates. Hyderabad's approach to the Security Council was not a retrospective attempt to legitimise an already completed military action; at the freeze date, no Indian military intervention had yet occurred. The legal controversy therefore remained one concerning threatened coercion, the status of Hyderabad, the interpretation of the Standstill Agreement, and the competence of international institutions to consider the dispute.

Hyderabad's memorandum to the Security Council alleged, among other matters, threatening statements by Indian political leaders, encouragement of border incidents, incursions into Hyderabad territory, and an economic blockade. It characterised these actions as implicating Article 2(4) of the Charter and sought international intervention before the situation escalated further. The legal character of these allegations remained contested, but their existence demonstrates that Hyderabad had by August 1948 framed the dispute explicitly in the vocabulary of international law.

The Indian response was fundamentally jurisdictional. India maintained that Hyderabad was not an independent State and therefore lacked competence to invoke the Security Council in its own right. The contemporary United Nations record records India's position that Hyderabad was not a State, had never been independent in the relevant international-law sense, and therefore could not invoke the Charter as an independent international complainant. The dispute thus became self-referential in an especially significant sense: **Hyderabad's capacity to invoke international law depended upon the very question of statehood which it sought the international community to determine.**

The United Kingdom occupied a particularly important position because its own constitutional conduct supplied evidence relevant to both sides. British paramountcy had unquestionably terminated, and Britain confirmed that its former powers had not passed to India or Pakistan. Yet the British position did not necessarily amount to diplomatic recognition of Hyderabad as a fully sovereign State. The distinction between acknowledging the termination of paramountcy and recognising the independent statehood of Hyderabad is therefore indispensable. The former did not logically entail the latter.

The United States likewise approached the matter cautiously. Contemporary diplomatic records indicate that American officials were reluctant to endorse Hyderabad's claim to international statehood and considered the practical prospect of Security Council action uncertain. A United States diplomatic record from October 1948 records a meeting with Lauterpacht and notes American reluctance to accept the proposition that Hyderabad was a State. Although this record post-dates the August freeze date and therefore cannot be treated as evidence available to delegates in August, it confirms retrospectively the difficulty Hyderabad encountered in converting its juridical argument into broad international acceptance.

The deterioration of relations therefore cannot be attributed exclusively to one juridical cause. India possessed legitimate security concerns concerning alleged cross-border violence and internal instability, but the legal significance of those concerns depended upon the rules governing intervention and the use of force. Hyderabad possessed a substantial claim to constitutional autonomy after the lapse of paramountcy, but the legitimacy of that claim was complicated by internal opposition and the absence of broad international recognition. The Standstill Agreement provided a legal framework for continued relations, but allegations of breach undermined its practical effectiveness. The State Congress and Razakar movements transformed the controversy into an internal political struggle as well as an interstate dispute.

The resulting situation was consequently one of **juridical pluralism rather than legal simplicity**. India invoked territorial integrity, security, political integration, and the internal character of the dispute. Hyderabad invoked independence, treaty rights, non-intervention, and the authority of the Charter. Britain supplied evidence concerning the termination of paramountcy without

conclusively resolving Hyderabad's statehood. Pakistan supported Hyderabad's internationalisation of the dispute, while the wider international community remained divided over the legal competence of the Security Council and the underlying status of Hyderabad.

The August 1948 position must therefore be understood as a moment of unresolved legal contingency. Hyderabad had not acceded to India or Pakistan; the Standstill Agreement remained the principal bilateral instrument; internal political conflict had intensified; allegations of cross-border violence and economic pressure remained disputed; and Hyderabad had formally sought recourse to the Security Council on 21 August. The decisive juridical question was consequently still open: whether Hyderabad's post-paramountcy status constituted genuine international independence, whether its constitutional future was subject to popular determination, and whether India's increasingly coercive posture could lawfully be reconciled with the principles of non-intervention and peaceful settlement.

The historical context thus culminates not in the commencement of Operation Polo, which lies **after** the August 1948 freeze date, but in the legal crisis immediately preceding it. The significance of this distinction is methodological as much as historical. A proper international-law analysis must judge the legality of contemplated conduct by reference to the legal circumstances existing at the relevant time, rather than retrospectively allowing subsequent events to determine the character of earlier conduct. As of August 1948, therefore, the dispute remained one in which sovereignty, popular legitimacy, treaty obligation, territorial integrity, and international peace and security were simultaneously asserted as competing juridical bases for action.

II. The Juridical Status of Hyderabad under International Law

2.1 The Legal Consequences of the Lapse of British Paramountcy

The legal consequence of the lapse of British paramountcy constitutes the threshold question upon which the subsequent controversy concerning Hyderabad's international status necessarily depends. The Indian Independence Act 1947 did not transfer British paramountcy to either of the newly constituted Dominions; rather, the constitutional relationship between the Crown and the Indian States was terminated. The juridical difficulty therefore lies not in establishing the disappearance of paramountcy, but in determining what legal position remained once the superior imperial relationship had ceased to operate.

The distinction is fundamental. The termination of a legal relationship does not, *ipso facto*, determine the juridical character of the entity formerly subject to that relationship. It may remove restrictions without creating new personality; alternatively, where the extinguished relationship had been the principal legal impediment to the exercise of pre-existing international capacities, its termination may disclose or restore an external competence previously constrained by

paramountcy. The Hyderabad question consequently cannot be resolved through the proposition that independence followed automatically from British withdrawal, any more than it can be resolved by the converse assertion that the princely States necessarily became incorporated into India.

Crawford's treatment of state creation is instructive precisely because it separates the factual effectiveness of an entity from the juridical conditions governing its emergence as a State. He expressly treats statehood as a question governed by international law rather than as an occurrence left wholly to political discretion, while recognising the persistent importance of effectiveness and independence. The Hyderabad controversy therefore requires an inquiry into whether the State possessed sufficient attributes of independence at the relevant date, rather than a conclusory inference from the political fact that British authority had withdrawn.

The classical declaratory approach to statehood would strengthen Hyderabad's argument insofar as it treats the existence of objective conditions as logically prior to recognition. On that account, the lapse of paramountcy removed the principal external limitation upon Hyderabad's governmental competence, leaving the existence of territory, population, government, and capacity for international relations to be assessed independently. The constitutive tradition, by contrast, would attach greater significance to the conduct of existing States and to the absence of recognition by the international community. The contemporary scholarship has increasingly rejected any simplistic opposition between these positions, emphasising that recognition may be neither wholly constitutive nor legally irrelevant.

Yet the strongest formulation of Hyderabad's position cannot rest upon recognition alone. Crawford's analysis expressly cautions against treating recognition as a discretionary political act capable of determining statehood without legal constraint. If statehood were reducible to the willingness of neighbouring States to recognise an entity, the legal status of territories and peoples would become contingent upon the political preferences of precisely those States whose interests might be affected by the emergence of a new State. That proposition is difficult to reconcile with the conception of international law as a normative system rather than merely an institutionalisation of political power.

Conversely, Hyderabad's claim encounters a substantial difficulty if the lapse of paramountcy is understood merely as the termination of British suzerainty without an accompanying juridical determination that Hyderabad had acquired the independence necessary for international personality. Crawford's distinction between effectiveness and independence is particularly significant here. The existence of governmental institutions and territorial administration establishes an important factual foundation, but it does not necessarily establish the legal independence of an entity whose external relations had historically been subjected to superior authority.

The more defensible legal conclusion is therefore intermediate. The lapse of paramountcy did not automatically settle Hyderabad's international status; it removed the British legal relationship that had previously constrained that status and thereby rendered the question of Hyderabad's independent personality an open juridical issue. The subsequent determination had to be made by reference to statehood, independence, recognition, effectiveness, self-determination, and the practice of other States. In this respect, 15 August 1947 should be regarded not as an automatic moment of definitive state creation, but as the critical juridical date from which the independent international status of Hyderabad became contestable.

The significance of this distinction becomes even greater under the August 1948 freeze date. By that point, Hyderabad had existed for approximately one year outside the former British paramountcy system, while simultaneously maintaining its own governmental institutions and refusing accession to either Dominion. The legal question was therefore no longer whether British paramountcy had ceased, but whether the post-paramountcy conduct of Hyderabad and other States was sufficient to sustain an international claim to sovereignty.

2.2 Sovereignty, Statehood, and International Legal Personality

The proposition that Hyderabad possessed “sovereignty” must be distinguished analytically from the proposition that Hyderabad constituted a “State”. Although the two concepts are frequently employed interchangeably in political discourse, international legal analysis requires their separation. Statehood concerns the juridical existence of an international person; sovereignty concerns the legal authority associated with that status. International legal personality, in turn, concerns the capacity of an entity to possess rights and obligations and to participate, within the limits recognised by international law, in international relations.

Crawford's methodology is particularly valuable because it resists beginning with the abstract assertion of sovereignty. His analysis asks whether the entity satisfies the legal conditions upon which the status of State is predicated. The criteria of statehood, although historically associated with effectiveness, cannot be reduced to factual control alone because international law itself determines whether effectiveness produces juridical consequences. This distinction is indispensable in Hyderabad's case, where the Nizam exercised extensive governmental authority but where the State's external independence had historically been qualified by British paramountcy.

The classical Montevideo formulation identifies a permanent population, defined territory, government, and capacity to enter into relations with other States. Its apparent simplicity, however, conceals a more difficult juridical inquiry. Crawford's treatment of the criteria demonstrates that effectiveness cannot be treated as an exhaustive explanation of statehood, particularly where international law places normative limits upon the creation or recognition of

States. Thus, the existence of Hyderabad's population, territory, and government is highly relevant but does not, by itself, resolve the question of international personality.

The territorial and governmental elements present comparatively little conceptual difficulty. Hyderabad possessed a defined territorial domain and a functioning governmental structure centred upon the Nizam. The more controversial element was independence: whether the State possessed an autonomous capacity to determine its external relations after the extinction of paramountcy. The capacity to enter into international relations is therefore not merely an empirical ability to communicate with foreign governments; it concerns the legal freedom to do so without being subordinated to another State.

This distinction places Hyderabad at the centre of a classical debate concerning dependent entities. If an entity possesses territory and government but remains legally subordinate to another State in its external relations, it may possess substantial international capacities without enjoying complete international personality. The termination of that subordination consequently becomes legally significant. Yet the termination itself does not necessarily establish that the entity has crossed the threshold into full statehood. Crawford's treatment of dependent States and devolution demonstrates the importance of examining the precise legal mechanism through which independence is acquired.

Lauterpacht's jurisprudence provides a different but complementary perspective. His approach to international personality was deeply connected with the institutional structure of the international legal order and with the legal consequences of recognition. He rejected an understanding of recognition as a purely political courtesy and regarded the recognition of States as possessing substantial juridical consequences. This does not mean that recognition necessarily creates statehood in every circumstance; rather, it demonstrates why the treatment of an entity by existing States cannot be excluded from the legal analysis.

The Hyderabad controversy accordingly exposes the limits of an exclusively factual conception of statehood. If sovereignty were simply a synonym for effective governmental control, Hyderabad's claim would be comparatively straightforward. Yet international law distinguishes between the possession of governmental authority and the independent legal capacity to exercise that authority externally. Crawford's formulation is especially relevant because he observes that statehood rules have an "open texture", thereby permitting political discretion to influence their application while nevertheless maintaining that the rules themselves remain juridical rules.

The converse proposition is equally problematic. To deny Hyderabad international personality solely because India did not recognise its independence would effectively convert recognition into an unlimited constitutive power. Such an approach would permit a potentially interested neighbouring State to determine unilaterally whether a contested entity could exist as a State. The

better view, consistent with Crawford's insistence that state creation is governed by international law, is that recognition is evidence of juridical status and may possess legal consequences, but cannot ordinarily substitute for the legal inquiry itself.

Accordingly, the juridical status of Hyderabad as of August 1948 should be formulated as a contested question of international personality rather than as an established proposition of either absolute sovereignty or complete domesticity. The State possessed substantial objective attributes associated with statehood; its historical dependence upon British paramountcy complicated the question of independence; and its refusal to accede to India or Pakistan preserved the controversy. The legal problem was therefore one of determining whether the post-imperial international order regarded Hyderabad as an independent State, a dependent entity whose status remained incomplete, or a territorial polity whose future was subject to settlement through the political transformation of the subcontinent.

2.3 The Nizam's Claim to External Sovereignty and Treaty-Making Capacity

The Nizam's claim to external sovereignty proceeded from the proposition that the termination of paramountcy liberated Hyderabad from the restrictions formerly imposed by the British Crown. Its legal significance must nevertheless be distinguished from the narrower proposition that the Nizam possessed treaty-making authority. A ruler may possess competence to conclude certain international instruments without thereby possessing unlimited sovereign authority; conversely, the existence of treaty relations may constitute evidence of international capacity without conclusively establishing full statehood.

The pre-1947 history of Hyderabad provides important evidence in this regard. Its relations with the British Crown were regulated through instruments possessing an unmistakably international character in form and substance, although their operation occurred within an imperial constitutional hierarchy. Such instruments demonstrate that Hyderabad was not simply administered as an ordinary province of British India. They do not, however, establish that the Nizam enjoyed unrestricted freedom of external action. The legal significance of these instruments must therefore be assessed in their historical constitutional context rather than retrospectively characterised according to contemporary assumptions concerning sovereign equality.

The central post-1947 question was whether the Nizam could independently conclude international agreements once paramountcy had terminated. Hyderabad's conclusion of the Standstill Agreement with India is particularly significant because the instrument necessarily presupposed a relationship between two governmental entities possessing sufficient legal capacity to enter into a binding arrangement concerning their mutual relations. It did not, however, amount to Indian recognition of Hyderabad as an independent sovereign State in the fullest sense.

The legal character of the Agreement must therefore be separated from the broader dispute over statehood.

This distinction illustrates a recurrent proposition in international legal scholarship: the capacity to conclude a particular treaty does not invariably establish unrestricted international personality. Treaties may be concluded by entities possessing limited international capacities, and the legal effect of a treaty must be determined according to its terms, context, and the status of the parties. Fitzmaurice's scholarship on treaty law is particularly relevant as a methodological authority here because it emphasises the juridical discipline of interpreting treaty relations through legal rules rather than through the political assumptions surrounding the parties. The question is not merely what an instrument appears politically to signify, but what legal relations it was intended and capable of creating.

The Standstill Agreement therefore presents an evidentiary paradox. Hyderabad could rely upon the existence of a formal international agreement with India as evidence that its governmental authority possessed external legal capacity. India, conversely, could argue that the Agreement was designed merely to preserve existing administrative arrangements during negotiations concerning Hyderabad's ultimate constitutional relationship with India. Neither proposition follows automatically from the existence of the Agreement. Its legal significance depends upon the precise obligations undertaken and upon the parties' contemporaneous understanding.

The controversy is further complicated by the fact that treaty-making capacity is not synonymous with sovereign equality. An entity may possess limited competence to conclude agreements while remaining dependent upon another State for defence, foreign affairs, or other matters. The legal inquiry must therefore distinguish *capacity* from *independence*. Crawford's work repeatedly emphasises this methodological separation in its examination of dependent entities and the conditions governing the creation of States.

The Nizam's argument nevertheless possessed considerable juridical force if the lapse of paramountcy is understood as having removed the external restrictions previously imposed by the Crown. On that hypothesis, Hyderabad did not need to "acquire" governmental competence from India; its existing governmental structure continued, while the superior authority constraining its external relations disappeared. The issue would then become whether the newly independent competence was legally sufficient to constitute independence.

India's contrary position depended upon a different conception of succession. If Hyderabad's prior relationship with the Crown was understood as evidence that the State lacked an independent international personality, then the lapse of paramountcy could not generate such personality merely through constitutional termination. Hyderabad would remain a territorial polity whose future had to be settled through accession or another constitutional arrangement. This argument

effectively treats statehood as requiring a positive legal transition rather than deriving automatically from the removal of dependency.

The doctrinal disagreement is therefore not merely over the Nizam's personal authority. It concerns the relationship between rulers, governmental institutions, and international personality. A ruler may exercise domestic authority without being the international legal sovereign of an independent State; equally, the absence of prior unrestricted external competence does not necessarily preclude the subsequent emergence of statehood. Crawford's discussion of the commencement of States expressly recognises that determining the precise temporal point at which an entity becomes a State may be difficult and that continuity, effectiveness, and the circumstances of transition may become decisive.

As of August 1948, therefore, the legally cautious conclusion is that the Nizam possessed substantial governmental and external treaty-making capacity, but that the existence and extent of his sovereign international authority remained contested. The Standstill Agreement materially strengthened the argument that Hyderabad was capable of entering legally significant external arrangements; it did not conclusively resolve whether Hyderabad was, in international law, an independent State.

2.4 Recognition and the Declaratory versus Constitutive Theories of Statehood

The recognition question occupies the doctrinal centre of the Hyderabad controversy because the State possessed many of the factual attributes ordinarily associated with statehood while lacking broad recognition as an independent State. The dispute therefore presents in unusually concentrated form the classical opposition between the declaratory and constitutive theories of recognition.

Under the declaratory conception, recognition does not create the State; it acknowledges a juridical condition that already exists where the relevant criteria of statehood have been satisfied. The proposition is associated with the intellectual tradition represented by the Montevideo Convention and developed through later scholarship. Its attraction lies in its capacity to preserve the objective character of statehood: if recognition were constitutive in an unlimited sense, the legal existence of a State could depend upon the unilateral political preferences of other States.

The constitutive theory proceeds from a different premise. Because international law is a legal order constituted through relations among States, an entity cannot necessarily become a full participant in that order merely through its unilateral assertion of independence. Recognition by existing States may therefore perform a constitutive function by conferring international personality or by completing the transformation of an entity from an internally organised polity into an international person.

Lauterpacht's contribution to the recognition debate occupies a particularly important position between these poles. He recognised that recognition has juridical consequences and that the international legal system cannot simply ignore the conduct of States in determining the status of contested entities. Yet his jurisprudence was also concerned with limiting arbitrary discretion and subordinating recognition to legal principle. The intellectual problem was therefore not whether recognition mattered, but how its legal significance could be reconciled with the objective requirements of statehood.

Modern scholarship has increasingly complicated the binary itself. Crawford's treatment demonstrates that recognition cannot be treated as either wholly irrelevant or wholly constitutive. He argues that the existence of international legal rules governing statehood is compatible with significant political discretion in their application. This approach is particularly applicable to Hyderabad, where the absence of recognition by India cannot simply determine the legal issue but where the conduct of other States remains highly relevant evidence concerning the international community's treatment of Hyderabad.

The distinction becomes sharper when recognition is separated into different legal functions. Recognition may acknowledge an already existing State; it may facilitate diplomatic relations; it may affect participation in international organisations; and in certain contested circumstances it may contribute to the consolidation of international personality. These functions should not be collapsed into a single proposition that recognition either “creates” or “does not create” a State.

The Hyderabad controversy demonstrates why the declaratory theory, if applied mechanically, is insufficient. Even if Hyderabad possessed territory, population, government, and a capacity for external relations, the international legal consequences of that position depended upon the conduct of existing States and international institutions. Crawford expressly notes that statehood questions before United Nations organs raise particular difficulties because participation in the Charter system itself is structured around the category of the “State”. Hyderabad's capacity to invoke international mechanisms therefore depended, in part, upon the very question it sought to establish: whether it possessed sufficient international personality to be treated as a State.

At the same time, a purely constitutive theory would produce an equally problematic result. India, as the State most directly affected by Hyderabad's independence, could not logically possess an unrestricted legal power to determine whether Hyderabad existed as an international person. Such a proposition would make the existence of international rights contingent upon the consent of an interested adversary and would undermine the normative autonomy of international law. Crawford's broader argument is precisely that the creation of States is governed by international law rather than being left entirely to the discretion of individual States.

The more sophisticated position is consequently one in which recognition operates within, rather than outside, a juridical framework. Objective conditions of statehood remain indispensable; recognition constitutes important evidence concerning whether those conditions are accepted and may generate distinct legal consequences; and the conduct of existing States cannot be disregarded where the entity's international status is contested. The resulting doctrine is neither purely declaratory nor purely constitutive.

Applied to Hyderabad as at August 1948, this synthesis produces an inherently contested but legally structured conclusion. Hyderabad could invoke its effective government, territorial administration, population, post-paramountcy autonomy, and external dealings as evidence supporting its claim to statehood. India could rely upon the absence of recognition, the historical restrictions associated with paramountcy, the political integration of the subcontinent, and the absence of broad international acceptance as evidence against the completeness of that claim. Neither evidentiary body, considered in isolation, is legally dispositive.

The deeper jurisprudential issue is therefore whether international law should treat statehood principally as an objective juridical status or as a status whose practical existence necessarily depends upon the community of States. The Hyderabad controversy strongly favours rejecting both extremes. The legal status of an entity cannot be manufactured by political recognition contrary to law, but neither can an entity's unilateral assertion of sovereignty compel the international legal order to treat it as a State without regard to the conduct of existing States and international institutions. Crawford's central insight remains pertinent: the rules of statehood are legal rules, but their application occurs within a field in which effectiveness, recognition, independence, and political practice intersect.

Accordingly, the Hyderabad claim should be characterised not as a simple instance of either successful or unsuccessful statehood, but as a paradigmatic contested-status problem. The juridical question confronting the international community in August 1948 was whether Hyderabad's post-paramountcy position had matured into independent international personality, and whether that personality could be denied through the political opposition of India without an antecedent determination under international law. The answer to that question necessarily leads into the further and more difficult issues of consent, accession, self-determination, territorial integrity, and non-intervention.

2.5 Accession, Territorial Sovereignty, and the Legal Significance of Consent

The question of accession lies at the intersection of sovereignty, territorial title, and the juridical autonomy of Hyderabad. It is therefore necessary to resist the tendency to treat accession as a mere political instrument through which the princely States were absorbed into either India or Pakistan. In legal terms, accession involved the transfer or allocation of specified governmental

competences through an instrument whose validity depended upon the authority of the entity purporting to conclude it. The decisive question in the Hyderabad controversy was accordingly whether accession to India constituted a legal necessity arising from the constitutional settlement of 1947, or whether it remained a matter requiring the consent of Hyderabad as an independent juridical entity.

The constitutional practice surrounding the other princely States provides an important point of comparison. The Instrument of Accession was designed to permit a ruler of an Indian State to accede to one of the Dominions in respect of specified subjects, principally defence, external affairs, and communications. The very existence of such an instrument is juridically significant. If the princely States had automatically become territories of India or Pakistan upon the lapse of British paramountcy, no separate act of accession would have been necessary. The fact that accession was effected through individual instruments instead indicates that the post-paramountcy constitutional order contemplated a legally significant act of consent.

This proposition, however, cannot be extended without qualification. The existence of a consensual mechanism for accession does not establish that every princely State possessed an unlimited right to become an independent State. The legal architecture of accession was itself situated within the exceptional circumstances of decolonisation and partition, and its operation was influenced by geographical, political, and strategic considerations. Crawford's treatment of state creation is particularly relevant because it distinguishes the existence of a legal mechanism through which territorial status may be altered from the broader question whether an entity possesses an independent international personality capable of choosing among all conceivable constitutional futures.

Hyderabad's refusal to execute an Instrument of Accession was consequently not, by itself, equivalent to a declaration of unlawful secession. Hyderabad argued that no accession was legally necessary because British paramountcy had expired and no successor Dominion had acquired title over the State. The United Kingdom's position before the Security Council materially supported the narrower premise underlying this argument: British suzerainty had terminated on 15 August 1947 and the powers formerly exercised by the Crown had not transferred to India or Pakistan.

India's response rested upon a different conception of territorial succession. It disputed the proposition that Hyderabad had ever possessed the international status necessary to make its refusal of accession legally dispositive. The Indian representative before the Security Council expressly maintained that Hyderabad was neither a State nor independent and that the lapse of British paramountcy did not confer upon it the status asserted by the Nizam. The controversy therefore turned upon a logically prior question: whether consent was required because Hyderabad possessed an international personality capable of withholding it.

This makes **consent** a central but not self-sufficient juridical principle. In the classical law of treaties, consent is fundamental to the creation of treaty obligations. In the law of territorial change, however, the legal significance of consent is more complicated because territorial sovereignty cannot be treated as a purely contractual interest between rulers. The emergence of popular sovereignty and self-determination increasingly subjected dynastic claims to territorial authority to an additional normative inquiry concerning the wishes of the population.

The Hyderabad case consequently exposes a tension between two forms of consent. The first was **dynastic or governmental consent**, represented by the Nizam and his government. The second was **popular consent**, which increasingly informed the legitimacy of territorial and constitutional arrangements after the Second World War. A legal argument based exclusively upon the Nizam's authority could therefore establish, at most, that the existing government had withheld accession; it could not conclusively establish that the population of Hyderabad was itself legally precluded from determining an alternative constitutional future.

This distinction became especially significant because Hyderabad repeatedly expressed willingness to submit the question of accession to a plebiscite under United Nations supervision. The contemporaneous United Nations record records Hyderabad's offer to hold such a plebiscite concerning accession to India in matters including defence, external affairs, and communications, provided that Indian troops were first withdrawn. The proposal is legally significant not because a plebiscite was already required as a universally applicable rule of international law in 1948, but because it demonstrated an attempt to reconcile Hyderabad's claim to territorial autonomy with the increasingly influential principle of popular determination.

The juridical difficulty is therefore one of **temporal doctrine**. The modern right of peoples to self-determination was not yet formulated in 1948 with the comprehensive normative content later associated with the United Nations Charter, the 1960 Declaration on the Granting of Independence to Colonial Countries and Peoples, and the subsequent jurisprudence of the International Court of Justice. It would therefore be historically inaccurate to import the fully developed contemporary doctrine into August 1948. Nevertheless, the principle that the wishes of populations possessed legal and political significance was already embedded in the post-war international order and was increasingly difficult to exclude from questions concerning the legitimacy of territorial arrangements.

The legal significance of accession must therefore be formulated cautiously. Hyderabad's refusal established that no consensual accession to India had occurred by August 1948. It did not, standing alone, establish an absolute right to independence. Conversely, India's inability to secure accession through consent did not itself establish Indian territorial sovereignty over Hyderabad. The unresolved legal space between these propositions constituted the central juridical problem.

2.6 Self-Determination and the Question of Popular Sovereignty

The question of self-determination introduces a normative dimension into the Hyderabad dispute which cannot be reduced either to the Nizam's claim of sovereignty or India's claim of territorial integration. The decisive inquiry becomes whether the population of Hyderabad possessed a legally cognisable entitlement to determine its constitutional and international status, and, if so, whether that entitlement could displace or qualify the authority exercised by the Nizam's Government.

In 1948, self-determination occupied an intermediate position within international law. It was undoubtedly an important principle of the emerging international order, but its precise legal content, beneficiaries, and territorial application remained unsettled. It would therefore be methodologically unsound to treat the later law of self-determination as though it were already fully crystallised at the time of the Hyderabad crisis. The legal analysis must instead distinguish the **normative emergence** of self-determination from its later consolidation as a more determinate legal principle.

This distinction is particularly important because the international law of 1948 still accommodated forms of government that were not based upon universal democratic participation. Statehood was not conditioned upon the existence of a democratic constitution, nor was every internally contested government thereby deprived of its international personality. The mere fact that political opposition existed within Hyderabad therefore could not automatically invalidate the State's claim to external sovereignty.

Yet the opposite proposition would be equally incomplete. The post-war international legal order had increasingly rejected the idea that populations were merely objects of territorial sovereignty. The principle of self-determination was developing through the Charter framework, anti-colonial practice, and broader international discourse. The question was consequently not whether popular sovereignty had already displaced all traditional forms of governmental authority, but whether the legitimacy of the Nizam's international claim could be assessed without reference to the political will of Hyderabad's inhabitants.

The modern scholarship concerning the princely States illuminates precisely this transformation. The historical analysis of their international status observes that the earlier conception of the ruler as the absolute sovereign became increasingly politically untenable by 1947. The emergence of democratic legitimacy altered the terms in which international status itself was discussed: statehood could no longer be considered solely through the authority of the ruler without confronting the political status of the population.

This development placed Lauterpacht's argument concerning Hyderabad in a particularly revealing position. His central legal proposition was that Hyderabad possessed the attributes of a

State, including an independent government conducting ordinary governmental functions over defined territory. Yet the historical scholarship concerning his position recognises that the more difficult question was whether such a government could sustain its international claim against the wishes of its population. The distinction is profound: **statehood and democratic legitimacy are related but analytically distinct questions.**

A State does not ordinarily cease to exist merely because its government becomes unpopular. Nor does internal political opposition automatically authorise a neighbouring State to determine the State's constitutional order. The principle of self-determination therefore cannot simply be transformed into a general licence for external intervention whenever a government lacks democratic legitimacy. Such an interpretation would collapse the distinction between the internal political organisation of a State and the external principle of non-intervention.

At the same time, where the very question before the international community concerns the constitutional destiny of a territory whose population is divided concerning its political future, popular participation may become central to the legitimacy of the proposed settlement. Hyderabad's offer of a plebiscite was therefore juridically significant even if the law of 1948 did not impose an unconditional obligation to conduct one. It supplied a mechanism through which the competing claims of dynastic sovereignty, territorial integrity, and popular will might have been reconciled.

The difficulty lay in determining the relevant political unit. India could contend that Hyderabad formed an integral part of the geographical and political structure of India and that the population's wishes had to be considered within the broader process of Indian independence and democratic consolidation. Hyderabad could contend that the population of the State constituted a distinct political community entitled to determine whether the State should accede to India or remain independent. The disagreement therefore concerned not merely the content of self-determination but the **identity of the people entitled to exercise it.**

This is a recurring problem in the law of self-determination. The principle becomes legally indeterminate unless the relevant "people" can be identified. A territorial population may possess a claim to internal political participation without possessing an automatic entitlement to external independence. Conversely, where an established territorial unit seeks to determine its international status following decolonisation, the argument for external self-determination may become stronger. Hyderabad occupied an ambiguous position between these categories.

The situation was further complicated by communal and political divisions within the State. Any plebiscite would have required conditions capable of ensuring that the result reflected genuine popular preference rather than coercion by the Nizam's Government, the Razakars, the

Hyderabad State Congress, or external forces. Hyderabad's insistence upon United Nations supervision was therefore legally significant as an attempt to secure procedural impartiality.

Nevertheless, as of August 1948, it would be anachronistic to describe self-determination as having already created an unequivocal legal right of Hyderabad to independence. The more defensible conclusion is that self-determination constituted a **material normative consideration** bearing upon the legitimacy of any final settlement. It complicated the Nizam's claim to represent the entire constitutional will of Hyderabad while simultaneously limiting India's ability to treat territorial integration as sufficient in itself.

The resulting jurisprudential tension is precisely what distinguishes the Hyderabad question from an ordinary dispute concerning territorial title. It concerned simultaneously the **international personality of the State**, the **authority of the government**, and the **political status of the population**. The international-law problem was therefore not exhausted by asking whether Hyderabad was sovereign. It required asking whether sovereignty could legitimately be exercised without popular determination and whether popular determination could lawfully be imposed through external coercion.

2.7 Territorial Integrity and the Principle of Non-Intervention

The principle of territorial integrity furnished India with one of the most powerful juridical arguments against the externalisation of the Hyderabad dispute. Yet its application in 1948 requires considerable doctrinal caution. Territorial integrity protects the territorial domain of a State against certain forms of external interference; it does not necessarily determine the antecedent question of whether the territory in question belongs to that State in the first place. Hyderabad's legal position therefore created a threshold difficulty for India's reliance upon territorial integrity: the principle could not simply establish the title whose existence was itself disputed.

The Charter's prohibition of force in Article 2(4) refers expressly to conduct directed against the territorial integrity or political independence of a State. The legal significance of this formulation is inseparable from the status of the entity concerned. If Hyderabad were an independent State, India's use of force would engage the ordinary inter-State prohibition. If Hyderabad were merely an internal component of India, the same conduct would fall into a substantially different juridical category. The dispute over statehood was consequently not peripheral to the use-of-force question; it was logically prior to it.

The principle of non-intervention presents a related but distinct inquiry. Intervention concerns interference in matters within the domestic competence of another State, particularly where coercion is employed to determine the political choices of that State. The classical jurisprudence

concerning non-intervention, including the later reasoning of the International Court of Justice in *Military and Paramilitary Activities in and against Nicaragua*, identifies coercion as central to the concept. That jurisprudence post-dates Hyderabad and therefore cannot be treated as law that delegates in August 1948 could simply cite as binding authority. It is nevertheless valuable as a later judicial articulation of a principle whose roots predate the Hyderabad crisis.

The chronological distinction is essential. The 1948 Charter already contained Article 2(7), which declared that the United Nations was not authorised to intervene in matters essentially within the domestic jurisdiction of any State, subject to the Chapter VII qualification. The provision therefore reflected the continuing importance of domestic jurisdiction while simultaneously recognising that domestic character did not necessarily exclude international concern where the Charter's peace-and-security machinery was engaged.

India could accordingly characterise Hyderabad as an internal constitutional question and maintain that external intervention would improperly intrude upon India's domestic jurisdiction. Hyderabad's response was conceptually straightforward: characterising the dispute as domestic presupposed that Hyderabad was already part of India, which was precisely the proposition under dispute. The Hyderabad representative expressly argued before the Security Council that treating the matter as exclusively domestic would effectively presuppose Indian annexation.

This reasoning reveals an important circularity. If India's title over Hyderabad had already been legally established, then intervention in Hyderabad's internal political affairs could indeed be analysed differently. But if Hyderabad remained a separate State whose accession had not occurred, India could not establish its territorial title merely by invoking domestic jurisdiction. The jurisdictional argument consequently depended upon the prior resolution of the territorial-status question.

The principle of territorial integrity itself must likewise be distinguished from **territorial contiguity**. India possessed an exceptionally strong geographical argument: Hyderabad was surrounded by Indian territory and was deeply integrated economically and geographically with the subcontinent. Yet international law does not ordinarily transform geographical contiguity into automatic territorial title. Nor does strategic inconvenience, however substantial, by itself extinguish the legal personality of an adjacent State. The legal relevance of contiguity therefore lies primarily in the political and practical context, not in the creation of sovereignty *ipso facto*.

The competing arguments thus reflect two different conceptions of territorial order. India approached territorial integrity from the standpoint of the emerging Indian State and its inherited territorial framework. Hyderabad approached it from the standpoint of an existing territorial polity whose boundaries had not, in its view, been legally transferred to India. Each position was internally coherent if its premise concerning statehood was accepted.

Non-intervention further complicated the situation because Hyderabad's internal crisis provided India with an argument based upon necessity and security. If the Razakar movement generated cross-border attacks, India could contend that the issue had ceased to be purely domestic. Yet the existence of cross-border insecurity did not automatically extinguish the territorial sovereignty of Hyderabad. It instead raised separate questions concerning attribution, self-defence, necessity, and the permissible responses of a neighbouring State.

The legal literature therefore cautions against conflating **domestic disorder with absence of sovereignty**. A government may be weak, contested, or unable to suppress armed groups without thereby losing its status as a State. Conversely, the existence of an effective government is not an absolute shield against all international consequences arising from its conduct. The relevant legal obligation must first be identified; only then can responsibility or intervention be assessed.

The Hyderabad question consequently demonstrates why territorial integrity and non-intervention cannot be examined in isolation from statehood. Territorial integrity protects a legally recognised territorial order; it does not itself create one. Non-intervention protects the autonomy of States; it does not prevent international law from addressing disputes whose international character is established independently. The crucial legal task as of August 1948 was therefore to determine whether Hyderabad remained sufficiently autonomous that India's conduct had to be evaluated as external intervention, or whether the constitutional integration claimed by India had already occurred by operation of law.

2.8 The Competing Juridical Claims of Hyderabad and India

The legal controversy between Hyderabad and India may ultimately be understood as a conflict between two competing juridical constructions of the post-imperial order. Hyderabad's case rested upon continuity: continuity of territory, government, governmental identity, and, according to its argument, international personality following the termination of British paramountcy. India's case rested upon a different conception of succession and integration: Hyderabad had never possessed independent international personality, and the lapse of British paramountcy therefore did not generate a sovereign State capable of withholding accession from India.

Neither claim can be evaluated adequately through political rhetoric alone. Each rests upon a distinct theory of the relationship between imperial dependency, statehood, recognition, popular sovereignty, and territorial integrity. The controversy therefore represents an unusually concentrated example of the methodological problems that arise when the law of statehood encounters the dissolution of an imperial constitutional system.

Hyderabad's strongest juridical argument derived from the termination of paramountcy. The British Government expressly confirmed that the Crown's suzerainty ended on 15 August 1947 and

that its powers were not transferred to India or Pakistan. Hyderabad could consequently argue that the legal basis upon which its external relations had been restricted had disappeared and that the resulting position had to be assessed independently under international law.

Its second principal argument derived from effectiveness. Hyderabad possessed a defined territory, permanent population, functioning government, and substantial administrative capacity. Lauterpacht's argument for Hyderabad's statehood was framed around precisely this proposition: Hyderabad possessed an independent government conducting normal governmental activities within a defined territory. The argument therefore corresponded closely to the objective conception of statehood associated with the declaratory tradition.

Its third argument concerned consent. Hyderabad had not executed an Instrument of Accession to India. The Standstill Agreement, rather than constituting accession, preserved relations temporarily. Hyderabad could therefore contend that India's assumption of sovereign authority over the State lacked the consensual legal basis ordinarily required for the transfer of territorial sovereignty.

Its fourth argument concerned international adjudication and peaceful settlement. Hyderabad approached the Security Council on 21 August 1948 and sought international consideration of the dispute before military intervention occurred. The contemporaneous United Nations record confirms both the communication and Hyderabad's reliance upon international mechanisms. This was significant because it demonstrated that Hyderabad did not regard the dispute as merely a domestic constitutional disagreement but as a matter capable of engaging the international legal order.

India's strongest juridical argument, by contrast, was that Hyderabad had never possessed the status of an independent State. The Indian representative expressly maintained before the Security Council that Hyderabad was not competent to invoke the Council because it was neither a State nor independent and had never possessed such independence historically. On this conception, the lapse of paramountcy merely terminated British suzerainty; it did not create an independent international person where none had previously existed.

India's second argument concerned the political and constitutional transformation of the subcontinent. The princely States existed within a broader process of decolonisation in which the establishment of India as an independent State necessarily involved the consolidation of its territorial and constitutional order. Hyderabad's claim to independent international status could therefore be characterised as an attempt to convert the termination of imperial authority into a right of indefinite political fragmentation.

India's third argument concerned internal legitimacy. The Hyderabad State Congress and other political movements challenged the Nizam's political authority, while the Razakars generated serious allegations of violence and insecurity. India could consequently maintain that the Nizam's Government did not represent an uncontested popular will and that the constitutional future of Hyderabad could not be determined solely through the ruler's refusal of accession.

India's fourth argument concerned territorial security. The Government alleged that armed activity associated with the Razakars, border incidents, and other developments created an intolerable security environment. Contemporary Indian statements expressly connected the Razakar question with frontier insecurity and alleged breaches of the Standstill Agreement. The juridical difficulty, however, was that security concerns did not themselves resolve the antecedent question of sovereignty or create an unlimited authority to intervene.

The competing positions can therefore be represented through four principal juridical propositions:

Hyderabad	India
Paramountcy terminated without transferring sovereignty to India or Pakistan.	Termination of paramountcy did not create an independent Hyderabad.
Hyderabad possessed the objective characteristics of statehood.	The characteristics of internal government did not establish prior international independence.
Accession required Hyderabad's consent.	Hyderabad had no independent international title capable of withholding accession from India.
The Standstill Agreement preserved a treaty relationship pending settlement.	The Agreement was transitional and did not validate a claim to unrestricted sovereignty.

Popular determination could be secured through an internationally supervised plebiscite.

Hyderabad's internal political crisis and geographical integration made the question inseparable from India's constitutional order.

India's coercive conduct implicated non-intervention and the prohibition of force if Hyderabad were a State.

India's actions concerned an internal constitutional and security problem if Hyderabad was not a separate State.

The central juridical difficulty is therefore circular but not insoluble. Hyderabad's entitlement to invoke the prohibition of force depended upon its being a State; India's characterisation of the dispute as domestic depended upon Hyderabad not being a State. The determination of the use-of-force question consequently required an antecedent determination of international status. This is precisely why statehood constituted the foundational issue of the dispute rather than a subsidiary question.

The scholarship surrounding Lauterpacht is particularly revealing on this point. His legal reasoning supported Hyderabad's statehood claim, yet the subsequent historical analysis observes that the political environment rendered the legal argument increasingly difficult to sustain. The transformation from imperial sovereignty towards democratic legitimacy meant that the international legal status of a princely State could no longer be analysed entirely through the authority of its ruler. Lauterpacht himself reportedly recognised the extent to which political disposition within the Security Council could influence the treatment of Hyderabad's statehood claim.

This does not demonstrate that law was irrelevant. Rather, it illustrates Crawford's broader insight that the rules governing statehood possess legal content while their application may occur within a field of political discretion. The Hyderabad dispute therefore cannot be reduced either to a triumph of law over politics or to the proposition that politics simply displaced law. The more accurate conclusion is that the legal categories themselves were contested and that the political preferences of States influenced which juridical construction would prevail.

As of the August 1948 freeze date, the most defensible scholarly characterisation is therefore one of **contested international status**. Hyderabad had a substantial legal argument for continued autonomy based upon the lapse of paramountcy, effective governmental authority, absence of accession, and its capacity to conclude international arrangements. India possessed a substantial counterargument based upon the historical limitations upon Hyderabad's external sovereignty, the

absence of broad recognition, the constitutional integration of the subcontinent, and the contested legitimacy of the Nizam's government.

The question cannot be answered simply by asking whether Hyderabad was “sovereign” or whether India possessed a “right” to integrate the State. The more precise inquiry is whether the international legal order, as it stood in August 1948, regarded the dissolution of British paramountcy as sufficient to produce an independent State where the former imperial relationship had previously constrained external sovereignty. Upon that question depends the subsequent application of the Charter's rules concerning force, intervention, peaceful settlement, and international peace and security.

The juridical dispute thus culminates in a proposition of methodological importance: **Hyderabad's status was the antecedent question upon which the legality of India's subsequent conduct necessarily depended.** If Hyderabad was an independent State, its territorial integrity and political independence possessed international legal protection. If it was not, India's conduct would have to be assessed primarily through the constitutional and domestic framework of the Indian Union. Between these propositions lay the unresolved legal question which, by August 1948, had not been authoritatively determined.

The next stage of the inquiry must consequently move from the law of status to the **law governing coercion itself**: whether, assuming Hyderabad possessed international personality, the threatened or actual use of Indian force could be reconciled with Article 2(4), whether internal disorder could justify external intervention, whether necessity or proportionality could furnish a legal defence, and whether the absence of prior Security Council authorisation affected the legality of the contemplated action. Those questions constitute the juridical core of Operation Polo.

III. The Use of Force and the Legality of Operation Polo

3.1 Article 2(4) of the UN Charter and the Prohibition of Force

The legality of Operation Polo, viewed through the international law applicable as of August 1948, must begin with Article 2(4) of the Charter of the United Nations. The provision constitutes the foundational normative constraint upon the unilateral resort to armed force in the post-war international legal order, requiring Members to refrain from the threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the purposes of the United Nations. The breadth of the formulation is significant. It does not confine the prohibition to formally declared wars, nor does it condition the prohibition upon the existence of a prior state of hostilities. It instead establishes a general obligation governing the resort to coercive military power.

The application of Article 2(4) to Hyderabad, however, presents a threshold difficulty which distinguishes the case from an ordinary inter-State dispute. The provision protects the territorial integrity and political independence of a “State”. Consequently, before determining whether India's military action constituted an unlawful use of force, it is necessary to determine whether Hyderabad possessed the international legal status of a State. This is not a merely formal preliminary question. It determines the juridical category within which India's conduct must be placed.

If Hyderabad constituted an independent State, the deployment of Indian armed forces into its territory would fall *prima facie* within the ordinary field of Article 2(4). The burden would then shift to the identification of a recognised exception or justification, principally self-defence under Article 51 or enforcement action undertaken pursuant to the Charter's collective-security system. If Hyderabad did not constitute a State, the Article 2(4) analysis would become materially different because the prohibition would not operate simply through the protection of Hyderabad's territorial integrity as an independent international person.

The textual structure of Article 2(4) nevertheless militates against treating the word “force” as a purely political concept. The provision was deliberately formulated against the background of the League Covenant's limitations upon war and the experience of the Second World War. The Charter sought to move beyond a legal order in which war remained a general instrument of national policy. The prohibition was therefore intended to place unilateral coercion within a juridical framework of exceptional legality.

The travaux préparatoires and subsequent doctrinal development demonstrate that the principal controversy concerning Article 2(4) was not whether force was regulated, but how extensively the prohibition should be interpreted. A restrictive interpretation might confine the provision principally to force threatening territorial integrity or political independence, while a broader interpretation would treat it as prohibiting virtually every unilateral military coercion inconsistent with the purposes of the Charter. The latter approach subsequently became dominant in much of the scholarship and international practice.

The Nicaragua judgment of the International Court of Justice, although decided decades after Operation Polo and therefore unavailable as a contemporaneous authority in August 1948, provides an important retrospective confirmation of the broad conception of force. The Court distinguished the “most grave forms” of the use of force from less severe forms of coercion and treated the prohibition on the use of force as a principle of customary international law independent of the Charter. That later jurisprudence cannot simply be projected backward as though the precise doctrinal formulation already existed in 1948; nevertheless, it illuminates the normative trajectory of the rule.

The more difficult question concerns whether the prohibition had already acquired customary status by 1948. The better view is that the Charter itself supplied the applicable treaty obligation for India, which became a UN Member on 30 October 1945. The customary-law question therefore becomes particularly relevant not to the existence of an obligation under the Charter, but to the broader legal status of the prohibition and its application to non-Charter situations. The Charter prohibition was thus already operative as a matter of treaty law by the date relevant to Operation Polo.

India's possible responses must consequently be assessed against the recognised exceptions to the prohibition. The first is collective action authorised by the Security Council under Chapter VII. The second is individual or collective self-defence under Article 51 in response to an armed attack. Other asserted doctrines, such as necessity or humanitarian intervention, require substantially more cautious treatment because their legal status in 1948 was uncertain and, in some formulations, highly controversial.

India could not therefore transform a political dispute over Hyderabad's constitutional status into lawful military action merely by characterising Hyderabad as territorially or politically subordinate to India. If Hyderabad possessed independent international personality, the ordinary prohibition applied unless India established a legally recognised exception. The question of sovereignty consequently remained intertwined with, but analytically distinct from, the question of force.

The legal significance of the freeze date is again decisive. As of August 1948, Hyderabad had already approached the Security Council alleging threats to peace and security. The international legal system was therefore not confronted with a purely hypothetical dispute detached from international institutions. Hyderabad had expressly invoked the Charter framework before the contemplated military action. This fact materially strengthens the argument that unilateral resort to force required particularly careful examination within the Charter system.

The central proposition may therefore be stated with precision: **if Hyderabad possessed international legal personality as a State in August 1948, Operation Polo presumptively engaged the prohibition contained in Article 2(4), subject only to a legally cognisable exception or justification.** The determination of that proposition requires the subsequent analysis of India's asserted grounds for military action, the status of the Razakar violence, the doctrine of self-defence, the domestic-jurisdiction argument, and the relationship between necessity and proportionality.

3.2 The Characterisation of Operation Polo under International Law

The legal characterisation of Operation Polo cannot properly be determined by the terminology employed by the parties. The Indian Government described the action as a “police action”, a formulation intended to distinguish it from an interstate war and to emphasise India's understanding that Hyderabad constituted an internal component of the Indian political order. The terminology is juridically significant as evidence of India's legal position, but it cannot itself determine the applicable rules of international law.

International legal characterisation depends upon substance rather than nomenclature. The decisive inquiry concerns the nature of the conduct undertaken, the identity and status of the parties, the objective of the military action, and the legal relationship between the territory into which force is introduced and the State employing that force. If Indian armed forces crossed into territory possessing the international status of another State and engaged in sustained military operations against its governmental forces, describing the operation as a “police action” would not, without more, remove the conduct from the prohibition on force.

The distinction between a police action and an international armed conflict is particularly important. Domestic police operations ordinarily occur within the territorial jurisdiction of a State and are governed principally by domestic law, subject to applicable international obligations. Military operations conducted by one State against another State's armed forces, by contrast, implicate the international law governing the use of force and, where the requisite conditions are satisfied, the law of armed conflict.

The classification therefore depends upon the antecedent status of Hyderabad. If Hyderabad was an independent State, the conflict between Indian and Hyderabad forces would possess an international character notwithstanding India's domestic characterisation of the action. If Hyderabad was already legally part of India, the operation would instead constitute an internal enforcement operation. The nomenclature of “police action” thus functions as a consequence of India's constitutional theory rather than as an independent legal determinant.

The issue is complicated by the fact that the Indian Government's legal position was not simply that Hyderabad was a foreign State against which India had commenced war. India expressly rejected that premise. Its argument was that Hyderabad had never become an independent State and that India's action constituted the restoration of constitutional order within its own territorial domain. This distinction is central because a State cannot ordinarily “invade” its own territory in the international-law sense. The legality of the action would instead depend upon domestic constitutional authority, internal conflict rules, and any international obligations applicable to the situation.

Hyderabad's position was precisely the converse. It maintained that it was an independent State and that Indian military action therefore constituted an external use of force against its territorial

integrity and political independence. The Nizam's Government had already sought Security Council consideration of the dispute on 21 August 1948, expressly placing the matter within the international peace-and-security framework. The legal characterisation of the subsequent military action therefore depended upon whether the international community accepted Hyderabad's premise concerning statehood.

The controversy illustrates a broader principle in international adjudication: **legal characterisation is not determined by unilateral assertion**. A State cannot avoid an international obligation merely by describing conduct in domestic or political terminology if the objective legal circumstances establish that the conduct falls within the relevant international rule. Conversely, an entity cannot create an international armed conflict merely by declaring itself a State where the international legal conditions of statehood have not been established.

The distinction between the *fact* of military force and the *legal character* of that force must therefore be maintained. The fact that Indian armed forces participated in a military operation is not itself sufficient to establish an internationally wrongful act. The juridical consequences depend upon the status of Hyderabad and the legal basis asserted by India. The classification of Operation Polo consequently forms part of the substantive legal inquiry rather than a preliminary matter resolved by terminology.

The later law of international armed conflict reinforces this approach. Common Article 2 of the Geneva Conventions of 1949, adopted after the relevant August 1948 freeze date, would subsequently make the international character of an armed conflict turn upon the existence of an armed conflict between High Contracting Parties, irrespective of whether a state of war was formally recognised. Because the Convention post-dates the freeze date, however, it cannot be treated as the governing treaty law of August 1948. It nevertheless provides useful evidence of the subsequent consolidation of a principle that substance, rather than declarations of war, determines legal classification.

The same caution applies to the later jurisprudence of the International Court of Justice. The Court's decisions concerning the use of force, attribution, and armed conflict provide a mature doctrinal framework, but they cannot simply be cited as if they constituted the law known to the parties in 1948. A historically rigorous analysis must distinguish **contemporaneous applicable law** from **later jurisprudential clarification**.

Accordingly, the legal characterisation of Operation Polo depends upon a chain of antecedent propositions: whether Hyderabad possessed international legal personality; whether India had acquired valid territorial title; whether the use of military force was directed against an independent State or against territory India was entitled to regard as its own; and whether any

independent legal justification existed for the action. The phrase “police action” cannot answer these questions.

3.3 India's Asserted Grounds for the Use of Military Force

India's justification for military action against Hyderabad must be reconstructed from the legal and political arguments advanced before the operation rather than inferred retrospectively from its outcome. As of August 1948, India had not yet publicly presented a completed military intervention as an accomplished legal fact. Its position rested instead upon an accumulation of arguments concerning constitutional integration, security, treaty violations, internal disorder, and the alleged inability or unwillingness of the Hyderabad Government to control armed groups operating from its territory.

The first and most fundamental Indian argument was that Hyderabad did not possess independent international sovereignty. This proposition transformed the entire legal structure of the dispute. If Hyderabad was legally part of India, Indian military action could be characterised not as an interstate use of force but as the enforcement of constitutional authority within Indian territory. The Indian representative before the Security Council maintained precisely this position, asserting that Hyderabad was neither a State nor independent. (cdn.un.org)

The strength of this argument depended upon the validity of India's underlying territorial claim. It could not be established merely by asserting that Hyderabad formed an integral part of India. The legal question remained whether the termination of British paramountcy transferred or otherwise vested sovereignty in India. The British Government's contrary statement that paramountcy had terminated without its powers passing to either Dominion weakened any argument based upon straightforward succession to British authority. (cdn.un.org)

The second Indian argument concerned the Standstill Agreement. India alleged that Hyderabad had violated its obligations under the Agreement and that these violations demonstrated the inability of the existing relationship to maintain security. Nehru's May 1948 statement referred specifically to alleged breaches concerning financial dealings with Pakistan, currency arrangements, military forces, and the Razakar organisation. (nehruarchive.in)

From the standpoint of treaty law, however, a breach of treaty obligations does not automatically generate a general right to employ military force. Even a material breach ordinarily engages the legal consequences specifically attached to treaty law and does not create an unrestricted licence for armed enforcement. The distinction is fundamental because India's argument could not simply move from “Hyderabad has breached the Standstill Agreement” to “India is therefore entitled to occupy Hyderabad.” The intermediate legal steps require independent justification.

The third Indian argument concerned internal disorder. India relied heavily upon the activities of the Razakars and upon allegations of violence, intimidation, and cross-border incursions. Contemporary Indian statements described the organisation as a private army and portrayed its activities as constituting an increasingly serious threat to Indian security. (nehuarchive.in)

The juridical difficulty is that internal disorder does not ordinarily create an automatic right of unilateral intervention. The international law of non-intervention distinguishes between a State's legitimate concern regarding developments in a neighbouring State and a legal entitlement to employ coercive force to alter those developments. The latter requires an independent legal basis.

The fourth argument concerned border security. India alleged that violence and armed activity originating from Hyderabad affected Indian territory and threatened public security. If Hyderabad had itself launched an armed attack against India, the legal analysis could potentially engage the doctrine of self-defence under Article 51. Yet the existence of border incidents or cross-border violence does not automatically satisfy the legal threshold of an "armed attack". The later jurisprudence of the International Court of Justice makes this distinction explicit, although again that jurisprudence post-dates the freeze date and should be employed only as subsequent doctrinal clarification rather than contemporaneous authority.

India could therefore have sought to formulate its position in one of two ways. It could argue that Hyderabad's conduct constituted an armed attack or sufficiently serious external aggression to trigger a right of self-defence. Alternatively, it could argue that no international self-defence doctrine was required because Hyderabad was not a separate State and the operation was an internal enforcement measure. These arguments are conceptually distinct and should not be conflated.

The fifth argument concerned the political and constitutional integrity of India. Hyderabad's location within the geographical centre of the Indian Union and its economic and communications dependence upon surrounding Indian territory made its continued independence, in India's view, practically incompatible with the consolidation of the new State. Such considerations were undoubtedly politically significant. Their legal significance, however, was more limited. Strategic necessity or geographical inconvenience does not itself create territorial title under international law.

This distinction is central to the critique of any retrospective justification of Operation Polo. A State's assessment that an independent neighbouring entity is strategically intolerable does not, by itself, constitute a legal ground for annexation or military intervention. The prohibition on the acquisition of territory by force would be rendered largely meaningless if political necessity could be equated with legal entitlement.

The sixth argument concerned the alleged failure of Hyderabad to maintain effective order. India could contend that the Nizam's Government had become incapable of exercising effective authority and that this incapacity created a security vacuum requiring Indian intervention. Yet international law does not generally recognise a neighbouring State's unilateral right to assume sovereignty over territory merely because the territorial government is weak or internally divided. Otherwise, governmental incapacity would become a standing justification for external intervention.

India's asserted grounds must therefore be divided into **status-based, treaty-based, security-based, and constitutional** arguments. The status argument maintained that Hyderabad was not a State. The treaty argument relied upon alleged violations of the Standstill Agreement. The security argument invoked Razakar violence and border insecurity. The constitutional argument rested upon India's conception of Hyderabad as part of the Indian political order. None of these arguments, taken in isolation, necessarily supplied a conventional international-law exception to Article 2(4) if Hyderabad were established to be an independent State.

The legal significance of this distinction becomes particularly apparent in relation to necessity. Necessity may, under the modern law of State responsibility, preclude wrongfulness only under strictly defined conditions; it cannot simply be invoked whenever a State considers another territorial arrangement indispensable to its political or security interests. The International Law Commission's later formulation in Article 25 of the Articles on State Responsibility post-dates Operation Polo and therefore cannot be treated as the governing law of 1948, but it reflects a restrictive conception of necessity consistent with the broader principle that exceptional circumstances cannot become an unrestricted licence for unilateral coercion.

India's arguments therefore possessed different levels of juridical strength. The assertion that Hyderabad was not an independent State went directly to the applicability of Article 2(4). The alleged treaty breaches established, at most, a dispute concerning the Standstill Agreement and did not automatically authorise force. The Razakar allegations raised genuine questions of security and attribution but did not automatically create a right of intervention. Geographical and political integration provided substantial context but did not itself constitute a legal title to sovereignty.

The appropriate scholarly conclusion is consequently not that India possessed no legal arguments, but that its arguments operated at **different juridical levels and could not simply be aggregated into an unrestricted right of military action**. The crucial question remained whether the foundational proposition of Indian sovereignty over Hyderabad was itself legally established. If it was not, then the use of force required a separate justification under the international law governing inter-State coercion.

3.4 Domestic Jurisdiction, Internal Disorder, and International Intervention

The invocation of domestic jurisdiction constituted one of the most consequential dimensions of the Hyderabad dispute because it offered India a means of removing the controversy from the ordinary framework of inter-State relations. If Hyderabad's political status were an internal matter of India, then international scrutiny of the dispute could be characterised as impermissible interference in India's domestic affairs. Hyderabad, however, maintained that such reasoning merely presupposed the conclusion that India sought to establish: that Hyderabad was already part of India.

Article 2(7) of the Charter provides that nothing in the Charter authorises the United Nations to intervene in matters essentially within the domestic jurisdiction of any State, while expressly preserving the application of Chapter VII enforcement measures. The provision therefore establishes a principle of institutional restraint rather than an absolute rule that domestic matters can never possess international consequences. Its operation depends upon the prior identification of the State whose domestic jurisdiction is being invoked.

This makes the Hyderabad question particularly intricate. India could invoke Article 2(7) only by characterising Hyderabad as territory falling within India's domestic jurisdiction. Hyderabad could respond that it was precisely the disputed status of the territory which prevented India from unilaterally classifying the dispute as domestic. The question of domestic jurisdiction therefore became inseparable from the question of international status.

The Charter's domestic-jurisdiction clause must also be distinguished from the customary principle of non-intervention. The former primarily concerns the competence of the United Nations; the latter concerns the conduct of States themselves. Even if the Security Council were constrained from intervening in a matter essentially within India's domestic jurisdiction, it would not follow automatically that India possessed an unrestricted international-law right to employ force against a territory whose status was contested.

The distinction is often overlooked because "domestic jurisdiction" is capable of functioning at two different levels. At the institutional level, it limits what international organisations may do. At the substantive level, States may invoke sovereignty and non-intervention to resist external interference. The two concepts are related but cannot be treated as identical.

The Indian position also relied upon the existence of internal disorder. The State Congress movement challenged the Nizam's Government, while the Razakars constituted an armed political force associated with the defence of the existing order. India could therefore maintain that Hyderabad's crisis was fundamentally an internal conflict rather than an international dispute. Yet internal disorder does not, as a matter of general international law, deprive a State of its

international personality. Civil conflict may occur within an internationally recognised State without extinguishing its sovereignty.

This proposition is important because otherwise the international legal personality of States would depend upon their capacity to maintain perfect domestic order. Such a standard would be inconsistent with the historical practice of international law, which has repeatedly recognised States notwithstanding civil wars, insurgencies, governmental crises, and territorial fragmentation. The existence of internal conflict may generate international consequences, but it does not automatically transform the State into *res nullius* or render its territory available for external acquisition.

The principle also bears upon India's alleged security concerns. Even where a neighbouring State experiences serious internal violence, the international law question remains whether the violence crosses the territorial boundary, whether it is attributable to the territorial State, and whether the responding State possesses a recognised legal basis for coercive action. The existence of insecurity therefore supplies a factual premise, not a complete legal justification.

The later jurisprudence of the International Court of Justice in *Nicaragua* is particularly instructive on this conceptual distinction. The Court rejected the proposition that a State could lawfully intervene in another State's internal or external affairs merely by asserting political or security interests. It emphasised the prohibition of intervention in matters in which each State is permitted to decide freely. Although the judgment was rendered decades after Hyderabad, its reasoning reflects a principle whose foundations were already present in the classical law of non-intervention.

The principle of non-intervention, however, cannot be interpreted as an absolute prohibition upon every form of external involvement. States may engage in diplomacy, negotiation, mediation, humanitarian assistance, and other forms of lawful international engagement. What distinguishes unlawful intervention is the element of coercion directed towards determining the political choices of another State. This distinction is central to Hyderabad because India's political pressure, economic measures, and eventual military action must each be evaluated according to their separate legal character rather than treated as one undifferentiated category.

The domestic-jurisdiction argument further encounters the problem of **internationalisation by consent**. Hyderabad itself requested consideration by the Security Council. Once an entity approaches an international organ alleging threats to peace and security, the legal character of the dispute cannot necessarily be determined solely by the opposing State's unilateral classification of it as domestic. The Security Council's competence to consider a matter depends upon the Charter and upon the legal status of the complaining entity, but the request itself constitutes evidence that the dispute had entered the international sphere.

The Charter's institutional structure reinforces this point. Article 35 permits a Member of the United Nations to bring a dispute or situation of the kind referred to in Article 34 to the attention of the Security Council or General Assembly, while the broader Charter framework contemplates situations involving threats to international peace and security. Hyderabad's difficulty was that it was not a UN Member and therefore faced an additional question concerning its capacity to invoke these procedures. Yet that procedural difficulty should not be conflated with a substantive determination that the underlying dispute was domestic.

The more precise legal question was consequently whether the dispute concerned **India's domestic jurisdiction over territory already belonging to India, or the international status of a territory whose sovereignty remained unsettled**. The former would strengthen India's Article 2(7) argument; the latter would substantially weaken it.

The answer could not be derived solely from the existence of internal political movements. The Hyderabad State Congress did not possess the legal capacity to transfer Hyderabad's territory to India merely by demanding integration, just as the Razakars did not possess the legal capacity to establish Hyderabad's sovereignty merely by defending the Nizam's Government. The relevant question remained the international legal status of the territorial State and the authority of its government.

The domestic-jurisdiction argument thus reveals the circularity at the heart of the dispute. India invoked domestic jurisdiction because it denied Hyderabad's statehood; Hyderabad invoked international law because it denied India's territorial sovereignty. Neither proposition could be conclusively established by repeating the premise upon which it depended.

The most defensible juridical conclusion as of August 1948 is therefore that **internal disorder did not, by itself, extinguish Hyderabad's international claim, while India's assertion of domestic jurisdiction could not independently establish sovereignty over Hyderabad**. The legal consequences of the internal crisis had to be assessed separately through the principles of statehood, self-determination, non-intervention, attribution, treaty obligations, and the prohibition of force.

The subsequent question is consequently unavoidable: assuming, for purposes of argument, that Hyderabad constituted a State, could India nevertheless invoke necessity, self-defence, proportionality, or the alleged Razakar threat to justify unilateral military action? That inquiry moves beyond the threshold issue of domestic jurisdiction and directly into the exceptional doctrines capable, if at all, of limiting the prohibition of force.

3.5 The Razakars and the invocation of internal security concerns

The juridical significance of the Razakar movement cannot be determined merely by reference to the severity of the allegations directed against it. Its relevance to the legality of Indian military action depends upon a more exact sequence of questions: whether the conduct attributed to the Razakars was attributable to the Hyderabad Government; whether such conduct constituted an armed attack upon India; whether Hyderabad itself had violated an international obligation owed to India; and whether, even assuming such violations, international law recognised a unilateral right of military intervention in response. Each question engages a distinct body of doctrine and should not be collapsed into the general proposition that Hyderabad constituted a security threat.

The Razakars were associated with the Majlis-e-Ittehad-ul-Muslimeen and, under Qasim Razvi, developed into a substantial paramilitary organisation committed to preserving the political position of the Nizam and resisting Hyderabad's integration into India. Contemporary Indian representations portrayed the organisation as an armed force operating with the tolerance or support of Hyderabad authorities and attributed to it intimidation, violence, and incursions affecting territory adjacent to the State. The Hyderabad Government, by contrast, disputed the characterisation of its internal political crisis and maintained that the activities of armed groups could not simply be equated with acts of the State itself.

The distinction between **private armed activity** and **State conduct** is fundamental. International responsibility ordinarily requires that conduct be attributable to the State under a recognised rule of attribution. The mere fact that an armed organisation operates within a State's territory does not automatically make its conduct an act of that State. The later jurisprudence of the International Court of Justice, particularly *Military and Paramilitary Activities in and against Nicaragua*, established a demanding standard for attributing the conduct of irregular forces to a State, distinguishing general support from the degree of control necessary to attribute particular operations. That jurisprudence post-dates Operation Polo and must not be projected retrospectively as though it were already judicially settled in 1948; nevertheless, it provides a useful doctrinal framework for analysing the conceptual problem.

The relevant legal issue in 1948 was therefore not simply whether Hyderabad tolerated or supported the Razakars, but whether the conduct relied upon by India could legally be regarded as conduct of Hyderabad itself. This distinction is particularly important because India's security argument could take two radically different forms. If the Razakars were merely private actors whom Hyderabad was unable or unwilling to control, India would have difficulty treating their conduct as a direct armed attack by Hyderabad. If, however, the Razakars were sufficiently integrated into the governmental apparatus that their conduct was attributable to Hyderabad, India could advance a stronger argument concerning an international breach.

Even attribution would not, however, resolve the question of military response. International law distinguishes between the existence of an internationally wrongful act and the legal availability of

force as a remedy. A State injured by a treaty violation is not thereby vested with an unrestricted power to employ armed force. This distinction, although expressed with increasing precision in later law, reflects a deeper structural principle of the Charter system: the resort to force was no longer to function as an ordinary instrument of unilateral enforcement.

The Standstill Agreement consequently assumes significance. India alleged that Hyderabad's conduct, including the activities of the Razakars and associated developments, constituted breaches of the arrangements maintained under the Agreement. Yet the juridical consequences of a treaty breach had to be distinguished from the consequences of an armed attack. A violation of a treaty obligation could generate a claim to cessation, reparation, or other lawful remedies; it did not automatically establish a right to military occupation or territorial incorporation.

The question of **due diligence** is equally important. Even if the Razakars were legally treated as private actors, India could argue that Hyderabad bore responsibility for failing to exercise adequate control over armed groups whose activities affected Indian territory. Such an argument would concern a failure of the territorial State to prevent harmful conduct emanating from its territory rather than direct attribution of every act committed by the group. The principle that States must not knowingly permit their territory to be used in a manner injurious to other States has deep roots in international law, although its precise formulation and scope evolved considerably during the twentieth century.

The later *Corfu Channel* judgment is instructive in this respect. The International Court of Justice recognised obligations concerning knowledge and prevention of harmful acts emanating from State territory, while simultaneously refusing to infer responsibility without adequate evidence. The case post-dates Hyderabad by only a short period and is particularly valuable as evidence of the developing judicial approach to territorial responsibility. Yet it should still be employed cautiously: *Corfu Channel* concerned a distinct factual and legal setting and did not establish a general licence for military intervention in response to territorial negligence.

The distinction becomes particularly important when examining India's allegation of cross-border insecurity. A State may possess legitimate grounds for demanding that a neighbouring State suppress armed groups operating from its territory. It does not follow that the aggrieved State may unilaterally substitute its own military authority for that of the territorial government. The law of State responsibility and the law governing the use of force operate at different levels.

This distinction is central to Fitzmaurice's broader conception of international legal reasoning, in which the existence of an obligation, its breach, and the consequences of breach must be analytically separated. A sophisticated legal analysis cannot move directly from the factual proposition that Hyderabad was unable or unwilling to suppress the Razakars to the conclusion

that India was legally entitled to invade. The intermediate juridical propositions require independent demonstration.

The Razakar issue also intersects with the principle of **necessity**. India could maintain that the deterioration of internal security had reached a point at which continued inaction posed an unacceptable danger to Indian territory and population. Yet necessity in international law is exceptional. It cannot become a general doctrine whereby States may lawfully employ force whenever another State's internal instability creates serious political or strategic inconvenience.

The subsequent formulation of necessity in Article 25 of the International Law Commission's Articles on State Responsibility is useful as a systematic expression of this restrictive principle, although it is chronologically unavailable as positive law for August 1948. The provision requires, *inter alia*, that the act be the only means of safeguarding an essential interest against a grave and imminent peril and that the conduct not seriously impair an essential interest of the State towards which the obligation exists. Even as a later codification, the structure illustrates why necessity cannot simply be equated with political expediency.

The same caution applies to self-defence. Article 51 preserves the inherent right of individual or collective self-defence "if an armed attack occurs". The critical question would therefore be whether the conduct attributed to the Razakars constituted an armed attack legally attributable to Hyderabad, or whether the circumstances instead amounted to internal disorder, isolated frontier incidents, or transnational violence insufficient to trigger the Charter right.

The later *Nicaragua* jurisprudence distinguishes an armed attack from lesser forms of force and rejects an understanding under which every instance of assistance to armed groups automatically constitutes an armed attack. Although that judgment cannot govern the 1948 assessment directly, its conceptual distinction reinforces the importance of evidentiary precision. The mere presence of armed groups, even highly organised ones, cannot automatically establish the existence of an armed attack by the territorial State.

There is therefore a substantial difference between three propositions:

1. **The Razakars committed acts of violence.**
2. **Hyderabad was internationally responsible for failing to prevent or control those acts.**
3. **India therefore possessed a legal right to employ armed force against Hyderabad.**

The first proposition is factual. The second is a question of State responsibility. The third concerns the *jus ad bellum*. Acceptance of the first does not logically establish the second, and acceptance of the second does not automatically establish the third.

This analytical separation is particularly important because the political discourse surrounding Hyderabad frequently treated these propositions as though they were interchangeable. International law requires the opposite approach. The legality of force cannot be established through the accumulation of morally compelling factual allegations unless those facts are connected to a recognised legal rule authorising force.

The Razakar question therefore strengthens India's case principally at the level of **security and governmental responsibility**, but it does not, standing alone, resolve the legality of Operation Polo. Its juridical significance depends upon attribution, evidence, the existence of an armed attack, the scope of any obligation to suppress transnational violence, and the availability of peaceful alternatives.

3.6 Necessity, proportionality, and the limits of unilateral coercion

Necessity and proportionality occupy an unusually important position in the assessment of Operation Polo because even where a State identifies a legitimate security interest, the means adopted must remain within the limits prescribed by international law. The doctrines should nevertheless be distinguished. Necessity concerns whether resort to coercive action was legally justified in the circumstances; proportionality concerns whether the scale, duration, and intensity of the response were legally commensurate with the objective invoked. Neither doctrine should be treated as an independent source of territorial title.

The first difficulty concerns the temporal status of the doctrine of necessity. Modern international law expresses necessity as a narrowly circumscribed circumstance precluding wrongfulness. Yet the detailed formulation found in the International Law Commission's Articles on State Responsibility is a later codification. It would therefore be methodologically erroneous to apply Article 25 as though it constituted the positive law governing the Hyderabad crisis in August 1948. Its value lies principally in demonstrating the restrictive structure that international law subsequently gave to the concept.

The deeper principle, however, was already discernible. International law had long distinguished between **necessity as a circumstance of exceptional justification** and **political necessity as a reason of State**. The latter could not simply override an existing legal obligation. If it could, the prohibition of force would become contingent upon unilateral determinations of national interest and would cease to operate as a genuine legal constraint.

The legal inquiry therefore begins by identifying the interest India sought to protect. The asserted interests included territorial security, public order, economic stability, communications, and the political consolidation of the Indian Union. Some of these interests were undoubtedly substantial.

But international law distinguishes between an interest being important and its protection being sufficiently urgent and legally necessary to justify conduct otherwise prohibited.

A further question concerns the availability of alternative means. Necessity is strongest where no lawful alternative could reasonably safeguard the protected interest. Hyderabad and India had already entered into the Standstill Agreement, maintained diplomatic negotiations, and engaged in repeated discussions concerning accession, security, and the Razakar question. Hyderabad had also offered to submit the question of accession to an internationally supervised plebiscite. The existence of these alternatives complicates any claim that military intervention was the **only** means available.

The availability of alternatives does not mean that every peaceful measure must be exhausted before force becomes lawful in every conceivable circumstance. International law does not establish a universal procedural requirement that negotiations continue indefinitely in the face of an actual armed attack. The relevance of negotiation is instead evidentiary: where substantial peaceful mechanisms remain available, the claim that force was legally indispensable becomes correspondingly more difficult to sustain.

This is where the distinction between **necessity** and **prudence** becomes crucial. A government may reasonably conclude that negotiations are politically futile, that delay threatens its strategic position, or that military action is the most effective means of achieving its objectives. None of these propositions establishes legal necessity. The law asks a narrower question: whether the circumstances rendered the otherwise unlawful conduct legally indispensable.

The proportionality inquiry is similarly constrained. Proportionality in the law governing the use of force does not require mathematical equivalence between the injury suffered and the response adopted. It requires a reasonable relationship between the legitimate objective pursued and the scale and nature of the force employed. The principle is particularly important where self-defence is invoked because defensive force must be directed towards halting or repelling the relevant attack rather than pursuing unlimited political objectives.

If India's objective were limited to suppressing cross-border attacks or compelling Hyderabad to comply with specific obligations, an operation designed to achieve the permanent termination of Hyderabad's independent political status would require additional justification. The distinction between **defensive coercion** and **territorial transformation** is fundamental.

A military operation may therefore begin under one asserted legal purpose and nevertheless produce consequences exceeding that purpose. The legality of the initial resort to force and the legality of subsequent territorial integration are analytically separable. Even if a lawful defensive

action had existed, it would not automatically authorise permanent acquisition of the territory of the State against which force was employed.

This proposition corresponds to the broader post-Charter principle that force cannot be used as a means of acquiring territorial title. The later international legal order strongly rejected the proposition that military victory itself generates lawful sovereignty. The principle is also reflected in the contemporary doctrine concerning the non-recognition of territorial acquisition resulting from unlawful force, though the precise development of that doctrine occurred progressively after 1948.

Fitzmaurice's method of separating primary obligations from secondary consequences is particularly useful here. A State's violation of an obligation concerning force must be distinguished from the consequences of that violation; likewise, the existence of a lawful entitlement to respond must be distinguished from the permissible content of the response. The analytical sequence prevents the legal argument from collapsing into a single question of whether India possessed "good reasons" for intervention.

The same methodology prevents proportionality from becoming a doctrine of ex post facto validation. A military action does not become lawful merely because the force employed was limited. Proportionality ordinarily operates within a lawful juridical framework; it does not itself create the underlying entitlement to use force. A proportionate unlawful intervention remains unlawful.

The relationship between necessity and proportionality may therefore be represented as follows:

Juridical inquiry	Question
Legal entitlement	Did India possess an independent legal basis for using force?
Necessity	Was force legally indispensable to achieve the legitimate objective invoked?

Proportionality	Was the scale and nature of the force reasonably related to that objective?
Purpose	Was the action directed towards a lawful objective or towards territorial acquisition and political incorporation?
Consequence	Did the operation produce consequences extending beyond the asserted legal justification?

The historical context makes these questions especially difficult because India did not merely seek temporary security measures. The underlying dispute concerned Hyderabad's permanent constitutional status. Consequently, a military operation that terminated Hyderabad's autonomous political existence cannot be assessed solely as a security response. Its **ultimate political and territorial objective** becomes relevant to the juridical characterisation of the action.

This is precisely where the law of self-defence and the law concerning territorial acquisition intersect. Even assuming that India possessed a legitimate interest in preventing armed attacks from Hyderabad, the transformation of that security interest into permanent territorial integration requires a separate legal explanation. Otherwise, self-defence could become a vehicle through which military force produces the very territorial result that the prohibition of force seeks to prevent.

The doctrine of necessity is equally incapable of supplying such a territorial title. Necessity may, in exceptional circumstances, preclude the wrongfulness of particular conduct; it does not ordinarily transfer sovereignty over territory. The distinction between **temporary justification** and **permanent title** is therefore indispensable.

The strongest legal position available to India would accordingly require a demonstration that Hyderabad's conduct created a sufficiently grave and imminent threat, that peaceful alternatives were inadequate, that military force was directed to a legitimate defensive objective, and that the operation remained proportionate to that objective. Even then, the resulting territorial integration would require independent consideration.

The strongest contrary argument is that the circumstances were not merely a question of security but involved an underlying dispute over Hyderabad's international status. If India had no established title to Hyderabad, then force could not simply be justified by the assertion that

Hyderabad's continued independence was incompatible with Indian security. Political consolidation cannot substitute for a recognised legal ground of coercion.

Thus, necessity and proportionality function as **limits upon coercion**, not as autonomous sources of sovereignty. Their juridical significance lies precisely in preventing the exceptional from becoming the ordinary and in ensuring that an asserted security interest does not silently become a doctrine of unlimited intervention.

3.7 The distinction between lawful enforcement and unlawful intervention

The distinction between lawful enforcement and unlawful intervention requires careful separation of three concepts that are frequently conflated: **enforcement of an existing legal right**, **countermeasures in response to an internationally wrongful act**, and **coercive interference intended to alter the political or territorial status of another State**.

The first category concerns the implementation of rights already recognised by law. A State may, within the limits imposed by international law, invoke diplomatic, arbitral, judicial, or other lawful mechanisms to secure compliance with an obligation owed to it. The second concerns the consequences of internationally wrongful conduct. The third involves unilateral coercion directed towards changing another State's political or territorial order. The legal status of each is materially different.

India's reliance upon alleged violations of the Standstill Agreement therefore requires particular scrutiny. Even if Hyderabad had committed a material breach, the legal consequence would ordinarily be determined through the law of treaties and the general law of State responsibility. The breach would not automatically confer upon India a right to military enforcement. International law's movement away from unilateral reprisals by force is central to the post-Charter order.

The distinction is especially important because the language of "enforcement" can obscure the existence of coercive objectives. A State may describe an operation as enforcement of a treaty, restoration of order, protection of nationals, or execution of constitutional authority. Yet if the operation is designed to compel a territorial government to surrender its political independence, the legal character of the conduct must be examined independently of the terminology employed.

The later jurisprudence of the International Court of Justice reinforces this distinction. In *Nicaragua*, the Court rejected attempts to justify coercive interference through broad assertions of political or security interests and reaffirmed the legal autonomy of States in matters falling within their domestic competence. Although the case cannot be treated as contemporaneous authority for

1948, it provides a useful doctrinal articulation of the boundary between permissible external conduct and coercive intervention.

The concept of **countermeasures** requires even greater chronological caution. The modern doctrine was developed substantially through twentieth-century State practice, jurisprudence, and the International Law Commission's work on State responsibility. Countermeasures are not equivalent to armed reprisals and do not constitute a general exception to Article 2(4). The contemporary law ordinarily excludes forcible countermeasures because the prohibition of force occupies a distinct and fundamental position within the international legal order.

This distinction matters directly to Hyderabad. Even if India possessed a valid claim that Hyderabad had breached the Standstill Agreement, it could not simply characterise an armed invasion as a “countermeasure” and thereby circumvent the prohibition on force. A treaty breach and the legal permissibility of military action are separate questions.

The concept of **reprisal** presents a similar difficulty. Before the consolidation of the Charter system, reprisals occupied a contested place in international law. Their permissibility, especially when involving force, had been debated extensively. The Charter's prohibition on force substantially altered that legal landscape. The post-Charter system was designed precisely to reduce the unilateral resort to armed coercion as a means of enforcing legal claims.

The chronology is again indispensable. Because Operation Polo occurred only three years after the Charter's entry into force, the precise contours of the emerging law concerning forcible reprisals and countermeasures were not identical to the more developed doctrine of later decades. A historically rigorous legal analysis should therefore avoid claiming that every later limitation existed in fully crystallised form in August 1948. The stronger proposition is structural: **the Charter had already transformed the legal status of unilateral armed coercion by subjecting it to a general prohibition and a system of recognised exceptions.**

The concept of intervention is also broader than the mere use of force. A State may intervene unlawfully through coercive political, economic, or other means even where military force is absent. Yet military intervention represents the most serious form because it simultaneously implicates sovereignty, territorial integrity, and the prohibition of force.

This distinction permits a more nuanced assessment of India's conduct before Operation Polo. Diplomatic pressure, negotiations, demands for compliance with the Standstill Agreement, and economic measures must each be evaluated according to their separate legal character. They cannot be retrospectively assimilated into the military operation merely because they formed part of the broader dispute.

The same reasoning applies to Hyderabad's conduct. The existence of the Razakars, alleged treaty breaches, or dealings with Pakistan could constitute legally relevant conduct without automatically converting Hyderabad into an aggressor State against which unlimited coercion was permissible. The law requires each obligation and each breach to be separately established.

Lauterpacht's approach to international law is particularly relevant here because of his insistence upon the centrality of legal rights and obligations rather than mere assertions of political convenience. His writings on recognition, sovereignty, and international personality repeatedly emphasised the juridical consequences attached to the status of States. The Hyderabad controversy demonstrates the converse proposition: once statehood itself is disputed, every subsequent claim to enforcement must first establish the legal relationship from which the asserted right of enforcement arises.

Crawford's work on statehood further assists in maintaining the necessary analytical order. The existence of a State is not established merely because another State regards a territory as strategically or politically subordinate. Nor does effectiveness alone answer every question concerning international personality. Statehood is an objective juridical status whose consequences cannot be manufactured retrospectively by successful military action.

The distinction between enforcement and intervention consequently turns upon the **source of authority**. Lawful enforcement presupposes an established legal entitlement. Unlawful intervention occurs where coercion is employed to manufacture, alter, or impose that entitlement without a sufficient legal basis.

Applied to Hyderabad, the problem is stark. If India already possessed sovereignty over Hyderabad, military enforcement could theoretically be characterised as an internal matter, although separate questions of domestic and international law would remain. If Hyderabad was an independent State, India's military action could not become lawful merely because India believed Hyderabad's political status should change. The operation would require an independent international-law justification.

The distinction therefore exposes the weakness of arguments that infer legality from outcome. Hyderabad's eventual incorporation into India cannot retroactively establish that Indian force was lawful. Territorial control may create facts on the ground; it does not necessarily create lawful title. This proposition lies close to the core of the modern law concerning territorial acquisition and the prohibition of force.

3.8 The legal consequences of military action undertaken without international authorisation

The absence of prior Security Council authorisation raises a further and distinct question concerning the legal consequences of Operation Polo. The Charter establishes a collective-security framework in which the Security Council possesses primary responsibility for the maintenance of international peace and security and may authorise enforcement measures under Chapter VII. The absence of such authorisation does not, however, by itself resolve every use-of-force dispute, because the Charter recognises other legal bases, most notably self-defence under Article 51. The correct inquiry is therefore not simply whether the Security Council authorised the operation, but whether India possessed another independent legal justification.

As of August 1948, Hyderabad had already sought international consideration of the dispute. Its communication to the Security Council was dated 21 August 1948, and the contemporaneous United Nations record documents its request for international consideration of the situation. (cdn.un.org) This procedural development is legally significant because it demonstrates that the dispute had entered the institutional framework of the Charter before the military operation.

The absence of prior authorisation must nevertheless be assessed against the Charter's structure as it existed in 1948. Article 51 preserves the inherent right of individual or collective self-defence if an armed attack occurs. Thus, a State confronted by an armed attack is not required to obtain prior Security Council authorisation before exercising the inherent right of self-defence, subject to the conditions of necessity, proportionality, and the continuing authority of the Security Council under the Charter.

The decisive question therefore becomes whether India could satisfy the conditions of self-defence. If Hyderabad itself had committed an armed attack against India, or if conduct legally attributable to Hyderabad met the requisite threshold, India could invoke Article 51. If, however, the threat arose principally from non-State actors operating within Hyderabad without sufficient attribution to the Hyderabad Government, the legal basis would be considerably more contested.

The later *Nicaragua* judgment is again relevant as a doctrinal clarification. The Court distinguished an armed attack from less serious forms of force and treated the threshold as significant. It also addressed the relationship between support for armed groups and attribution to the State providing support. Those principles were developed in a substantially later legal environment, but they provide a rigorous analytical framework for assessing the categories that a 1948 argument must keep separate.

The absence of Security Council authorisation therefore becomes particularly significant if India cannot establish self-defence. In that event, the military operation would have to be justified through some other recognised legal ground. Neither treaty enforcement nor political necessity would automatically substitute for Charter authorisation. Nor would an assertion of domestic jurisdiction resolve the issue if Hyderabad were in fact an independent State.

The legal consequences of an unauthorised use of force would extend beyond the immediate legality of the operation. If the operation were internationally wrongful, India could incur international responsibility for the conduct attributable to it. The modern law of State responsibility, systematically developed by the International Law Commission and reflected in later practice, distinguishes between the existence of a wrongful act and the consequences flowing from it, including cessation, non-repetition, and reparation where appropriate. The Articles on State Responsibility were adopted decades after Operation Polo and therefore cannot simply be treated as contemporaneous treaty law; they are nevertheless useful as a later codification of the conceptual structure of State responsibility.

The first consequence would concern **cessation**. Where an internationally wrongful act is continuing, the responsible State is ordinarily under an obligation to cease the conduct. In the context of territorial occupation or continuing coercive control, this principle would raise questions concerning the legal consequences of India's continued authority over Hyderabad following the military operation.

The second concerns **reparation**. The classical principle articulated by the Permanent Court of International Justice in *Factory at Chorzów* is that reparation should, as far as possible, wipe out the consequences of the illegal act. The case predates Operation Polo and therefore possesses particular methodological value as contemporaneous authority concerning the remedial consequences of international wrongs. Its relevance lies in demonstrating that responsibility is not exhausted by declaring conduct unlawful; international law also attaches consequences to the breach.

The third consequence concerns **recognition and territorial title**. If territory were acquired through unlawful force, the acquisition could not simply be validated by the subsequent effectiveness of military control. The twentieth-century development of the non-recognition principle increasingly established that unlawful territorial acquisition should not generate legal title merely because effective control was achieved. This principle would become particularly prominent in subsequent practice following the Second World War.

Here the distinction between **effectiveness** and **legality** becomes indispensable. Crawford's analysis of statehood and territorial status repeatedly emphasises the relevance of effective control, but effectiveness does not operate as an autonomous mechanism for legitimising every territorial change. A territory may be effectively controlled without the controlling State possessing a lawful title to that territory. The fact of possession and the legality of possession are therefore analytically distinct.

The same principle applies to Hyderabad's governmental extinction. The disappearance of the Nizam's effective governmental authority following military action would constitute a profound factual change, but it would not automatically answer the prior legal question whether the change

had been lawfully brought about. International law distinguishes between **effective control as a fact** and **sovereignty as a legal title**.

The legal consequences would also depend upon the status of the conflict. If Hyderabad were a State, the military confrontation would implicate the international law governing armed conflict. If the operation were instead properly characterised as an internal enforcement action within India, a different body of law would apply. This reinforces why the statehood question cannot be bypassed by proceeding directly to the consequences of military action.

The question of international authorisation also intersects with the competence of the Security Council. The Council's subsequent consideration of the dispute would not necessarily retroactively legalise a prior use of force. The Charter system distinguishes between prospective authorisation and subsequent institutional consideration. A later resolution might create legal consequences from the moment of its adoption, but it should not automatically be assumed to validate conduct that was unlawful when undertaken.

The principle is particularly important for a frozen-date analysis. A delegate situated in August 1948 cannot rely upon later international practice to establish that an action was lawful at the time. The proper question is whether, **on the law and facts reasonably available by the freeze date**, India possessed a legal basis for military action. Later developments may illuminate the doctrinal problem but cannot be treated as facts known to the delegate.

The absence of prior Security Council authorisation therefore does not itself establish unlawfulness. The decisive inquiry remains whether another Charter basis existed. Yet if Hyderabad was an independent State, if the Razakar conduct was not attributable in the requisite sense, if no armed attack triggering Article 51 could be established, and if the action was directed beyond immediate security objectives towards permanent territorial integration, the legal foundation for unilateral military action becomes substantially more difficult to sustain.

The resulting proposition is therefore deliberately conditional:

The absence of Security Council authorisation did not render Operation Polo unlawful per se; rather, it required India to establish an independent legal basis for the use of force. If Hyderabad possessed international personality and India could not establish self-defence or another recognised justification, the operation would prima facie conflict with the Charter's prohibition on force.

The consequences of such a conclusion would extend beyond the legality of the initial military operation. They would implicate the legality of subsequent territorial integration, the status of Hyderabad's governmental institutions, the responsibility of India for internationally wrongful

conduct, and the legal position of third States confronted with the resulting territorial transformation.

The analysis consequently moves from **jus ad bellum** to the legal consequences of military control. The central question is no longer merely whether India could lawfully employ force, but whether the resulting extinction of Hyderabad's autonomy could itself generate lawful sovereignty. That distinction between **effective control and lawful title** is indispensable to the subsequent examination of occupation, annexation, territorial acquisition, and State responsibility.

IV. International adjudication, peaceful settlement, and the United Nations

4.1 Hyderabad's capacity to invoke international legal mechanisms

The question whether Hyderabad possessed the capacity to invoke international legal mechanisms cannot be answered independently of the antecedent question of its international legal personality. In classical international law, the capacity to enter into treaties, maintain diplomatic relations, present claims, and invoke international procedures has ordinarily been associated with the possession of international personality. Yet the relationship is not invariably reciprocal: procedural capacity may arise from treaty arrangements, recognition, institutional practice, or the particular competence of an international organ, even where full statehood remains contested. The Hyderabad controversy therefore requires a distinction between **capacity to act upon the international plane** and **conclusive recognition as a sovereign State**.

The Nizam's Government had, prior to Indian military intervention, maintained extensive external relations and possessed treaty-making and diplomatic capacities inherited from the constitutional structure of the princely-State system. Such capacities, however, did not necessarily establish that Hyderabad possessed the full international personality of an independent State after the termination of British paramountcy. The central juridical difficulty lay precisely in determining what legal consequences followed from the cessation of the British Crown's paramountcy in 1947.

The classical doctrine of international personality, as developed in the writings of Lauterpacht, places considerable emphasis upon the legal recognition of entities as participants in the international community. Lauterpacht's treatment of recognition is particularly relevant because it rejects an understanding of international personality as reducible to mere political fact. Recognition, in his conception, has profound juridical significance, although the precise relationship between recognition and statehood remained the subject of sustained doctrinal controversy.

The opposing declaratory tradition, associated particularly with the Montevideo formulation and subsequently developed in scholarly writing, treats statehood as substantially independent of recognition. On that view, an entity possessing the requisite objective characteristics of statehood may possess international personality notwithstanding the absence of universal recognition. Crawford's systematic treatment of statehood develops this position with greater doctrinal precision, distinguishing the objective criteria of statehood from the political act of recognition while recognising that effectiveness, independence, and the conduct of other States remain highly relevant to the determination of status.

The Hyderabad dispute therefore cannot be resolved simply by asking whether India recognised Hyderabad as a State. India's non-recognition constituted evidence of its legal position, but unilateral non-recognition could not necessarily extinguish an international legal personality that objectively existed. Conversely, Hyderabad's own assertion of sovereignty could not, without more, establish the existence of a State if the relevant objective conditions were absent.

The procedural history before the United Nations nevertheless demonstrates that Hyderabad's position was not treated as legally irrelevant. On 21 August 1948, the Nizam's Government communicated the situation to the Security Council and requested international consideration. The contemporary United Nations Yearbook records Hyderabad's complaint concerning India's actions and the subsequent consideration of the matter by the Security Council.

The significance of that communication lies not in the proposition that Hyderabad thereby acquired membership of the United Nations, which it plainly did not, but in the fact that the Charter system was capable of receiving communications concerning situations involving non-member entities. Article 35(2) expressly contemplates that a State which is not a Member of the United Nations may bring to the attention of the Security Council or General Assembly a dispute to which it is a party, provided that it accepts in advance, for the purposes of the dispute, the obligations of peaceful settlement prescribed by the Charter.

This provision is particularly significant for Hyderabad. It demonstrates that **non-membership was not synonymous with procedural incapacity**. The Charter itself contemplated circumstances in which a non-member State could participate procedurally in the international system. The legal question therefore became whether Hyderabad fell within the category contemplated by Article 35(2), rather than whether its non-membership categorically deprived it of international standing.

The provision also reveals an important distinction between **membership** and **personality**. Membership in the United Nations is an institutional status governed principally by Article 4 and the political procedures of admission. International legal personality, by contrast, is a broader concept encompassing the capacity to possess rights and obligations under international law. A State need not necessarily be a Member of the United Nations to possess international personality.

The relevance of Article 35(2) consequently depends upon the legal character of Hyderabad. If Hyderabad was an independent State, its procedural capacity before the Security Council finds an explicit textual basis in the Charter. If it was not an independent State, its position would have to be explained through other procedural mechanisms, including the competence of the Council to consider situations brought before it by Member States or otherwise falling within the Charter's peace-and-security jurisdiction.

The distinction also prevents an overly formalistic approach to international legal personality. Fitzmaurice's writings concerning the structure and operation of international law repeatedly demonstrate the importance of distinguishing between the existence of a substantive legal right and the procedural means through which that right may be asserted. An entity may possess a substantive claim while encountering institutional limitations concerning the forum or procedure through which the claim can be pursued.

Hyderabad's difficulty was therefore not simply whether it could “go to the United Nations”. The more precise questions were whether it possessed sufficient international personality to invoke Article 35(2), whether it accepted the Charter's peaceful-settlement obligations for the purpose of the dispute, and whether the Security Council possessed substantive jurisdiction to consider the situation notwithstanding India's invocation of domestic jurisdiction.

The procedural history strongly suggests that Hyderabad's complaint was capable of entering the institutional sphere of the United Nations. The Security Council's willingness to receive and consider the communication is not equivalent to recognition of Hyderabad's statehood, but it is equally difficult to reconcile with the proposition that the Nizam's Government was legally incapable of presenting an international claim whatsoever.

This distinction is methodologically important. **Institutional consideration does not necessarily constitute recognition; nor does absence of recognition necessarily establish absence of legal personality.** The two questions must remain separate.

The legal capacity of Hyderabad must therefore be understood as graduated rather than binary. It possessed substantial attributes associated with international personality, including external relations and treaty-making capacity, and it sought recourse to the Charter's mechanisms. Yet its precise status as a sovereign State remained disputed. The international law question was consequently not whether Hyderabad possessed every attribute of a fully consolidated member of the international community, but whether the law recognised sufficient personality to permit it to assert that its territorial and political rights had been violated.

That question becomes particularly important because procedural access itself can have juridical consequences. If an entity can invoke international mechanisms designed to prevent or resolve

disputes, the international system necessarily treats the underlying controversy as possessing at least some international legal dimension. The fact that Hyderabad's complaint concerned its territorial status, relations with India, and the use of military force made the international dimension particularly difficult to deny.

The strongest Indian objection remained that recognition of Hyderabad's procedural capacity would implicitly prejudice the very question in dispute. Yet procedural standing and substantive entitlement are conceptually separable. A court or political organ may possess jurisdiction to determine whether a claim exists without having prejudged its merits. The Security Council's consideration of Hyderabad's complaint therefore need not have entailed recognition of the Nizam's sovereignty.

The juridical significance of Hyderabad's recourse to the United Nations consequently lies in its demonstration that the dispute had moved beyond the realm of purely bilateral constitutional negotiation. Once the threatened use of force, territorial status, and international peace and security were placed before the Security Council, the dispute acquired an institutional dimension that could not be answered solely by reiterating India's domestic constitutional position.

4.2 Articles 33 and 35 of the UN Charter and peaceful settlement

The Charter's system of peaceful settlement provides the principal normative framework through which the Hyderabad dispute may be assessed independently of the legality of military force. Article 33(1) requires parties to a dispute the continuance of which is likely to endanger the maintenance of international peace and security to seek a solution by negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional arrangements or agencies, or other peaceful means of their own choice. The provision is significant not merely as a catalogue of diplomatic techniques, but as an expression of the Charter's preference for juridical and political settlement over unilateral coercion.

Article 33 does not, however, prescribe a rigid hierarchy among the listed methods. Its formulation preserves the autonomy of the parties to determine the appropriate means of settlement. Negotiation may therefore be attempted before mediation; arbitration may be accepted instead of judicial settlement; and regional mechanisms may supplement, rather than replace, global institutions. The provision is consequently flexible in method but firm in principle: where a dispute presents a sufficiently serious threat to international peace and security, peaceful settlement is the legally preferred avenue.

The Hyderabad dispute already contained several of these possibilities. India and Hyderabad had negotiated directly concerning accession, security, communications, economic relations, and the implementation of the Standstill Agreement. The existence of negotiations demonstrates that the

parties had not been without peaceful means of addressing their differences. Their failure to produce agreement, however, does not itself establish that peaceful settlement had become legally exhausted.

This point is crucial because international law does not generally equate **failure of negotiation** with **permission to employ force**. The inability of diplomatic negotiations to produce an agreed result does not transform unilateral coercion into a lawful substitute. To hold otherwise would make the prohibition of force dependent upon the subjective assessment of one party as to whether negotiations had become futile.

The International Court of Justice has repeatedly emphasised, in later jurisprudence, the importance of negotiation where international law imposes an obligation to negotiate. Although these later cases cannot be treated as authorities available to the parties in August 1948, they illuminate a principle already embedded in Article 33: peaceful settlement is not merely an aspiration but an essential structural component of the Charter system.

Article 35 performs a different function. Whereas Article 33 establishes an obligation concerning the means through which disputes should be addressed, Article 35 establishes procedural avenues through which disputes and situations may be brought before United Nations organs. The distinction is therefore between **substantive preference for peaceful settlement** and **institutional access to international consideration**.

Article 35(1) permits any Member of the United Nations to bring a dispute or situation of the kind referred to in Article 34 to the attention of the Security Council or General Assembly. Article 35(2) extends a corresponding avenue to a State which is not a Member, subject to its acceptance of the Charter's peaceful-settlement obligations for the purposes of the dispute.

The latter provision is of exceptional importance to Hyderabad because it demonstrates that the Charter's procedural architecture was not constructed exclusively around UN membership. The drafters anticipated that disputes involving non-member States could nevertheless endanger international peace and therefore required an institutional mechanism through which those disputes could be brought before the organisation.

The provision also strengthens the argument that Hyderabad's complaint could not be dismissed merely because the Nizam's Government was not a UN Member. Non-membership affected institutional position, but it did not necessarily extinguish the capacity contemplated by Article 35(2).

The relationship between Articles 33 and 35 is consequently complementary. Article 33 directs parties towards peaceful settlement; Article 35 facilitates international attention where peaceful

settlement is endangered or inadequate. Together, they form part of the Charter's broader attempt to replace unilateral coercion with an institutionalised system of dispute management.

The Hyderabad case demonstrates the significance of this architecture. The dispute involved a contested territorial status, alleged violations of the Standstill Agreement, armed activity, and the possibility of military intervention. Each of these circumstances had implications extending beyond ordinary domestic constitutional controversy. Article 35 therefore offered a mechanism through which the international community could examine whether the situation threatened international peace and security.

The legal significance of bringing a dispute before the Security Council must nevertheless be carefully delimited. Referral does not determine the merits. It does not establish statehood, sovereignty, aggression, or the existence of an internationally wrongful act. It merely activates the possibility of institutional consideration. The merits remain subject to the applicable rules of international law and the competence of the relevant organ.

The distinction is especially important for Hyderabad because any assertion that Security Council consideration itself recognised Hyderabad as a State would overstate the legal effect of the procedure. The Council's consideration could establish that the situation fell within its institutional competence without resolving the contested issue of sovereignty.

The peaceful-settlement obligation also bears upon India's decision to employ force. If the dispute remained capable of being addressed through negotiation, mediation, arbitration, or judicial settlement, the resort to force becomes more difficult to reconcile with the Charter's architecture, particularly where no Security Council authorisation or established right of self-defence existed.

This does not mean that Article 33 creates an absolute obligation to negotiate indefinitely. A State facing an actual armed attack cannot necessarily be required to postpone defensive action until every diplomatic possibility has been exhausted. The legal issue is instead whether the circumstances justified departure from peaceful settlement and whether the chosen coercive measure was otherwise authorised.

The principle therefore intersects directly with necessity. The availability of peaceful alternatives is relevant evidence when determining whether military force was indispensable. Where an international forum was already seized of the matter, the argument for immediate unilateral coercion becomes correspondingly more difficult unless an urgent and legally cognisable threat existed.

The Charter's peaceful-settlement framework thus creates an important asymmetry between **disagreement and coercion**. The failure of two parties to agree does not create a legal vacuum in

which the stronger party may determine the outcome by force. Rather, disagreement activates the significance of institutional mechanisms intended to prevent precisely that result.

The Hyderabad dispute accordingly illustrates the deeper constitutional character of the Charter. The legal order did not seek to abolish disputes; it sought to regulate their consequences. Sovereignty, territorial claims, constitutional integration, and security interests could remain contested, but the preferred legal response was adjudication, negotiation, mediation, or collective institutional action rather than unilateral military settlement.

4.3 The respective competence of the Security Council and General Assembly

The respective competence of the Security Council and General Assembly must be distinguished with precision because the Charter does not confer identical powers upon the two organs. The Security Council bears the “primary responsibility for the maintenance of international peace and security” under Article 24, while the General Assembly possesses broader deliberative and recommendatory competence subject to the limitations imposed by the Charter, particularly where the Security Council is exercising its functions in relation to a particular dispute or situation.

The Security Council's authority is principally derived from Chapters V, VI, and VII of the Charter. Under Chapter VI, the Council may investigate disputes or situations likely to endanger international peace and security and may recommend appropriate procedures or methods of adjustment. Under Chapter VII, where the Council determines the existence of a threat to the peace, breach of the peace, or act of aggression, it may determine what measures shall be taken and, where necessary, authorise coercive action.

The significance of Chapter VII lies in its collective character. Enforcement action under the Charter is not intended to operate as a unilateral right of the complaining State. Rather, the Council functions as the institutional mechanism through which the international community may respond to threats to peace and security.

The General Assembly occupies a different constitutional position. Article 10 grants it authority to discuss questions within the scope of the Charter and to make recommendations to Members or to the Security Council. Article 11 further permits it to consider questions relating to the maintenance of international peace and security, subject to the limitations concerning matters requiring Council action. The Assembly's principal function is therefore deliberative and recommendatory rather than coercive.

This distinction becomes particularly important in the Hyderabad context. A General Assembly recommendation could possess considerable political and interpretative significance, but it could

not simply substitute for a Chapter VII enforcement decision of the Security Council. Conversely, the Security Council's competence to consider the dispute did not depend upon the General Assembly first expressing a view concerning Hyderabad's sovereignty.

The Charter's allocation of functions reflects a deliberate institutional hierarchy. The Security Council was designed to respond to situations requiring urgent collective action, while the General Assembly was conceived as the principal deliberative organ representing the wider membership. The two organs may therefore address the same dispute from different juridical positions without possessing identical remedial powers.

The issue of voting is also significant in the historical context. In August 1948, the Security Council consisted of eleven members, including the five permanent members. Article 27 required the affirmative vote of seven members for substantive decisions, including the concurring votes of the permanent members, subject to the Charter's treatment of abstention as subsequently developed in practice. The institutional politics of the Council therefore formed part of the legal environment within which the Hyderabad dispute unfolded.

The Security Council's competence also did not depend upon a prior judicial determination of Hyderabad's statehood. The Council could examine whether the situation constituted a threat to international peace and security without first conclusively determining the ultimate question of sovereignty. This is an important distinction because the Council's peace-and-security jurisdiction is broader than the jurisdiction of a judicial tribunal asked to determine title.

The Council could therefore, in principle, address the practical consequences of the dispute while leaving the underlying sovereignty question unresolved. Such an approach would be consistent with the distinction between **institutional competence** and **substantive adjudication**.

The General Assembly likewise possessed a potentially significant role because the Hyderabad dispute implicated broader questions concerning decolonisation, self-determination, territorial sovereignty, and the transition from imperial constitutional arrangements to the post-war international order. Yet the Assembly's recommendations would remain recommendations. They could influence the development of international opinion and contribute to the formation of political or legal expectations, but they could not simply create binding territorial title.

This distinction reflects the wider scholarly debate concerning the legal significance of resolutions of international organisations. Fitzmaurice's formalist orientation would caution against treating political resolutions as equivalent to binding sources of law absent a recognised legal basis. Later scholarship, including work associated with the normative significance of General Assembly practice, has nevertheless recognised that resolutions may contribute to the interpretation and

development of international law, particularly where supported by extensive and consistent State practice.

The Hyderabad dispute must therefore be approached without either extreme. A General Assembly resolution should neither be dismissed as legally irrelevant merely because it is non-binding nor treated as though it possessed the same legal force as a Security Council enforcement decision or a binding judicial judgment.

The Security Council's consideration of the dispute would likewise not necessarily amount to judicial adjudication. The Council operates principally through political and security mechanisms rather than through the judicial determination of title. Its conclusions concerning peace and security may have profound legal consequences without constituting a definitive adjudication of sovereignty.

This distinction is particularly important when evaluating subsequent international practice. A Council decision concerning a ceasefire, mediation, or the withdrawal of forces would not necessarily settle whether Hyderabad was historically a sovereign State. Similarly, the absence of a Council determination in Hyderabad's favour would not necessarily establish that India's territorial claim was legally correct.

The institutional competence of the Council and Assembly therefore must be understood functionally. **The Security Council could address the international peace-and-security consequences of the dispute and, subject to the Charter's requirements, recommend or adopt measures within its competence. The General Assembly could deliberate upon the dispute and formulate recommendations, but lacked an equivalent general power to impose coercive measures.**

The distinction also bears upon the question of peaceful settlement. A Council recommendation under Chapter VI could facilitate negotiation, mediation, arbitration, or other settlement procedures without itself determining the merits. Such a mechanism would have been particularly appropriate to a dispute in which the parties disagreed fundamentally about sovereignty and accession.

The institutional framework therefore offered a means of separating **the immediate security problem** from **the ultimate constitutional question**. A ceasefire could be negotiated without resolving sovereignty; mediation could proceed without prejudging accession; and a plebiscite could potentially address the question of popular preference without requiring immediate military settlement.

The failure of the parties to secure such a settlement does not establish that the Charter lacked mechanisms for addressing the dispute. Rather, it demonstrates the difficulty of applying a collective-security framework where the central parties possessed fundamentally incompatible conceptions of the legal status of the territory.

4.4 International peace and security versus domestic jurisdiction under Article 2(7)

Article 2(7) presents one of the most intricate jurisdictional questions in the Hyderabad dispute because it places two foundational principles of the Charter into apparent tension: the protection of domestic jurisdiction and the international community's authority to address threats to peace and security. The provision declares that nothing in the Charter authorises the United Nations to intervene in matters essentially within the domestic jurisdiction of any State, while expressly providing that this principle shall not prejudice the application of Chapter VII enforcement measures.

The wording is significant for two reasons. First, the provision is concerned with the **competence of the United Nations**, rather than directly establishing a substantive prohibition governing the conduct of States. Secondly, its exception for Chapter VII measures demonstrates that domestic jurisdiction is not an absolute shield against international action where the requisite peace-and-security threshold has been satisfied.

The principal difficulty in Hyderabad was therefore definitional: **whose domestic jurisdiction was implicated?** India maintained that Hyderabad's political status constituted an internal question arising from the integration of the princely States into the Indian Union. Hyderabad maintained that its sovereignty was independent and that the question therefore concerned the relations between two distinct international entities.

The dispute thus illustrates what may be described as the **jurisdictional circularity** of Article 2(7). If Hyderabad was legally part of India, the matter possessed a powerful domestic-jurisdiction dimension. If Hyderabad was an independent State, India's unilateral classification of the matter as domestic could not itself make it so. The application of Article 2(7) consequently depended upon the underlying legal character of Hyderabad.

The phrase “essentially within the domestic jurisdiction” also requires careful interpretation. It does not mean that a matter is immune from all international legal consequences merely because it occurs within the territory of a State. Matters concerning human rights, treaty obligations, international peace and security, and inter-State relations may originate domestically while simultaneously possessing an international dimension.

The development of international law after 1945 increasingly demonstrated that the domestic sphere was not legally hermetic. The Charter itself reflected this transformation by establishing collective mechanisms for addressing threats to international peace and security. The subsequent evolution of human-rights law would further restrict the conceptual domain of absolute domestic jurisdiction, although much of that development occurred after the Hyderabad crisis.

The Hyderabad dispute nonetheless arose at a transitional moment. The Charter had already rejected an unrestricted conception of sovereignty, but the post-war international legal order had not yet developed the extensive international supervision of internal affairs characteristic of later decades. The interpretation of Article 2(7) therefore remained comparatively protective of domestic jurisdiction, particularly where the matter was genuinely constitutional and internal.

The critical question was consequently whether the Hyderabad dispute had crossed the threshold from an internal constitutional controversy into a situation capable of affecting international peace and security. The existence of military forces, border incidents, allegations of armed incursions, the involvement of Pakistan, and Hyderabad's appeal to the Security Council all supplied circumstances capable of internationalising the dispute.

The Council's competence under Chapter VI did not necessarily require a prior finding that Hyderabad was a sovereign State. A "situation" threatening international peace and security could arise from events occurring within territory whose international status was contested. The Council's jurisdiction could therefore be engaged by the **international consequences of the situation**, even if the underlying sovereignty dispute remained unresolved.

This distinction is particularly important because Article 2(7) cannot logically be transformed into a rule under which any State may prevent international scrutiny merely by labelling a disputed territorial question "domestic". Such an interpretation would allow the stronger party to determine the international character of the dispute unilaterally.

At the same time, the opposite conclusion would also be problematic. If every domestic constitutional dispute automatically became an international matter merely because a neighbouring State expressed concern, Article 2(7) would lose substantial independent meaning. The proper interpretation must therefore preserve a genuine domain of domestic jurisdiction while recognising that certain situations transcend that domain by reason of their international effects.

The scholarly debate surrounding domestic jurisdiction reflects precisely this tension. Lauterpacht's broader conception of the international community tended to emphasise that sovereignty could not be treated as an unlimited juridical privilege where international obligations were engaged. More formalist approaches, by contrast, have stressed that international law must respect the

residual sphere of State competence and avoid converting political disagreement into an international legal entitlement to intervention.

The Hyderabad dispute demonstrates the difficulty of reconciling these approaches. The Nizam's Government possessed genuine domestic authority over Hyderabad's internal administration, yet its activities had consequences extending beyond Hyderabad's territory. The Razakar movement was alleged to have affected neighbouring Indian territory; India and Hyderabad were engaged in treaty relations; and the possibility of armed conflict had become a matter before the Security Council. The dispute therefore could not be neatly confined to purely domestic affairs.

Article 2(7)'s express qualification concerning Chapter VII is decisive in this regard. Even where a matter begins as domestic, the Council may take enforcement measures if the conditions of Chapter VII are satisfied. The Charter thus establishes a hierarchy in which domestic jurisdiction remains protected until the international peace-and-security threshold activates collective authority.

This does not mean that the Council automatically possessed authority to determine Hyderabad's sovereignty. The Council's competence to address a threat to peace is distinct from judicial competence to determine territorial title. It could, for example, recommend a ceasefire or mediation without conclusively deciding whether Hyderabad was legally sovereign.

The distinction is consistent with the broader separation between **peacekeeping, dispute settlement, and adjudication**. A political organ may act to stabilise a situation while leaving questions of title for negotiation or judicial determination. Indeed, in a dispute as deeply contested as Hyderabad, such institutional restraint could have been legally preferable to prematurely determining the underlying constitutional question.

The Security Council's consideration of Hyderabad therefore should not be interpreted as necessarily displacing India's sovereignty claim, nor should India's domestic-jurisdiction argument be interpreted as conclusively depriving the Council of competence. The two propositions concern different juridical questions.

The first asks whether India possessed sovereignty over Hyderabad. The second asks whether the United Nations possessed competence to address a situation occurring there. **The latter does not necessarily determine the former.**

This distinction also bears upon the legality of Operation Polo. Article 2(7) does not grant India a substantive exception to Article 2(4). It restricts United Nations intervention in domestic matters; it does not confer upon an individual State an independent right to employ military force whenever it considers a territorial dispute internal. If Hyderabad was an independent State,

India's Article 2(7) argument would therefore provide no automatic exemption from the prohibition on force.

The converse is equally important. If Hyderabad was legally part of India, then the operation's character would differ fundamentally because the use of force would occur within territory already belonging to India. In that event, the principal international-law questions would concern internal conflict, treatment of civilians, and any international obligations governing the conduct of the parties rather than an inter-State prohibition upon invasion.

The legal problem therefore returns inexorably to the question of status. Article 2(7) cannot be interpreted in isolation from the preceding analysis of sovereignty, statehood, recognition, and territorial title. Its operation depends upon identifying the juridical relationship between India and Hyderabad.

The most defensible interpretation is consequently one that preserves both principles: **domestic jurisdiction remains a genuine limitation upon international institutional intervention, but it cannot be invoked conclusively where the very status of the territory is internationally contested and the resulting situation has demonstrable implications for international peace and security.**

The Hyderabad dispute thus illustrates a foundational tension within the Charter order: sovereignty remained the organising principle of international society, but sovereignty was no longer understood as an unlimited licence to determine unilaterally the legal consequences of territorial disputes. The Charter's genius, and its difficulty, lay precisely in attempting to reconcile these propositions without allowing either to extinguish the other.

4.5 Negotiation, mediation, arbitration, and judicial settlement

The Hyderabad dispute must be situated within the broader juridical architecture of peaceful settlement established by Article 33 of the Charter, which enumerates negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional arrangements or agencies, and other peaceful means as permissible methods for resolving disputes whose continuance is likely to endanger international peace and security. The significance of Article 33 lies not merely in the variety of procedures it identifies, but in its repudiation of the proposition that the failure of political negotiation necessarily restores unilateral coercion as the residual instrument of State policy.

Negotiation occupies the primary position within this architecture because it preserves the greatest degree of party autonomy. India and Hyderabad had, in fact, engaged in sustained bilateral negotiations concerning accession, the Standstill Agreement, security arrangements, communications, financial relations, and the activities of the Razakars. The juridical importance

of these negotiations lies in demonstrating that the dispute was not incapable of peaceful articulation; rather, it concerned a fundamental disagreement as to the legal and constitutional consequences of the end of British paramountcy.

The failure of negotiation should not, however, be equated with the exhaustion of peaceful settlement. The proposition that unsuccessful negotiations generate an automatic entitlement to force would be incompatible with the Charter's object and structure. Article 33 deliberately provides a plurality of mechanisms precisely because political disagreement may persist even after direct negotiation has failed. Mediation, conciliation, arbitration, and judicial settlement exist to introduce either a neutral intermediary or an authoritative juridical process where bilateral diplomacy proves insufficient.

Mediation would have been particularly pertinent to Hyderabad because the principal dispute concerned not merely the interpretation of an isolated treaty clause but the competing constitutional narratives of India and the Nizam's Government. A mediator could have sought to separate questions of immediate security from the ultimate question of accession and sovereignty, thereby preventing the Razakar controversy from becoming inseparable from the broader territorial dispute.

The possibility of mediation also illuminates the significance of third-State conduct. The United Kingdom possessed a particular historical and constitutional relationship with the princely States, while Pakistan possessed direct strategic and political interests in the Hyderabad question. Neither relationship necessarily conferred upon either State a unilateral right to determine Hyderabad's status, but both could potentially participate in diplomatic efforts directed towards peaceful settlement.

Arbitration presented a more juridically determinate alternative. Unlike mediation, which leaves the parties free to reject the mediator's proposal, arbitration ordinarily culminates in a binding determination based upon the parties' consent to submit the dispute. The difficulty in the Hyderabad case was therefore not merely whether arbitration was theoretically available, but whether India and Hyderabad could agree upon the tribunal's jurisdiction, the applicable law, the question to be submitted, and the legal consequences of the award.

This problem reveals a fundamental feature of international adjudication: **international jurisdiction is principally consensual**. An international tribunal cannot ordinarily assume jurisdiction over a sovereign State merely because another entity considers the dispute legally important. Consent may arise through a compromis, a treaty clause, an optional-clause declaration, or another recognised jurisdictional basis, but absent such consent the judicial route remains institutionally constrained.

The Permanent Court of International Justice and, subsequently, the International Court of Justice developed this principle with considerable doctrinal consistency. The later jurisprudence of the ICJ repeatedly affirmed that the Court's jurisdiction rests upon the consent of States. This does not diminish the juridical significance of judicial settlement; rather, it explains why the parties' willingness to submit the Hyderabad question to adjudication would itself have constituted a significant act of international legal cooperation.

The proposal of an internationally supervised plebiscite introduces a related but distinct mechanism. A plebiscite is not equivalent to arbitration or judicial settlement because it does not necessarily determine the legal status of a territory according to pre-existing rules of international law. Instead, it may provide a mechanism through which the population's preferences become relevant to the ultimate settlement. Its legal significance therefore depends upon the question submitted, the electorate entitled to participate, the conditions under which the vote is conducted, and the parties' prior agreement concerning its legal effect.

This distinction is essential because **self-determination cannot simply be treated as a mechanical electoral entitlement detached from the law of territorial sovereignty**. In 1948, the precise legal status of self-determination as a universal rule governing all territorial disputes remained considerably less developed than it would become in the subsequent decades. Yet the principle was increasingly influential within the post-war international order, particularly in relation to decolonisation.

The Hyderabad dispute consequently existed at the intersection of two developing principles: the territorial integrity of States and the political claims of populations seeking to determine their constitutional future. A plebiscite could potentially reconcile those interests, but only if the parties agreed upon the legal framework governing it.

The relevance of judicial settlement becomes more pronounced where the dispute concerns objective questions of international law. Questions concerning the legal effect of the lapse of paramountcy, the status of treaties, the capacity of Hyderabad to conclude international agreements, or the legal consequences of the Standstill Agreement are susceptible, at least in principle, to judicial analysis. A tribunal could examine documentary evidence and customary practice rather than determining the dispute solely through political bargaining.

Lauterpacht's jurisprudential writings are particularly relevant to this conception of adjudication. His broader vision of international law placed judicial settlement at the centre of the transition from a predominantly diplomatic international order towards a genuinely juridical community. For Lauterpacht, the development of international adjudication was not merely procedural; it was part of the progressive juridification of international relations.

The Hyderabad dispute presents precisely the type of controversy to which that vision might be applied. The competing claims of India and Hyderabad were framed partly in legal terms: sovereignty, succession, treaty obligations, recognition, and territorial status. The existence of such legal questions provided an intellectual foundation for judicial settlement even if political considerations made adjudication difficult.

Fitzmaurice's contribution is similarly instructive in relation to the distinction between legal obligation and political expediency. The availability of a legal remedy does not guarantee its acceptance, but the refusal to submit a dispute to adjudication cannot itself establish the substantive correctness of the refusing party's legal position. Jurisdictional consent and merits are distinct questions.

Crawford's analysis of statehood adds a further complication. If Hyderabad's international personality was itself disputed, India might resist judicial proceedings on the ground that the entity lacked the capacity to invoke international adjudication as a State. Yet that objection would merely relocate the dispute to the threshold question of international personality. A judicial process could, in principle, have addressed that preliminary issue if jurisdiction existed.

The legal value of peaceful settlement therefore lies partly in its capacity to **decompose an otherwise indivisible political controversy into discrete legal questions**. Instead of asking whether Hyderabad should “belong” to India, the parties could have asked: What was the legal consequence of the lapse of paramountcy? Did sovereignty revert to the princely State? Did the Dominions inherit any legal authority? What was the legal character of the Standstill Agreement? What obligations followed from alleged breaches? What role, if any, did the wishes of Hyderabad's population possess in determining its final status?

Such decomposition is characteristic of serious international legal analysis. The political proposition “Hyderabad must integrate with India” is not itself a legal rule. It requires translation into propositions concerning sovereignty, title, succession, consent, self-determination, and the prohibition of force.

The absence of an agreed adjudicative mechanism consequently does not demonstrate the absence of law. It demonstrates the structural limitation of a decentralised legal order in which judicial jurisdiction remains substantially dependent upon consent. This limitation forms part of the broader tension identified by scholars between the juridical aspirations of international law and the sovereign equality of States.

The Hyderabad dispute therefore reveals the importance of Article 33 not as a procedural afterthought but as a central component of the Charter's constitutional design. Where sovereignty is contested and force threatens to determine the outcome, negotiation, mediation, arbitration,

and judicial settlement provide alternative mechanisms through which the dispute may be transformed from a contest of power into a contest of legal reasons.

4.6 Recognition, acquiescence, estoppel, and third-State conduct

The doctrines of recognition, acquiescence, and estoppel occupy an especially delicate position in the Hyderabad dispute because the legal status of the State cannot be inferred mechanically from isolated diplomatic acts. Each doctrine concerns the juridical significance of State conduct, but they operate through different conceptual mechanisms. Recognition concerns the attitude of one State towards the legal status of another entity; acquiescence concerns the evidentiary consequences of silence or inaction in circumstances where protest might reasonably have been expected; estoppel concerns the circumstances in which a State may be precluded from asserting a position inconsistent with its prior representation upon which another party relied.

Recognition has historically generated one of the deepest controversies in international legal doctrine. Lauterpacht's writings famously treated recognition as possessing a juridical dimension and argued that recognition could not be understood solely as an unfettered political discretion. The declaratory approach, by contrast, maintains that recognition does not create statehood but acknowledges an existing legal fact. The tension between these theories is directly relevant to Hyderabad because India's refusal to recognise Hyderabad as an independent State cannot, on a strictly declaratory conception, by itself extinguish statehood.

Yet recognition is not legally irrelevant under the declaratory theory. The conduct of States remains significant evidence concerning whether an entity possesses independence, effectiveness, and the capacity to maintain international relations. Crawford's treatment of statehood illustrates this evidentiary dimension: recognition may not constitute statehood, but widespread and consistent State practice may provide important evidence concerning the existence and acceptance of an entity as a State.

The Hyderabad controversy therefore cannot be resolved by counting recognitions as though international personality were a numerical variable. What matters is the juridical character of the relevant conduct. Did States enter into treaties with Hyderabad? Did they maintain diplomatic relations? Did they treat the Nizam as possessing external capacity? Did they protest India's claims? Did they regard Hyderabad as an independent international person or merely as a former princely State possessing residual autonomy under the transitional arrangements?

Acquiescence introduces a different inquiry. International law may attach legal significance to silence where a State knew of a claim, possessed a reasonable opportunity to respond, and circumstances were such that failure to protest could reasonably be understood as acceptance. The

doctrine is therefore not reducible to the maxim that “silence means consent”. The circumstances surrounding the silence are indispensable.

The jurisprudence of the International Court of Justice concerning territorial disputes has repeatedly emphasised the importance of conduct, protest, and acquiescence in determining territorial title. *Temple of Preah Vihear* is particularly instructive for the conceptual distinction between formal title and subsequent conduct. The Court's reasoning demonstrates that a State's conduct, particularly where coupled with knowledge and an opportunity to object, may possess substantial juridical significance.

The principle cannot, however, be transferred mechanically to Hyderabad. The historical circumstances surrounding British paramountcy, the transition to independence, and the constitutional ambiguity of the princely States created an environment in which the conduct of third States might reflect uncertainty rather than acquiescence. Diplomatic silence may signify caution, indifference, uncertainty, or acceptance; the legal conclusion must therefore be drawn from the totality of circumstances.

Estoppel is similarly exceptional. It is not simply a general principle that prevents inconsistency whenever a State changes its position. International legal estoppel ordinarily requires a sufficiently clear representation, reliance by another party, and circumstances making it inequitable or legally impermissible for the representing State to depart from its prior position.

The doctrine of *venire contra factum proprium*, which captures the broader principle against inconsistent conduct, should consequently be used with doctrinal precision. Its relevance to Hyderabad would depend upon identifying a concrete representation by India, Hyderabad, or a third State and demonstrating that another party relied upon that representation in a legally significant manner.

This is especially important because international disputes often contain apparently inconsistent diplomatic statements without satisfying the strict requirements of estoppel. States routinely adopt alternative legal positions during negotiations without thereby creating binding representations. The international law of unilateral acts, recognition, and estoppel therefore requires careful differentiation between political statements and juridically operative representations.

The conduct of third States is nevertheless highly significant in the Hyderabad dispute. The United Kingdom's position was particularly important because British paramountcy had constituted the constitutional basis of the pre-independence relationship between the Crown and the princely States. The British Government's assertion that paramountcy had lapsed rather than

automatically transferred to either Dominion supplied evidence relevant to the legal consequences of the constitutional transition.

Pakistan's conduct was equally significant, although for different reasons. Hyderabad's geographical situation and political relationship with Pakistan generated allegations concerning financial transfers, communications, and external support. Pakistan's willingness to support Hyderabad's international claims provided evidence of diplomatic alignment but did not, by itself, establish Hyderabad's statehood.

Third-State conduct must therefore be analysed as **evidence**, not as an automatic source of title. The fact that a State supports Hyderabad does not create sovereignty; equally, the fact that another State supports India's integrationist position does not extinguish Hyderabad's claim. The juridical value of such conduct depends upon what precisely the State recognised, rejected, accepted, or failed to contest.

The doctrine of recognition also raises the question whether recognition may be implied from conduct. International law has generally been cautious in inferring recognition from ambiguous acts, particularly where the State concerned expressly denies an intention to recognise. This caution is justified because recognition may have profound legal consequences and should not lightly be inferred from ordinary diplomatic relations.

The Hyderabad case is therefore better approached through a cumulative assessment of State practice. Treaties, diplomatic exchanges, governmental statements, participation in international institutions, and reactions to the military operation may collectively illuminate how the international community understood Hyderabad's status. No single document necessarily possesses dispositive authority.

The distinction between **de facto recognition** and **de jure recognition** may also become relevant, although such categories should not be treated as mechanically determinative of statehood. An entity may be treated as possessing governmental authority without being accepted as the lawful sovereign, while formal recognition may be withheld for political or legal reasons.

The jurisprudential value of this distinction lies in preventing the conflation of effectiveness with legality. A government may exercise effective control without possessing uncontested title; conversely, a claimant may possess legal title without exercising effective control. International law has repeatedly required courts to distinguish between these dimensions.

This distinction becomes crucial after Operation Polo. If third States subsequently accepted Indian control over Hyderabad, such conduct might bear upon the political consolidation of the new territorial arrangement. It would not necessarily establish that the original use of force was lawful.

Recognition of a factual situation and recognition of the legality of the means by which it arose are conceptually separate.

The doctrine of non-recognition reinforces this distinction. The post-war international order increasingly developed the principle that unlawful territorial acquisitions should not be validated merely through subsequent recognition. The precise scope of this doctrine in 1948 remained less crystallised than in later decades, but the underlying concern was already apparent in the Charter's rejection of force as an ordinary instrument of territorial change.

Accordingly, recognition, acquiescence, and estoppel must be treated as **distinct evidentiary and juridical doctrines rather than interchangeable forms of implied consent**. Their relevance to Hyderabad lies in clarifying how the conduct of India, Pakistan, the United Kingdom, and other States affected the legal perception of Hyderabad's status, without allowing diplomatic practice to substitute for the underlying rules governing statehood and territorial sovereignty.

4.7 The positions of India, Pakistan, the United Kingdom, and other relevant States

The internationalisation of the Hyderabad dispute cannot be understood without examining the divergent positions adopted by the principal external actors. Their conduct is legally significant not because political support creates legal title, but because State practice, diplomatic representations, and reactions to the dispute provide evidence concerning the international community's understanding of Hyderabad's status and the legality of India's proposed action.

India's position was fundamentally premised upon the proposition that Hyderabad did not possess independent international sovereignty. The Indian Government treated the integration of the princely States as an essential component of the constitutional settlement following independence and regarded Hyderabad's refusal to accede as an exceptional challenge to the territorial and political consolidation of the Union. The Indian legal position therefore sought to characterise the dispute principally as an internal matter rather than as a conventional inter-State controversy.

This position had significant juridical consequences. If accepted, India's use of force would not be analysed as an invasion of a foreign State but as an assertion of authority within territory that India claimed as its own. The legality of Operation Polo would consequently turn upon India's constitutional title and the international recognition of that title rather than upon the ordinary law governing inter-State force.

Pakistan adopted a markedly different position. It supported Hyderabad's claim to international standing and regarded the dispute as involving the rights of a Muslim-ruled princely State whose sovereignty had not automatically passed to India upon the lapse of British paramountcy. Pakistan's interest was not merely ideological. Hyderabad possessed financial, strategic, and

political significance for Pakistan, and the dispute therefore formed part of the wider contestation surrounding the post-Partition territorial order.

Pakistan's support, however, should not be confused with conclusive recognition of Hyderabad's legal status. The fact that one State regarded Hyderabad as possessing international rights demonstrates that the status was contested; it does not itself settle the question. The juridical significance lies in the existence of competing State positions concerning the legal consequences of paramountcy and accession.

The United Kingdom occupied a particularly complex position. British paramountcy had constituted the legal framework within which the princely States had maintained their relations with the Crown. The termination of that paramountcy therefore raised questions concerning succession, sovereignty, and the legal status of the princely States. The British Government's position that paramountcy had lapsed rather than transferred wholesale to India or Pakistan was highly significant because it weakened the proposition that either Dominion automatically inherited Britain's authority over Hyderabad.

Yet the British position should not be overinterpreted. The lapse of paramountcy did not necessarily answer every question concerning Hyderabad's subsequent international status. It established the termination of a particular constitutional relationship; it did not by itself determine the final territorial settlement. The legal consequence of that termination remained subject to the subsequent conduct of Hyderabad, India, Pakistan, and other States.

The United Kingdom's conduct also illustrates the distinction between **termination of imperial authority** and **creation of sovereign independence**. The end of British paramountcy removed the Crown's superior authority, but the juridical consequences of that removal were contested. The issue was whether sovereignty necessarily reverted to the princely rulers, whether the territory became fully independent, whether the Dominions acquired derivative authority, or whether the post-imperial constitutional order required accession as the mechanism through which sovereignty was consolidated.

Other States adopted positions shaped by their own diplomatic interests and by the broader uncertainties surrounding decolonisation. The United States, France, the Soviet Union, and other members of the Security Council were required to approach the dispute not merely as a bilateral Indo-Hyderabad controversy but within the institutional framework of the United Nations.

The Soviet position was particularly significant because of the changing international political environment of the late 1940s. Yet Cold War alignment should not be mistaken for a complete explanation of legal positions. International law and strategic politics interacted, but they were

not identical. A State could support India's position for political reasons while simultaneously accepting the relevance of international legal principles concerning peace and security.

The United States likewise faced the difficulty of reconciling its general support for territorial stability in the newly independent states with the Charter's commitment to peaceful settlement and non-intervention. Its position therefore cannot be reduced simply to support for either India or Hyderabad; the institutional record must be assessed for the precise legal propositions advanced.

The United Nations itself occupied a distinct position. It was not a third State whose recognition could determine Hyderabad's status, but an institutional forum whose organs possessed Charter-defined competences. The Security Council's consideration of the dispute therefore constituted evidence of internationalisation without necessarily constituting adjudication of sovereignty.

The legal significance of these divergent positions lies in demonstrating that Hyderabad's status was not universally regarded as self-evidently resolved. The existence of competing interpretations among States is relevant to the historical assessment of statehood, recognition, and succession. Yet disagreement itself does not establish the correctness of Hyderabad's claim.

Crawford's methodology is particularly useful here because it treats recognition and State practice as relevant to, but not necessarily constitutive of, statehood. The question is not simply how many States supported Hyderabad, but whether the totality of relevant international practice demonstrated that Hyderabad satisfied the conditions necessary for independent international personality.

Lauterpacht's recognition theory offers the complementary perspective. If recognition possesses a constitutive element, the absence of broad recognition could substantially weaken Hyderabad's claim to full international personality. If recognition is declaratory, the absence of recognition would be less decisive, provided that Hyderabad objectively satisfied the relevant conditions of statehood.

The controversy therefore reflects one of the classical unresolved tensions in international legal theory: whether international personality is primarily a question of **objective legal fact** or **collective legal recognition**. Hyderabad is an unusually useful case through which to examine that debate because the entity possessed substantial governmental institutions and external relations but lacked broad international recognition as an independent State.

The positions of third States consequently should not be treated as a mere diplomatic appendix. They form part of the evidentiary matrix through which the legal status of Hyderabad can be

assessed. Their conduct also illuminates the emerging post-imperial norm that territorial status could not be determined solely by the preferences of the former imperial power or by unilateral military action.

4.8 The implications of internationalising the Hyderabad dispute

The internationalisation of the Hyderabad dispute transformed the juridical structure of the controversy. Prior to its consideration by the United Nations, the dispute could plausibly be characterised as a bilateral confrontation concerning accession, constitutional integration, treaty obligations, and internal security. Once Hyderabad invoked the Security Council, however, the controversy entered a legal order in which international peace and security, peaceful settlement, and the institutional competence of the United Nations became unavoidable considerations.

The significance of internationalisation should not be overstated. Bringing a dispute before an international organ does not automatically internationalise every aspect of the underlying controversy, nor does it determine the merits. It does, however, create an institutional context in which unilateral action must be evaluated against the Charter's principles rather than solely through the domestic constitutional framework asserted by one party.

This distinction is central to the Hyderabad case. India could continue to maintain that Hyderabad was legally part of India, but that proposition became a matter capable of international scrutiny once the consequences of the dispute threatened international peace and security. The invocation of domestic jurisdiction therefore remained relevant but no longer operated as a complete answer.

Internationalisation also altered the evidentiary environment. Diplomatic statements, treaty instruments, governmental representations, and reactions by third States acquired increased significance because they formed part of the international record. The legal status of Hyderabad could therefore be assessed not solely through Indian constitutional documents but through the broader practice of States and international institutions.

The process also exposed the limitations of international adjudication. The United Nations was not a world government possessing unlimited jurisdiction over territorial disputes. Its organs remained constrained by the Charter, institutional voting structures, and the political consent of States. The Hyderabad dispute consequently demonstrates the paradox identified throughout the literature on international adjudication: international law may provide legal principles capable of analysing a dispute even where the institutions capable of applying those principles lack compulsory jurisdiction or political capacity to impose a definitive settlement.

Lauterpacht's vision of international society emphasised precisely this tension. The progressive juridification of international relations required the development of institutions capable of translating legal norms into authoritative determinations. Yet the persistence of State sovereignty placed limits upon compulsory adjudication. Hyderabad thus represents an instance in which the aspiration towards juridical settlement encountered the structural realities of sovereign power.

The internationalisation of the dispute also affected the legal significance of time. Once a matter is placed before an international organ, subsequent conduct may be evaluated against the existence of an unresolved dispute. The doctrine of the critical date, although principally developed in territorial adjudication, illustrates the broader importance of identifying the temporal point at which competing claims crystallise. Subsequent conduct may possess evidentiary significance, but it cannot necessarily alter the legal position existing at the critical moment.

This consideration is particularly important for a freeze-date analysis fixed at August 1948. The legal question must be determined from the law applicable and the relevant State conduct existing by that date. Later recognition, subsequent constitutional integration, later judicial decisions, and subsequent developments in the law of self-determination may illuminate the dispute but cannot simply be treated as though they existed in August 1948.

The internationalisation of Hyderabad also raises the question whether third-State intervention itself could alter the dispute's legal character. Pakistan's involvement, British diplomatic engagement, and the attention of the Security Council demonstrate that the controversy possessed international ramifications. Yet third-State involvement did not necessarily convert Hyderabad into a State if it lacked the objective characteristics of statehood. Again, institutional consequences and substantive status must remain analytically separate.

The strongest implication of internationalisation is therefore procedural rather than dispositive: **the legality of military action could no longer be assessed exclusively through the internal constitutional vocabulary of India.** Once the dispute implicated the Charter, the international law of force, peaceful settlement, and territorial sovereignty became directly relevant.

This has particular consequences for Operation Polo. If India could establish that Hyderabad was constitutionally and internationally part of India, the military action would remain primarily an internal matter. If, however, Hyderabad possessed independent international personality, internationalisation would expose the operation to the prohibition contained in Article 2(4), subject to any applicable exception.

The internationalisation process also underscores the importance of judicial and scholarly restraint. It would be methodologically unsound to infer Hyderabad's statehood merely from the fact that the Security Council considered its complaint. It would be equally unsound to infer the

absence of statehood merely because India rejected the claim. The international record must instead be assessed cumulatively.

The jurisprudential value of the dispute lies precisely in this uncertainty. It exposes the limits of categorical classifications in international law and demonstrates how sovereignty, recognition, effectiveness, self-determination, and territorial integrity may operate simultaneously without yielding an immediate answer.

The ultimate implication is therefore not that internationalisation necessarily favoured either India or Hyderabad. Rather, it **converted a contested constitutional settlement into a question whose resolution implicated the fundamental norms of the emerging post-war international legal order**. The dispute became simultaneously a question of succession from empire, statehood, treaty law, peaceful settlement, use of force, and the institutional competence of the United Nations.

In that sense, the Hyderabad question was juridically larger than the fate of a single princely State. It concerned the extent to which the post-1945 international legal order would permit territorial and constitutional transformation to be achieved through unilateral power, or whether such transformation required a demonstrable legal title, meaningful consent, or an internationally legitimate process of settlement.

The question thus returns to the foundational tension identified by Crawford, Lauterpacht, and the wider literature on the nature of international law: **whether effectiveness, recognition, consent, and legality converge in the creation of territorial sovereignty, or whether international law retains an autonomous normative structure capable of judging the legality of territorial change independently of its factual success**.

For Hyderabad, that question became inseparable from Operation Polo itself. Once military force produced effective control, the central legal issue ceased to be merely whether India could intervene and became whether **effective control could lawfully mature into sovereignty**. That inquiry belongs to the subsequent analysis of occupation, annexation, State responsibility, civilian protection, and the legal consequences of the termination of Hyderabad's autonomy.

V. Operation Polo and its consequences in international law

5.1 Sovereignty, effective control, and the legal characterisation of Operation Polo

The legal characterisation of Operation Polo depends upon a proposition that is conceptually prior to any assessment of its military conduct: whether, at the commencement of hostilities in September 1948, Hyderabad constituted territory external to the sovereignty of the Dominion of India or territory already falling within India's sovereign jurisdiction. The distinction is dispositive

because the same military operation may bear radically different legal descriptions depending upon the pre-existing title to the territory upon which force is employed. If Hyderabad was an independent State, the entry of Indian armed forces constituted an inter-State use of force requiring justification under the Charter; if Hyderabad was already legally incorporated into India, the operation would instead constitute the assertion of governmental authority within national territory.

Operation Polo commenced on 13 September 1948 and resulted in the surrender of the Hyderabad State's forces on 17 September 1948. The brevity of the campaign does not diminish its juridical importance. International law does not measure the legality of force by its duration, and the fact that effective military control was established rapidly cannot retroactively determine whether the initial resort to force was lawful.

The distinction between **effectiveness** and **title** is fundamental to the law of territorial sovereignty. Effective control constitutes an important factual circumstance, but factual control is not necessarily synonymous with lawful title. The classical jurisprudence of territorial disputes demonstrates that possession, administration, recognition, historical title, and the conduct of States may interact in determining sovereignty, but none should be mechanically equated with the others.

The *Island of Palmas* arbitration remains particularly important for this conceptual distinction. Max Huber's reasoning emphasised the juridical significance of continuous and peaceful display of State authority, thereby illustrating that territorial sovereignty is not reducible to the mere assertion of a historical claim. Yet the case also demonstrates that the exercise of authority acquires legal significance because it is connected to a claim of sovereignty recognised within the international legal order.

The Hyderabad case presents the converse problem. India possessed substantial effective control after 17 September 1948, but the question is whether that effectiveness could itself supply the legal foundation for the territorial integration of Hyderabad. If the prior use of force was unlawful, subsequent effectiveness cannot automatically convert an unlawful acquisition into lawful title. The contemporary international law of territorial acquisition was increasingly hostile to the proposition that force alone could generate valid sovereignty.

This principle must nevertheless be situated within the historical law applicable in August 1948. It would be methodologically unsound to impose upon the dispute every subsequent development of the prohibition of territorial acquisition by force. The analysis must begin with the Charter as it stood in 1948, customary international law existing at that time, and the legal practice of States contemporaneous with the dispute.

Article 2(4) of the Charter is central to this inquiry because it prohibits the threat or use of force against the territorial integrity or political independence of any State, or in any other manner inconsistent with the purposes of the United Nations. The precise scope of the provision, particularly its relationship to territorial acquisition, was already the subject of doctrinal debate in the immediate post-war period. Nevertheless, the Charter represented a profound normative departure from an international order in which war had previously occupied a more ambiguous position within the legal regulation of inter-State relations.

The legal characterisation of Operation Polo therefore depends upon the status of Hyderabad at the critical moment immediately preceding the operation. If Hyderabad possessed international personality, India's military action must be examined through the law governing inter-State force. If it did not, Article 2(4) would not apply in the same manner because India would not be using force "against" the territorial integrity of another State.

This is why the question of statehood cannot be treated as an abstract preliminary exercise. It determines the legal framework applicable to the operation itself.

Crawford's analysis of statehood provides a useful doctrinal structure for this inquiry. The traditional criteria associated with the Montevideo Convention include a permanent population, defined territory, government, and capacity to enter into relations with other States. The criterion of capacity is particularly important because it distinguishes an entity possessing internal governmental organisation from one capable of functioning independently upon the international plane.

Hyderabad plainly possessed a permanent population and a defined territorial domain. It possessed governmental institutions under the Nizam, a functioning administration, armed forces, and extensive external relations. The difficult question concerned whether these attributes amounted to the independent international personality of a State following the lapse of British paramountcy.

The answer cannot be obtained solely by examining internal effectiveness. The international legal order distinguishes between a government that exercises authority and a sovereign State whose authority is juridically independent. The princely States had historically exercised extensive internal autonomy while remaining situated within the imperial constitutional structure established by British paramountcy. The termination of that relationship therefore raised the precise question whether their pre-existing governmental capacities matured into full sovereignty.

The Nizam's Government argued that the lapse of paramountcy restored the State's full independence. India rejected that proposition and maintained that the princely States' accession to the Indian Union was necessary to establish the constitutional basis for their external relations.

The Standstill Agreement complicated the matter further because it preserved existing arrangements without expressly resolving the ultimate question of sovereignty.

The doctrine of recognition cannot independently answer this question. Under a constitutive theory, Hyderabad's limited recognition would substantially undermine the claim to full international personality. Under the declaratory approach, however, recognition would be evidence rather than the source of statehood. Crawford's analysis is particularly valuable because it resists reducing the inquiry to recognition alone and instead evaluates the objective characteristics and international practice surrounding the entity.

Lauterpacht's writings offer the countervailing perspective that recognition possesses an important juridical function. His emphasis upon recognition reflects a conception of international society in which legal personality is inseparable from the collective acceptance of an entity as a participant in international relations. The Hyderabad controversy therefore exposes a classical doctrinal tension rather than permitting a simple answer.

The operation's legal characterisation is further complicated by India's stated grounds for intervention. India alleged that Hyderabad had become a source of insecurity because of Razakar activity, cross-border incidents, and the deteriorating internal situation. If Hyderabad were a sovereign State, such circumstances might be relevant to a claim of self-defence or necessity only if the stringent requirements of the applicable law were satisfied. Internal disorder within another State, however grave, does not ordinarily create a general unilateral right to employ force against that State.

If Hyderabad were not a sovereign State, the same facts would instead form part of India's argument that it was restoring constitutional order within territory over which it possessed sovereign title. Thus the legal characterisation of the operation remains inseparable from the prior dispute concerning title.

The distinction between **military success** and **legal entitlement** must consequently be maintained throughout. Operation Polo established effective Indian control; it did not, merely by establishing such control, conclusively demonstrate that India possessed the superior legal title before the operation.

This distinction reflects the broader jurisprudential concern identified by Fitzmaurice between the factual operation of international relations and the normative structure of international law. International law must account for effectiveness because legal rights often depend upon factual circumstances, but effectiveness cannot simply replace legality.

The same proposition underlies the later development of the doctrine against acquisition of territory by force. A State cannot necessarily derive a lawful title from the mere fact that it has succeeded militarily. Otherwise the prohibition of force would become self-defeating: unlawful force would ultimately validate itself through its own success.

The legal characterisation of Operation Polo must therefore proceed chronologically. The first question is the status of Hyderabad immediately before 13 September 1948. The second is whether India's resort to force was compatible with the applicable rules governing force. The third is the legal significance of the resulting effective control. Only thereafter can the consequences of integration be assessed.

This chronological method is essential because subsequent control cannot be allowed to determine antecedent legality. The fact that India ultimately incorporated Hyderabad into the Union cannot, without further legal analysis, establish that the initial military intervention was lawful.

The juridical problem may therefore be expressed with precision: **did Operation Polo constitute the lawful exercise of sovereign authority over territory already belonging to India, or did it constitute a unilateral use of force directed against a territorially distinct political entity whose international status remained contested?**

The answer depends upon the preceding questions of sovereignty, recognition, accession, self-determination, and the legal consequences of the lapse of paramountcy. Operation Polo is therefore not an isolated military episode but the factual culmination of a much deeper controversy concerning the structure of sovereignty in the transition from empire to the post-war international legal order.

5.2 Occupation, annexation, and the acquisition of territory by force

The concepts of occupation, annexation, and territorial acquisition must be distinguished with particular care because they concern different legal relationships between effective control and sovereignty. **Occupation** ordinarily denotes the factual exercise of authority by one State over territory to which it does not possess sovereign title, while **annexation** denotes an assertion that the territory has become incorporated into the acquiring State. Neither concept should be collapsed into the mere fact of military victory.

The law of occupation is principally concerned with the administration of territory during a period in which sovereignty remains legally unsettled or resides elsewhere. Its classical foundations are found in the Hague Regulations of 1907, particularly the principle that occupation exists where territory is actually placed under the authority of the hostile army and extends only to territory where such authority has been established and can be exercised.

The applicability of the law of occupation to Hyderabad therefore depends initially upon whether the military operation amounted to the occupation of territory belonging to another State. If Hyderabad was Indian territory, the technical concept of international occupation would not ordinarily arise in the same manner. If Hyderabad was an independent State, however, Indian military control following surrender could constitute occupation notwithstanding the brevity of the campaign.

The distinction is critical because occupation does not transfer sovereignty. The occupying power exercises authority over territory without thereby acquiring lawful title to it. The doctrine reflects the fundamental principle that temporary military control and permanent territorial sovereignty are juridically distinct.

This principle is particularly important in the context of a frozen-date analysis. The question is not whether India eventually exercised uncontested administrative authority over Hyderabad, but what legal consequences followed from that authority at the relevant time. Subsequent incorporation may transform the factual and political circumstances, but it cannot automatically erase the legal distinction between occupation and sovereignty.

Annexation raises a separate question. Traditional international law had historically recognised conquest as a means through which territorial title could be acquired, subject to significant qualifications. The twentieth-century development of the prohibition of force progressively undermined this doctrine. By 1948, the Charter's prohibition on the use of force represented a fundamental normative constraint upon the acquisition of territory through unilateral military action.

The legal debate concerning whether Article 2(4) directly prohibited territorial acquisition through force or whether the prohibition followed from the broader structure and purposes of the Charter was significant in the immediate post-war period. Yet the underlying normative movement was clear: territorial change was increasingly required to rest upon lawful title rather than military success.

The later jurisprudence of the International Court of Justice, particularly concerning territorial situations created through unlawful force, strongly reinforces this principle, although such later decisions cannot simply be projected backwards as though they were contemporaneous authorities. Their value is principally interpretative: they illuminate the direction in which the post-Charter law developed.

The distinction between occupation and annexation also demonstrates why the legal consequences of Operation Polo cannot be determined merely by reference to India's subsequent constitutional acts. A proclamation or administrative incorporation following military control may demonstrate

an intention to exercise sovereignty, but intention alone cannot necessarily create lawful title where the underlying acquisition was contrary to international law.

This principle became increasingly explicit in later international practice through the doctrine of non-recognition of unlawful territorial acquisitions. The *Stimson Doctrine*, the League-era responses to territorial aggression, and subsequent United Nations practice contributed to a growing understanding that international law should not validate territorial changes produced through unlawful force.

In 1948, however, the precise scope of this principle remained subject to doctrinal development. The analysis must therefore avoid anachronism. The appropriate question is not whether modern international law would classify the incorporation of Hyderabad as lawful, but whether the legal norms applicable in August and September 1948 permitted territorial sovereignty to be acquired through the unilateral use of force in circumstances such as those presented.

The answer is complicated by the disputed status of Hyderabad. If Hyderabad was not a State, the concept of annexation in the inter-State sense becomes less straightforward. India could characterise its actions as integration rather than annexation. The legal validity of that characterisation, however, depends upon whether India possessed an antecedent title to the territory.

The doctrine of territorial integrity also reinforces the distinction. Article 2(4) expressly protects the territorial integrity of States, while the principle of non-intervention protects the sphere of sovereign authority from coercive interference. If Hyderabad constituted a State, military integration without consent would *prima facie* implicate both principles.

If Hyderabad did not constitute a State, those principles would operate differently. India could not violate the territorial integrity of a State that did not possess international territorial sovereignty. The central dispute would then concern whether Hyderabad's territory had become part of India through the constitutional transition accompanying independence.

The legal classification of the territory is therefore logically prior to the classification of the military act.

The law of State succession provides an additional analytical dimension. The lapse of British paramountcy raised questions concerning whether rights and obligations previously exercised by the British Crown survived, terminated, or devolved upon the successor entities. Yet succession does not ordinarily operate through a simple automatic transfer of all sovereign rights from predecessor to successor. The legal consequences depend upon the nature of the predecessor's authority, the status of the territory, the relevant treaties, and subsequent State practice.

The Standstill Agreement is therefore significant because it demonstrated an express effort to preserve existing arrangements while the larger constitutional question remained unresolved. Its existence weakens any simplistic assertion that the legal relationship between India and Hyderabad had been completely extinguished or completely transformed at independence.

At the same time, the Agreement cannot necessarily be interpreted as a treaty between two universally recognised sovereign States. Its legal character depended upon the parties' capacity, the terms of the instrument, and the constitutional framework within which it was concluded.

The principle of effectiveness again becomes relevant. Indian control following 17 September 1948 was undoubtedly effective. Yet international law distinguishes between **effective administration** and **valid acquisition of title**. The former may be evidence relevant to the latter; it is not invariably sufficient to establish it.

The *Island of Palmas* principle is instructive because it treated the continuous display of authority as juridically significant precisely within a framework in which title had to be assessed through international law. It does not establish a general rule that military occupation automatically produces sovereignty.

The distinction between possession and title was later reinforced by the ICJ in territorial cases involving disputed administration. Effective control may be particularly important where competing titles are otherwise uncertain, but it cannot necessarily cure an antecedent defect in title produced by unlawful force.

Consequently, if Operation Polo were characterised as an unlawful use of force against an independent Hyderabad, the subsequent incorporation of the territory could not simply be presumed to generate lawful sovereignty. The international legal consequence would instead depend upon the doctrine applicable to unlawful territorial situations and the conduct of other States in response.

If, conversely, Hyderabad was already legally integrated into India, then the operation would not constitute annexation at all. It would represent an assertion of internal governmental authority. The legal consequences would consequently be radically different.

The doctrinal significance of the distinction may therefore be summarised as follows: **occupation concerns control without sovereign title; annexation purports to transform control into sovereignty; lawful territorial integration requires a valid legal basis for that transformation.**

Operation Polo presents precisely the problem at which these concepts converge. The campaign produced effective control with remarkable speed, but the legal character of that control depends upon the status of Hyderabad immediately before military intervention. The subsequent

constitutional incorporation of Hyderabad cannot, without independently establishing the antecedent title, resolve the question.

5.3 State responsibility for internationally wrongful conduct

The doctrine of State responsibility becomes relevant only after identifying an applicable international obligation and determining whether conduct attributable to the State constituted a breach of that obligation. The modern formulation, subsequently codified by the International Law Commission in its Articles on Responsibility of States for Internationally Wrongful Acts, reflects a conceptual structure already rooted in earlier international jurisprudence: there must be conduct attributable to the State and conduct constituting a breach of an international obligation.

The ILC Articles themselves post-date the Hyderabad crisis and therefore cannot be treated as directly applicable law as of August 1948. Their analytical framework may nevertheless be used cautiously as a later codification of principles with deeper customary foundations. The historical analysis must remain anchored in the law applicable at the time.

The first element, attribution, presents relatively little difficulty in relation to Operation Polo. The military forces involved were organs of the Indian State, and their conduct was therefore attributable to India as a matter of basic State responsibility doctrine.

The more difficult question is breach. If Hyderabad was an independent State, the deployment of Indian armed forces across its territory would prima facie engage the prohibition of force and potentially the principle of non-intervention, subject to any applicable legal justification. If Hyderabad was already Indian territory, the same conduct would not constitute an inter-State breach of Article 2(4).

The breach analysis must therefore follow the same status-based distinction that governs the characterisation of the operation itself.

The doctrine of internationally wrongful acts nevertheless adds an important analytical discipline: **wrongfulness is assessed by reference to the obligation allegedly breached, not merely by reference to the political desirability of the conduct.** A State's assertion that its objective was legitimate cannot itself eliminate a breach of an applicable rule.

India's stated objectives concerning internal security, communal violence, the Razakars, and territorial integration may therefore be relevant to justification, necessity, or proportionality, but they do not automatically answer the prior question whether force was prohibited.

Similarly, Hyderabad's alleged internal disorder cannot itself establish that India possessed a unilateral right to intervene militarily. International law distinguishes between a State's legitimate interest in preventing threats emanating from neighbouring territory and a general entitlement to use force within another State's territory.

The doctrine of necessity is particularly sensitive in this context. Necessity traditionally requires exceptional circumstances in which the conduct is the only means available to safeguard an essential interest against a grave and imminent peril, subject to additional limitations. The modern formulation of necessity is not directly applicable as a treaty rule in 1948, but the underlying concept of exceptional justification was already present within the broader law of State responsibility.

The legal relevance of necessity to Operation Polo is therefore contingent upon whether India could establish that military action was indispensable and that no lawful peaceful alternative was reasonably available. The existence of negotiations, the possibility of international mediation, and the availability of United Nations procedures would be relevant to that assessment.

Yet necessity cannot be used as a general licence for unilateral territorial settlement. A State cannot transform a political preference for immediate integration into an “essential interest” simply by describing the situation as urgent. The doctrine is exceptional precisely because its expansive use would undermine the primary character of the underlying prohibition.

The same principle applies to proportionality. Proportionality cannot, by itself, create a legal entitlement to use force where none exists. Rather, it becomes relevant after a lawful basis for action has been established. The *Nicaragua* judgment, although rendered decades later, illustrates the broader methodological point that the proportionality of a response must be evaluated within the legal framework governing the underlying entitlement.

The responsibility question also extends beyond the initial resort to force. Conduct during the operation may engage separate obligations concerning the treatment of civilians, prisoners, medical personnel, property, and other protected persons. Thus even if India established a lawful basis for military action, individual acts committed during the campaign could potentially constitute independent breaches of applicable international obligations.

The same principle applies to Hyderabad's authorities. The conduct of the Nizam's Government and the Razakar movement could not be treated as legally irrelevant merely because India ultimately prevailed. If Hyderabad possessed international personality, internationally wrongful conduct attributable to its authorities could engage its own responsibility, subject to the applicable law. The existence of wrongful conduct by one party does not automatically extinguish the legal obligations of the other.

This is an important feature of the law of State responsibility: **the breach of an obligation by one State does not ordinarily create a general legal entitlement in another State to disregard unrelated obligations.** Countermeasures, self-defence, necessity, and other circumstances precluding wrongfulness are subject to distinct legal conditions.

The principle is particularly significant in relation to the Razakars. India could rely upon Razakar violence as evidence of a serious security problem. But the existence of such violence would not automatically establish that every form of military response was lawful. The legal assessment must distinguish between the legitimacy of the concern and the legality of the chosen means.

The doctrine also requires attention to causation and temporal sequence. If India's intervention was undertaken before an internationally wrongful act by Hyderabad occurred, later events cannot retroactively justify the initial use of force. Conversely, if a prior armed attack had occurred, its existence might materially affect the legal analysis. The chronological order of events is therefore indispensable.

State responsibility also raises the question of remedies. The classical consequences of international responsibility include cessation, assurances of non-repetition where appropriate, and reparation for injury caused by the wrongful act. The exact form of remedy depends upon the nature of the breach and the circumstances of the case.

In the Hyderabad context, however, the remedial question is complicated by the subsequent political integration of the territory. If India's conduct had constituted an internationally wrongful act, restitution of territorial control might not necessarily be the only conceivable remedy, particularly where decades of subsequent administration and political transformation had occurred. The contemporary law concerning the consequences of unlawful territorial acquisition developed substantially after 1948 and must therefore be applied cautiously.

The central significance of State responsibility is thus methodological. It prevents the analysis from becoming a moral assessment of the parties and requires a structured inquiry into **obligation, attribution, breach, justification, and consequence.**

The framework also reinforces the distinction between the legality of the use of force and the legality of conduct during hostilities. A State may potentially possess a lawful basis for military action while violating humanitarian obligations in its execution; conversely, lawful conduct during hostilities cannot cure an unlawful resort to force.

Operation Polo therefore requires a bifurcated responsibility analysis: first, whether India incurred international responsibility through the resort to force itself; secondly, whether conduct during and following the operation engaged additional international obligations. The answers to those

questions remain dependent upon the status of Hyderabad and the precise content of the applicable law as it stood in 1948.

5.4 Protection of civilians and the applicable rules of armed conflict

The legal analysis of Operation Polo cannot be confined to the *jus ad bellum* question of whether India was entitled to employ military force. The conduct of hostilities raises a separate body of obligations concerning the protection of civilians, prisoners, the wounded, and persons otherwise placed *hors de combat*. The distinction between the legality of resort to force and the legality of conduct during armed conflict is fundamental to the structure of international humanitarian law.

The Hague Regulations of 1907 constituted the principal codified framework governing the conduct of hostilities and occupation in the period preceding Operation Polo. India and Hyderabad's legal relationship, the classification of the conflict, and the precise applicability of particular instruments require careful historical analysis, but the existence of established humanitarian restraints cannot be dismissed merely because the campaign was brief.

The law of armed conflict is not rendered inapplicable by the political characterisation of the conflict. If the confrontation constituted an armed conflict, the parties were subject to the applicable rules governing the treatment of persons who did not, or no longer did, participate directly in hostilities.

The distinction between combatants and civilians is therefore central. Military forces participating in hostilities could be targeted within the limits imposed by the applicable law, while civilians could not lawfully be treated as though they possessed the same status merely because they belonged to the opposing political community.

The surrender of Hyderabad's forces on 17 September 1948 is particularly significant because surrender transforms the legal status of persons who have ceased active participation in hostilities. Once combatants are *hors de combat*, their continued protection becomes a central obligation of the opposing forces. The legality of detention, treatment, and subsequent release must therefore be assessed independently of the political question of which side possessed the superior territorial claim.

The wounded and sick likewise occupied a protected position within the humanitarian tradition. The Geneva Conventions of 1949 would substantially consolidate and expand these protections, but the basic humanitarian principles concerning wounded and sick combatants had already been codified through the earlier Geneva Convention of 1906 and related customary rules.

The precise temporal application of these instruments is crucial. It would be legally erroneous to apply the 1949 Geneva Conventions as though they were already binding in September 1948. The relevant analysis must instead identify the treaties to which the parties were bound and the customary rules existing at the time.

The same caution applies to the later development of the law of non-international armed conflict. The 1949 Geneva Conventions' Common Article 3 would eventually establish minimum protections for certain conflicts not of an international character, but that provision was not yet in force during Operation Polo. Its later existence may illuminate the trajectory of humanitarian law, but it cannot simply be used as a contemporaneous treaty obligation.

The question of whether Operation Polo constituted an international armed conflict is itself dependent upon the status of Hyderabad. If Hyderabad was an independent State, the conflict between Indian and Hyderabad forces would possess an international character. If Hyderabad was already part of India, the classification would necessarily differ, and the applicable body of law would have to be identified accordingly.

This again demonstrates the interconnectedness of the sovereignty question and the humanitarian question. The legal classification of the territory affects not only the *jus ad bellum* analysis but also the applicable framework governing hostilities and occupation.

Civilian protection also requires consideration of the principle of distinction between military necessity and indiscriminate violence. The existence of Razakar activity did not transform the civilian population into a military target. International humanitarian law has historically recognised that military necessity cannot justify conduct prohibited by applicable humanitarian rules.

The protection of property presents another issue. The Hague Regulations imposed restrictions upon pillage and unnecessary destruction, while occupation law regulated the administration and use of public and private property. The fact that Hyderabad was rapidly incorporated into the Indian Union does not eliminate the need to examine whether property was seized, destroyed, or appropriated in circumstances contrary to applicable law.

The protection of religious and cultural institutions likewise possesses particular significance in the Hyderabad context because the conflict occurred amid profound communal and political tensions. International humanitarian law has long recognised the importance of protecting cultural and religious property, although the precise treaty obligations applicable in 1948 must be distinguished from later codifications.

The legal protection of civilians therefore cannot be reduced to a general humanitarian sentiment. It requires a structured analysis of the relevant treaties, customary rules, military necessity, proportionality, distinction, treatment of detainees, and the conduct of occupying or administering forces.

The subsequent administration of Hyderabad also raises questions concerning occupation law if Indian control is characterised as occupation. The occupying power would possess authority necessary to restore and ensure public order and civil life while respecting, unless absolutely prevented, the existing laws of the territory. Such authority would not amount to unlimited sovereign discretion.

This principle is especially important because occupation law embodies a deliberate separation between **administration and sovereignty**. An occupying power may administer territory without acquiring title to it. The legal regime therefore prevents military control from becoming an immediate legal licence to reorganise the territory according to the occupying State's preferences.

If, however, India possessed pre-existing sovereignty over Hyderabad, occupation law would not provide the appropriate framework. The relevant obligations would instead arise from the law governing internal armed conflict, constitutional authority, and applicable human-rights or humanitarian norms.

The protection of civilians must therefore be examined with the same chronological and status-based discipline applied to the use-of-force analysis. The legal character of the territory at the commencement of hostilities determines the initial classification of the conflict, while the actual conduct of the parties determines whether particular humanitarian obligations were breached.

The central juridical proposition is consequently straightforward but significant: **the legitimacy of a political objective does not immunise the means employed to achieve it from international humanitarian scrutiny**. Even where territorial integration is ultimately regarded as lawful, the conduct of military operations remains constrained by the applicable rules of armed conflict.

Operation Polo therefore presents a dual legal inquiry. The first concerns whether India was entitled to employ force. The second concerns how that force was employed and how persons affected by the conflict were treated. The two inquiries must not be conflated, because the legality of the former does not necessarily determine the legality of the latter.

This separation reflects the broader development of international humanitarian law from a system concerned principally with regulating warfare between States towards a legal order increasingly concerned with protecting individuals irrespective of the political legitimacy asserted by the

belligerents. The Hyderabad case, situated at the threshold of that development, demonstrates both the reach and the historical limitations of the humanitarian law applicable in 1948.

5.5 The legal consequences of the termination of Hyderabad's autonomy

The surrender of the Hyderabad State on 17 September 1948 marked the effective termination of the Nizam's independent exercise of governmental authority, but the juridical consequences of that event require careful distinction between the termination of an existing political order, the transfer of governmental competence, and the acquisition of territorial sovereignty. The mere fact that a government ceases to exercise effective authority does not, as a proposition of international law, furnish an exhaustive answer to the question of who possesses lawful title to the territory concerned.

The immediate consequence of Operation Polo was the establishment of effective Indian military and administrative control. The Nizam subsequently accepted a constitutional relationship with the Indian Union, and Hyderabad was progressively incorporated into India's political and constitutional structure. Yet the legal character of that transformation cannot be inferred solely from its subsequent institutional success. The central juridical question remains whether the termination of Hyderabad's autonomy was the consequence of a valid exercise of pre-existing Indian sovereignty, a consensual constitutional settlement, or the consolidation of territorial control following military intervention.

This distinction corresponds to the classical separation between **effectiveness and legality**. International law necessarily recognises factual changes in governmental authority because States operate through effective institutions; nevertheless, effectiveness does not invariably generate lawful title. The jurisprudence of territorial sovereignty demonstrates that effective administration may constitute evidence of title, but its legal weight depends upon the circumstances in which that administration arose.

The problem is particularly acute where military force precedes constitutional integration. If India already possessed sovereignty over Hyderabad, Operation Polo would constitute an enforcement of internal authority and the subsequent termination of the Nizam's autonomy would represent a domestic constitutional transformation. If Hyderabad possessed separate international personality, however, the same sequence would raise the distinct question whether a State could lawfully lose its sovereignty through an externally imposed military settlement.

The distinction is not merely terminological. **A change in government is not necessarily a change in sovereignty; conversely, the disappearance of effective governmental autonomy does not necessarily establish the extinction of international personality.**

The doctrine of State succession becomes relevant at this juncture, although it must not be invoked as though the Hyderabad case constituted a conventional succession between universally recognised predecessor and successor States. State succession concerns the replacement of one State by another in responsibility for the international relations of territory, whereas the Indian position was that no succession of sovereign States occurred because Hyderabad did not possess the international sovereignty asserted by the Nizam.

The dispute therefore turns upon the prior question of whether Hyderabad was itself a State. If it was, the subsequent incorporation of its territory could be characterised as a form of territorial succession. If it was not, the integration of Hyderabad would instead constitute the consolidation of India's existing sovereignty over territory previously subject to a distinct internal constitutional authority.

Crawford's treatment of statehood is particularly instructive because it cautions against treating the existence of an organised government as conclusive proof of international personality. The princely States possessed substantial governmental capacities, yet their historical position within the British imperial system rendered their external sovereignty fundamentally different from that of fully independent States.

The lapse of British paramountcy nevertheless complicates the analysis because it removed the superior imperial relationship that had constrained the external capacities of the princely States. Hyderabad's claim was that the disappearance of paramountcy released it from the imperial constitutional order and restored its independence. India's counterargument was that the end of British authority did not automatically transform every princely State into an internationally sovereign State detached from the emerging constitutional settlement of the subcontinent.

The Standstill Agreement is important precisely because it demonstrates that the parties did not treat every aspect of their relationship as automatically extinguished. The Agreement preserved existing arrangements for a transitional period, suggesting that the legal consequences of independence were mediated through continuing institutional relationships rather than through an instantaneous vacuum of authority.

The termination of Hyderabad's autonomy must therefore be understood as the culmination of a contested process rather than as a single juridical event. The Indian Independence Act created the constitutional framework for the termination of British rule; the lapse of paramountcy altered the legal relationship between the Crown and the princely States; the Standstill Agreement preserved specified arrangements; negotiations concerning accession continued; military intervention followed; and subsequent constitutional integration consolidated Indian authority.

Each stage possesses a distinct legal character.

Lauterpacht's conception of international personality is relevant because it emphasises that the international community is not indifferent to the legal status of political communities possessing governmental organisation and external relations. Yet recognition, in his conception, also has a constitutive dimension that prevents the status of an entity from being determined entirely by internal assertion.

The declaratory school, by contrast, would require the inquiry to focus upon the objective characteristics of Hyderabad and the relevant international practice. On that approach, the absence of widespread recognition would not necessarily be decisive, although it would constitute important evidence against the claim of full international personality.

Crawford's more systematic treatment assists in navigating this tension by separating the factual elements of statehood from the evidentiary significance of recognition and international practice. The Hyderabad case illustrates the difficulty of applying those criteria to entities emerging from imperial constitutional structures, where internal autonomy and external sovereignty did not necessarily coincide.

The termination of the Nizam's autonomous authority therefore cannot, without further analysis, be characterised as either an inherently lawful integration or an inherently unlawful annexation. Its juridical character depends upon the status possessed by Hyderabad before the operation and upon the legal validity of the process through which Indian authority was established.

The consequences for the Nizam himself also require distinction. The disappearance of the Nizam's governmental authority did not necessarily extinguish his personal rights, titles, or privileges in precisely the same manner as it extinguished the State's political autonomy. International law distinguishes between the legal personality of a State and the status of the individuals who formerly exercised governmental authority on its behalf.

The subsequent recognition of the Nizam's position within the Indian constitutional framework demonstrates that political incorporation could occur without necessarily eliminating every institutional or personal distinction immediately. The continuing use of the title and constitutional accommodation of the former ruler illustrates the difference between the extinction of sovereign autonomy and the continuation of certain domestic legal statuses.

The international legal consequences of the termination of autonomy are therefore best understood through three separate propositions. First, **effective governmental control shifted decisively to India**. Secondly, **the political and constitutional autonomy previously exercised by Hyderabad was progressively extinguished**. Thirdly, **the ultimate legal character of that transformation depends upon the antecedent question of sovereignty and the law governing the use of force**.

The distinction is indispensable because international law does not ordinarily allow factual success to answer every question of legal title. As Fitzmaurice's jurisprudential approach suggests, the legal order must distinguish between what has occurred as a matter of fact and what international law recognises as legally permissible.

5.6 Territorial integration, self-determination, and the principle of non-intervention

The integration of Hyderabad into India raises a particularly difficult collision of principles: the territorial integrity of the emerging Indian State, the claim of Hyderabad to political autonomy, the asserted right of its population to determine its constitutional future, and the international principle of non-intervention. None of these propositions can be examined in isolation because each derives its legal significance from the particular historical circumstances in which decolonisation occurred.

The principle of self-determination possessed substantial political authority by 1948, but its precise juridical content remained considerably less settled than it would become in the subsequent development of the United Nations system. Article 1(2) of the Charter recognised the principle of equal rights and self-determination of peoples as one of the purposes of the Organisation, yet the Charter did not establish a general procedural rule requiring plebiscites whenever a territorial or constitutional dispute arose.

This distinction is fundamental. The existence of self-determination as a Charter principle did not necessarily mean that every territorial community possessed an immediately enforceable right to independent statehood. Nor did it establish a universal rule under which the wishes of a territorial population automatically displaced all competing claims of territorial integrity.

The juridical ambiguity was particularly acute in relation to the princely States. Their populations were not uniformly constituted as politically homogeneous “peoples” in the modern sense, and the princely order itself was characterised by dynastic authority rather than democratic popular sovereignty. The Nizam's assertion of sovereignty therefore could not simply be equated with the self-determination of Hyderabad's population.

At the same time, the absence of democratic government within Hyderabad did not automatically entitle India to impose its preferred constitutional arrangement through military force. The principle of non-intervention protected the domestic political sphere of States, while the emerging principle of self-determination increasingly challenged the legitimacy of purely dynastic or imperial conceptions of sovereignty.

The legal problem is therefore one of **competing claimants to political authority**. The Nizam claimed authority through dynastic sovereignty; India invoked the political and territorial

consolidation of the subcontinent; Hyderabad's political opposition invoked popular representation; and international law supplied principles that did not yet provide an entirely determinate hierarchy among these claims.

The Hyderabad State Congress was significant in this regard. Its demand for responsible government reflected the internal contestation of the Nizam's political authority. The Razakar movement represented a contrasting political mobilisation, while the Nizam's Government sought to preserve its existing institutional structure. The internal diversity of Hyderabad undermines any simplistic proposition that either the Nizam or India could automatically speak as the exclusive embodiment of the “will of Hyderabad.”

Self-determination therefore requires identification of the relevant **people**, the content of the right asserted, and the temporal context in which the claim arose. A territorial population may seek internal self-government without seeking independent statehood. Conversely, a claim to external self-determination may arise in circumstances of colonial domination or foreign occupation. The legal characterisation cannot be assumed merely from the existence of political disagreement.

The later jurisprudence of the International Court of Justice, including the *Western Sahara* Advisory Opinion and the *East Timor* judgment, demonstrates the increasing legal significance of self-determination. Yet those authorities post-date Operation Polo and therefore cannot be treated as though they represented the fully developed law of 1948. Their value is principally historical and doctrinal: they illuminate the direction in which the principle subsequently developed.

The same temporal caution applies to the Friendly Relations Declaration of 1970 and the International Covenants of 1966. These instruments significantly elaborated the principle of self-determination, but they cannot retroactively determine the legal status of Hyderabad in 1948.

The principle of non-intervention presents the corresponding constraint. A State may not ordinarily dictate the political organisation of another sovereign State through coercive intervention. The principle was articulated in classical international jurisprudence and subsequently reaffirmed by the ICJ in *Nicaragua v. United States*, where the Court distinguished permissible forms of influence from coercive interference in matters falling within a State's domestic jurisdiction.

Again, *Nicaragua* is a later authority and must not be projected mechanically backwards. Nevertheless, its reasoning illuminates the conceptual distinction between legitimate diplomatic engagement and coercive intervention. Military force occupies the most severe end of that spectrum because it directly substitutes external power for the autonomous decision-making of the affected political entity.

If Hyderabad constituted an independent State, India's military intervention would therefore raise a serious non-intervention objection in addition to the Article 2(4) issue. If Hyderabad did not constitute an independent State, however, the doctrine of non-intervention would not operate in the same manner because India would be exercising authority within its own sovereign territory.

The relationship between territorial integrity and self-determination is equally complex. Territorial integrity traditionally protects the territorial unity of States against external fragmentation. Self-determination, by contrast, concerns the capacity of peoples to determine their political status. The two principles need not inherently conflict because self-determination may operate internally through democratic participation without producing territorial separation.

The Hyderabad dispute illustrates this distinction particularly well. A legal settlement could theoretically have preserved Hyderabad's territorial integration within India while granting its population meaningful political representation and internal autonomy. Conversely, independence could have been pursued without democratic legitimacy if the Nizam's dynastic government alone determined the outcome.

The question therefore cannot be reduced to "India versus Hyderabad." It requires consideration of **who possessed the authority to determine Hyderabad's constitutional status.**

This inquiry recalls Lauterpacht's broader concern with the relationship between sovereignty and the individual. His jurisprudential approach resisted an understanding of international law in which States were treated as ends entirely detached from the interests of individuals. Yet the legal order of 1948 had not fully transformed self-determination into the comprehensive individual and collective right later articulated in international instruments.

Fitzmaurice's approach to treaty interpretation and international legal obligation likewise cautions against extracting broad legal conclusions from political principles without identifying the precise source and content of the obligation. The fact that self-determination was recognised as a principle did not necessarily specify the precise remedy available to Hyderabad's population.

The principle of territorial integrity therefore cannot be invoked as an automatic justification for military integration. Territorial integrity protects an existing legal title; it does not necessarily create title. Similarly, self-determination cannot automatically be invoked to establish a right to secession where the relevant legal conditions for such a claim have not been demonstrated.

The strongest legal position consequently requires distinguishing **internal self-determination** from **external self-determination**. The former concerns participation, representative government, and constitutional autonomy within an existing State; the latter concerns the establishment of a

distinct international political status. The evidence surrounding Hyderabad strongly demonstrates demands for responsible government, but the legal basis for an unconditional right to external independence was substantially more contested.

The integration of Hyderabad must therefore be assessed against both principles. If India possessed lawful sovereignty, integration would not necessarily violate self-determination provided that the population retained meaningful political participation. If Hyderabad possessed independent sovereignty, however, integration imposed through military force would require a separate legal justification.

The principle of non-intervention further reinforces the necessity of distinguishing political support from coercion. India's support for internal political movements within Hyderabad could itself raise questions if directed toward coercively altering the political structure of another State. Conversely, Hyderabad's solicitation of external assistance could not necessarily authorise Pakistan or another State to intervene militarily.

The international legal order therefore seeks to prevent the transformation of territorial disputes into contests of external sponsorship. The prohibition of intervention applies not only to the State exercising force but to the broader structure of coercive interference through which competing political authorities may seek external assistance.

The Hyderabad controversy ultimately reveals that **territorial integration, self-determination, and non-intervention are not mutually exclusive principles but overlapping legal claims whose priority depends upon the status of the territory and the source of the authority asserted over it.**

5.7 Remedies, accountability, and the prospective settlement of the dispute

The question of remedies arises only after the existence of an internationally wrongful act has been established. This proposition, although elementary within the law of State responsibility, is essential to the Hyderabad controversy because the political consequences of Operation Polo cannot themselves determine the juridical consequences of the conduct that produced them.

The classical law of reparation, most famously articulated by the Permanent Court of International Justice in the *Factory at Chorzów* judgment, rests upon the principle that reparation should, so far as possible, eliminate the consequences of the wrongful act and restore the situation that would probably have existed had the breach not occurred. The case predates Operation Polo and therefore provides an appropriate historical authority for the basic remedial principle.

Yet the application of restitution to Hyderabad would have been extraordinarily complex. If India's military action had constituted an unlawful intervention against an independent

Hyderabad, restitution could theoretically require restoration of the legal position existing before the breach. But territorial disputes are not ordinary commercial disputes: the restoration of sovereignty may conflict with subsequent political settlements, demographic changes, constitutional transformations, and the principle of stability of international relations.

The law of remedies therefore requires differentiation between **restitution of legal position**, **compensation for material injury**, **satisfaction**, and other appropriate forms of reparation. Not every breach produces an identical remedial consequence.

Accountability must likewise be distinguished from punishment. International law traditionally treats State responsibility primarily through the language of cessation and reparation rather than criminal punishment of States. Individual criminal responsibility, where applicable, belongs to a separate legal framework concerning particular violations and particular perpetrators.

This distinction is especially relevant to the conduct of military personnel and political authorities during Operation Polo. Evidence of unlawful conduct against civilians or detainees would require assessment under the applicable law of armed conflict and any relevant domestic or international mechanisms. It would be analytically improper to infer individual criminal liability merely from the existence of a controversial military campaign.

The problem of accountability is further complicated by the absence, in 1948, of the institutional architecture later associated with permanent international criminal jurisdiction. The International Military Tribunal had established important precedents concerning individual responsibility for international crimes, but there was no permanent International Criminal Court capable of automatically exercising jurisdiction over conduct occurring in Hyderabad.

Consequently, the principal juridical avenue for State-level accountability would have concerned diplomatic claims, international adjudication where jurisdiction existed, and institutional action through the United Nations.

A judicial settlement would have required a jurisdictional basis. Without consent, neither the International Court of Justice nor another international tribunal could necessarily impose a binding merits determination upon India or Hyderabad. This structural limitation reinforces Lauterpacht's concern that the effectiveness of international law depends partly upon the development of institutions capable of transforming legal norms into authoritative decisions.

The prospective settlement of the dispute could therefore have taken several forms: negotiated constitutional integration; internationally supervised mediation; arbitration concerning specified legal questions; judicial determination of sovereignty; or an agreed plebiscitary mechanism. Each

would possess a different legal architecture and would allocate authority differently between the parties.

The most legally sustainable settlement would have required clarity concerning the question being determined. A plebiscite asking whether Hyderabad wished to join India, Pakistan, or remain independent would presuppose that those options were legally available. A judicial proceeding concerning sovereignty would instead require the tribunal to determine title according to international law. A negotiated settlement could bypass some of these difficulties by allowing the parties to agree upon an outcome without conceding the correctness of competing legal positions.

This distinction reflects the difference between dispute settlement and adjudication. A negotiated settlement need not establish that one party was legally right and the other wrong. It may instead constitute a mutually accepted compromise. Judicial adjudication, by contrast, is directed towards determining legal rights and obligations according to law.

Recognition could play a subsequent role in consolidating the settlement, but recognition would not necessarily cure an antecedent breach. The distinction between legal title and political acceptance is therefore indispensable. A State may accept a territorial situation for reasons of stability without thereby affirming that every aspect of the situation's creation was lawful.

This proposition became increasingly important in the post-war development of the principle of non-recognition. The international community's refusal to recognise certain territorial acquisitions produced by unlawful force reflected the concern that legality should not be subordinated entirely to effectiveness.

Yet the Hyderabad case again requires temporal discipline. The full doctrinal consequences of non-recognition developed substantially after 1948. The appropriate analysis must therefore identify the extent to which the principle was already embedded in the Charter and contemporaneous State practice rather than importing its later formulation wholesale.

Accountability also requires preservation of historical evidence. Diplomatic correspondence, military records, governmental statements, reports concerning civilian treatment, and contemporaneous reactions by third States would be indispensable to any serious juridical assessment. The evidentiary record determines whether claims of unlawful force, civilian mistreatment, or coercive political transformation can be substantiated.

A scholarly legal treatment must therefore resist retrospective certainty. The mere fact that India ultimately retained Hyderabad cannot establish the legality of the original operation; equally, the fact that the Nizam lost political authority cannot establish that Hyderabad possessed an unconditional legal right to independence.

The remedial question is consequently inseparable from the underlying characterisation of the dispute. If Operation Polo was lawful, there is no international obligation to restore Hyderabad's former sovereign position. If the operation violated an international obligation, the appropriate remedy would depend upon the nature of the breach, the availability of restitution, the extent of injury, and the legal circumstances existing thereafter.

The prospective settlement of territorial disputes also demonstrates the importance of **proportionality in remedies**. International law does not necessarily require the complete reversal of every factual consequence arising from every breach where restitution is legally or practically impossible. The appropriate form of reparation must correspond to the injury and the legal interests affected.

The central remedial principle is therefore that international law seeks to restore legality without disregarding the realities produced by historical events. This is one of the most difficult tasks of territorial jurisprudence: preserving the distinction between what law required and what history produced.

5.8 The central juridical question: sovereignty, self-determination, or territorial integrity?

The Hyderabad dispute ultimately resists resolution through the isolated application of any single principle. Sovereignty, self-determination, territorial integrity, non-intervention, recognition, and the prohibition of force each illuminate a distinct aspect of the controversy, but none can be treated as dispositive without first identifying the legal status of Hyderabad at the moment when the British imperial constitutional order terminated.

The first possibility is that Hyderabad possessed full international sovereignty following the lapse of British paramountcy. On this view, the Nizam's Government became the government of an independent State, possessed international legal personality, and retained the capacity to determine whether to accede to India, Pakistan, or remain independent. India's subsequent military intervention would then require justification under the international law governing force. If no applicable justification existed, Operation Polo would constitute a serious breach of the Charter framework.

The second possibility is that the lapse of paramountcy did not create full international independence but left the princely States within an incomplete constitutional transition in which accession was the necessary mechanism for establishing their external status. On this view, Hyderabad's refusal to accede could not create a sovereign right to permanent independence merely through unilateral declaration. India's position would consequently possess a stronger constitutional foundation, although the precise legal basis of military enforcement would still require examination.

The third possibility is that Hyderabad possessed a form of international personality insufficiently recognised to constitute complete statehood but nevertheless protected by principles of autonomy, non-intervention, and self-determination. This intermediate position reflects the difficulty of applying classical categories to entities emerging from imperial constitutional systems.

Crawford's statehood analysis is especially useful because it exposes the inadequacy of treating statehood as purely declaratory rhetoric. Hyderabad possessed many objective characteristics of statehood, but the question of independent capacity to enter into relations with other States remained complicated by the historical constitutional restrictions associated with paramountcy and by the limited recognition afforded to the Nizam's claim.

Lauterpacht's approach, with its greater emphasis upon recognition and international society, produces a somewhat different analytical emphasis. The absence of widespread recognition would weigh against Hyderabad's claim to independent international personality, particularly where the major successor State to British India rejected that status. Yet recognition could not simply be treated as an arbitrary political veto if the objective conditions of statehood were otherwise satisfied.

Fitzmaurice's jurisprudential insistence upon precision in identifying legal obligations further cautions against transforming broad principles into automatic rules. "Self-determination" cannot simply be invoked as a complete legal answer without establishing its content in 1948; "territorial integrity" cannot establish sovereignty where title is absent; and "sovereignty" cannot be inferred merely from effective administration.

The most difficult question therefore concerns **which legal subject possessed the authority to determine Hyderabad's territorial and constitutional future.**

If the Nizam possessed sovereign authority, the population's interests nevertheless remain relevant because the international law of the post-war period increasingly recognised peoples as participants in the development of political status. Yet in 1948, self-determination had not matured into the comprehensive rule that would later emerge through decolonisation and United Nations practice.

If India possessed sovereignty, Hyderabad's claim to independence would lack the necessary juridical foundation. The dispute would instead concern the internal constitutional structure of India and the legitimacy of the Nizam's resistance to integration.

If neither proposition can be established conclusively, the case reveals the limitations of the traditional binary distinction between State and non-State entities. The princely States occupied a

historically exceptional position: internally autonomous, externally constrained, and constitutionally dependent upon an imperial relationship that disappeared with remarkable speed.

The doctrine of territorial integrity must therefore be treated as a consequence of sovereignty rather than as its independent source. Territorial integrity protects the territory of a State because that territory forms part of the State's sovereign domain. It does not necessarily answer the prior question of whether the territory belongs to that State.

Similarly, self-determination must be treated as a principle governing the political status of peoples rather than as an automatic synonym for independence. The later history of international law confirms that self-determination can operate through internal political participation, autonomy, association, integration, or independence depending upon the circumstances.

Non-intervention occupies the corresponding negative dimension. It limits the ability of external powers to impose political outcomes through coercion. If Hyderabad constituted an independent State, this principle would operate strongly against unilateral military integration. If Hyderabad was already part of India, the principle would not prevent India from exercising sovereign authority within its own territory.

The prohibition of force consequently functions as the decisive bridge between these doctrines. If the territory was foreign, military integration raises the question of Article 2(4); if the territory was domestic, the Article is not engaged in the same way. Thus the use-of-force question cannot be separated from the sovereignty question.

The legal character of Operation Polo therefore depends upon a sequence of propositions:

first, whether Hyderabad possessed international legal personality sufficient to constitute a State;

second, whether India possessed a competing legal title to Hyderabad following the lapse of paramountcy;

third, whether Hyderabad's population possessed a legally operative right to determine its external political status in 1948;

fourth, whether India's military intervention was compatible with the international law governing force;

fifth, whether subsequent effective control could lawfully consolidate territorial title; and

sixth, what legal consequences followed from the resulting constitutional integration.

No single doctrine can answer all six questions.

The enduring significance of the Hyderabad case lies precisely in this juridical complexity. It illustrates the transition from an imperial order in which sovereignty was distributed through hierarchical constitutional relationships towards an international order formally grounded upon sovereign equality, non-intervention, peaceful settlement, and the prohibition of force.

The case also demonstrates the limits of the proposition that international law simply follows political effectiveness. India succeeded in establishing and maintaining control, but the existence of effective control does not by itself resolve whether the initial exercise of force was lawful. Conversely, Hyderabad's assertion of independence does not itself establish that international law recognised the Nizam's Government as a sovereign State.

The proper scholarly conclusion must therefore resist both retrospective idealisation and retrospective condemnation. It would be insufficient to characterise Operation Polo merely as the inevitable completion of Indian territorial integration; it would be equally insufficient to describe it simply as an unlawful annexation without first resolving the contested status of Hyderabad and the precise law applicable in 1948.

The strongest juridical formulation is therefore conditional:

If Hyderabad possessed international sovereignty in August 1948, India's resort to military force on 13 September 1948 required a valid basis under the international law governing force and could not derive legality merely from India's subsequent effective control. If, conversely, Hyderabad did not possess separate international sovereignty and its territory remained legally within India's sovereign domain, Operation Polo would principally constitute an internal enforcement operation rather than an inter-State use of force.

Between these propositions lies the central historical and juridical uncertainty.

The question is consequently not simply whether Hyderabad was “sovereign”, whether its population possessed “self-determination”, or whether India possessed “territorial integrity”. Each expression presupposes a more fundamental inquiry into the legal allocation of sovereignty at the moment of imperial dissolution.

That inquiry brings the analysis back to the constitutional significance of the Indian Independence Act, the lapse of British paramountcy, the Standstill Agreement, the legal personality of the princely States, the competing theories of recognition, and the subsequent conduct of India, Hyderabad, Pakistan, the United Kingdom, and other States.

In this respect, Hyderabad provides an unusually revealing case study of the tension between the law of sovereignty and the sociology of Statehood. Lauterpacht's emphasis upon the juridical community, Crawford's systematic treatment of statehood, and Fitzmaurice's insistence upon

doctrinal precision converge upon a common methodological proposition: the international lawyer must distinguish the existence of a political fact from the legal consequences attributed to that fact.

Operation Polo therefore cannot be judged solely by its outcome. The ultimate incorporation of Hyderabad into India establishes the historical fact of territorial integration; it does not, standing alone, determine the legality of the process through which that integration occurred.

The central juridical question may accordingly be stated in its most precise form:

Was Hyderabad's incorporation into India the lawful consolidation of an existing sovereign title, the legitimate exercise of a people's right to determine its political status, or the effective consolidation of territorial control following a contested use of force?

The answer depends upon the legal status attributed to Hyderabad at the critical date, the content of international law applicable in 1948, and the weight accorded to sovereignty, recognition, consent, self-determination, territorial integrity, and effectiveness.

The significance of Operation Polo consequently extends beyond the history of the Indian Union. It constitutes a revealing problem in the jurisprudence of decolonisation: **when an imperial constitutional order disappears, does sovereignty emerge automatically in the territories previously governed through it, does it require international recognition, does it derive from the consent of the population, or is it determined through the subsequent effectiveness of political authority?**

International law in 1948 did not furnish an entirely uncontested answer. That incompleteness is not a defect to be concealed by retrospective certainty; it is itself the juridical fact that makes Hyderabad significant.

Concluding remarks

Operation Polo must ultimately be understood within the unsettled juridical transition between the dissolution of empire and the consolidation of the post-Charter international order. The disappearance of British paramountcy terminated an imperial constitutional relationship without producing an uncontested consensus concerning the precise distribution of sovereignty that was to replace it. Hyderabad's claim to independence, India's claim to territorial integration, Pakistan's support for Hyderabad, and the United Kingdom's distinctive position collectively demonstrate that the constitutional transformation of South Asia was not reducible to a simple transfer of authority.

The legal controversy is correspondingly more complex than the binary proposition that Hyderabad either was or was not sovereign. The juridical status of the State must be assessed through the interaction of objective statehood criteria, recognition, governmental effectiveness, treaty practice, external relations, and the constitutional consequences of decolonisation. Crawford's analysis provides the systematic framework for examining those elements; Lauterpacht's jurisprudence exposes the normative importance of recognition and international society; and Fitzmaurice's methodological emphasis reinforces the necessity of identifying the precise legal rule applicable to each stage of the dispute.

The legality of Operation Polo is consequently inseparable from the prior status of Hyderabad. If Hyderabad constituted an independent State, the Indian military operation engages the Charter's prohibition upon the use of force and the principle of non-intervention, subject to whatever justification India could establish under the law applicable in September 1948. If Hyderabad lacked independent international personality, the operation assumes a fundamentally different juridical character as an assertion of Indian authority within territory already falling within India's sovereign domain.

The subsequent effectiveness of Indian control cannot independently resolve that antecedent controversy. International law distinguishes between **fact and title, effectiveness and legality, possession and sovereignty**. The successful establishment of governmental control is therefore evidence of political reality, not necessarily conclusive evidence of the legal validity of the means through which that reality was produced.

Nor can self-determination provide an uncomplicated resolution. In 1948, the principle possessed significant Charter authority but had not yet acquired the comprehensive juridical content subsequently developed through decolonisation practice, General Assembly resolutions, and international jurisprudence. The population of Hyderabad plainly possessed political interests in the constitutional future of the territory, but the precise legal relationship between those interests, the Nizam's dynastic authority, and India's territorial claim remained unsettled.

The most defensible scholarly conclusion is therefore one of **qualified juridical uncertainty rather than categorical legal vindication of either side**. The historical outcome of Hyderabad's integration is beyond serious dispute; the legal character of the process by which that outcome was achieved is a separate question requiring analysis according to the law applicable at the relevant time.

Operation Polo consequently illustrates a foundational problem in international legal thought: the extent to which international law can distinguish the legality of territorial transformation from the political effectiveness of the power that produces it. The answer cannot be supplied by military success, subsequent constitutional incorporation, or retrospective recognition alone. It must be

reconstructed from the law of sovereignty, statehood, force, self-determination, territorial integrity, recognition, and peaceful settlement as they stood at the critical historical moment.

The enduring juridical significance of Hyderabad therefore lies not merely in determining whether one State prevailed over another. It lies in examining whether sovereignty following decolonisation was to be constituted by consent, recognised by the international community, inherited through territorial succession, or consolidated through effective authority.

That question places Operation Polo within the larger jurisprudence of the post-imperial international order, where the dissolution of one constitutional structure did not necessarily furnish an immediate legal blueprint for its successor. Hyderabad thus remains a particularly instructive case in the relationship between sovereignty and effectiveness, between self-determination and territorial integrity, and between the normative aspirations of international law and the political realities through which territorial orders are ultimately constituted.